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In This Issue

በዚህ እትም

Articles
Case Comment
Case Reports

ጥናታዊ ጽሁፎች
የፍርድ ትችቶች
ምርጥ ፍርዶች

በባህር ዳር ዩኒቨርሲቲ ህግ ት/ቤት በዓመት ሁለት ጊዜ የሚታተም የህግ መጽሔት
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Message from the Editorial Committee

Let us carry it forward!

The Editorial Committee of *Bahir Dar University Journal of Law* is delighted to present you the first issue of the second volume of the *Bahir Dar University Journal of Law*. The Editorial Committee extends its gratitude for those people who made it happen (Special thanks should go to H/gabriel Gedecho).

At this stage the Editorial Committee would like to make its continued and undisguised appeal for sustained contribution of manuscripts. It is essential that the community of legal professionals and public and private institutions be supplied with research outputs on matters related to law. For those of us in the academic circle doing it is our destiny. It is also essential that the practicing legal professionals research and reflect upon the law in action. The scientific presentation and dissemination of ideas by individuals from within and outside the academic world is vital to nurture a developing culture of legal discourse, enhance the creation of new knowledge and help to develop the legal system and, hence, the nation. It is only then that we will be able to scale up the heights of quality justice. In this regard the continued publication of the *Bahir Dar University Journal of Law* is an invaluable forum and let us carry forward the humble beginning!

The Editorial Committee, thus, calls upon members of the academia, practitioners, judges and members of the legal profession in general to submit contributions on various legal issues pertaining to Ethiopian laws. The *Journal* welcomes research articles, comments on cases which stand out for any important reason, reflections on current legal issues and book reviews. (Submission guidelines are appended at the end pages of this issue)

The views expressed in this journal do not reflect the views of the Editorial Committee or the position of the Law School.

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ቅጽ ፪ ቁጥር ፩
Vol. 2 No. 1

ሐምሌ ፪ሺ፫
July 2011

Content

Articles

- Criminal Jurisdiction of States Over Hijackers of Aircraft under the Hague Convention: Implications for Ethiopia.....1
Aschalew Ashagre
- Federal Bicameralism and Second Chamber Powers in Parliamentary Form of Government: A Brief Analysis of the Ethiopian System.....39
Addisie Shiferaw
- A Legal Appraisal of the Liability of the Actual Air Carrier under Ethiopian Law85
H/gabriel Gedecho
- Status and Role of Victims of Crime in the Ethiopian Criminal Justice System....103
Worku Yaze

Case Comments

- The Scope of Article 2081 of the Civil Code: A Comment on *Negist Makonnen et al v. Ethiopian Airlines, Inc*153
H/gabriel Gedecho

Selected Court Cases (Written in Amharic Language)

- Seid Yimer V. Amhara Region Ethics and Anti-Corruption Commission, Federal Supreme Court, File No. 3477, 9 March 2000 E.C..... 161
- Fisha Abay & Hiwot Yesiraw V. Customs and Revenue Authority, Federal Supreme Court Cassation Division, File No. 53612, 25 April 2002 E.C.....163
- Amhara Regional Justice Bureau V. Kebede Workneh, Federal Supreme Court Cassation Division, File No. 35697, 20 April 2001 E.C.....166

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Criminal Jurisdiction of States over Hijackers of Aircrafts under the Hague Convention: Implications for Ethiopia

Aschalew Ashagre Byness*

Abstract

The aviation technology faced serious problems as of the 1960s. The most heinous of the problems has been the crime of hijacking of aircraft. Because of the severity of this crime, the international community responded to it, inter alia, by international Conventions, the most important one being the Hague Anti-hijacking Convention of 1970. This article is aimed at investigating the relevant provisions of the Convention on criminal jurisdiction of States Parties to the Convention. More specifically, the article analyzes issues regarding the assumption of criminal jurisdiction of States parties, the obligation of states parties in connection with prosecution and/or extradition of hijackers, the status of extradition under the Convention, conflict of criminal jurisdiction of states and the implication of the provisions of the Convention, on criminal jurisdiction, to Ethiopia – a party to the Convention as of 1979.

In this piece, the author argues that the Hague Convention has left some critical questions unanswered though it contains several praiseworthy provisions on criminal jurisdiction of states. Specifically, the Convention does not clearly define the constituent elements of the crime under consideration; nor does it contain rules regulating conflict of criminal jurisdiction of states with regard to prosecution and/or extradition of hijackers. In general, it is hoped to show that the Hague Convention contains inbuilt deficiencies that must be rectified so as to effectively combat the crime of hijacking.

Introduction

The desire of mankind to fly in the sky was a long held dream. This dream was realized when the first controlled flight was undertaken at the dawn of the 20th century. Aviation, which has made swift global communication possible,¹ has been facing various problems among which hijacking of aircraft remains to be the most serious one. Particularly, as of the

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¹ See, *The New Encyclopedia Britannica*, 1995, Vol. 28, 15th ed., p. 801.

1960's,² hijacking has increasingly threatened the safety of aviation globally.³ Amidst this, the international community has come up with the 1963 Tokyo Convention,⁴ the 1970 Hague Convention⁵ and the 1971 Montreal Convention⁶ so that the threats of hijacking are fought in a coordinated manner. Of all these three conventions, it is the 1970 Hague Convention that is anti- hijacking convention *per se*. Hence, the focus of this work is the Hague Convention: the other two conventions are thus beyond the scope of the present analysis.

Ethiopia signed the Hague Convention in 1970 and ratified it in 1979.⁷ This means that the Convention has imposed an international obligation on Ethiopia as of 1979. Correspondingly, Ethiopian courts do have the power to exercise criminal jurisdiction over hijackers by invoking the relevant provisions of the convention. Most importantly, the provisions of the Hague Convention must be applied in Ethiopia to discharge Ethiopia's international obligation and to bring hijackers to justice as doing so is playing appropriate role towards ensuring global, regional as well as national peace and security.

Ethiopia has been a victim of hijacking of aircraft on several occasions.⁸ Even more, Ethiopia is threatened by the problem of terrorism attributable to a

² McWhinney, E., *Aerial Piracy and International Terrorism: The Illegal Diversion of Aircraft and International Law*, Martinus Nijhoff Publishers, the Hague, 1987, 2nd, revised edition, p. 7.

³ The first hijacking incident in recorded history involved the Peruvian revolutionaries, who in 1930, seized a mail plane which belonged to Pan- American; see Johnson, D., *Rights in Airspace*, Manchester University Press, Manchester, 1965, p. 8

⁴ The Tokyo Convention on Offences and Certain Other Acts Committed on Board Aircraft, Tokyo, 1963 (in force since 1969).

⁵ The Hague Convention on the Suppression of Unlawful Seizures of Aircraft, Hague, 1970 [hereinafter Hague Convention].

⁶ Convention for the Suppression of Unlawful Acts against the Safety of Aviation, Montreal, 1971.

⁷ Ethiopia signed the Hague Convention on the 6th December 1970 and ratified it on the 26th of March 1979. Hence, the Convention is part and parcel of the Ethiopian law by virtue of Article 9(4) of the Constitution of the Federal Democratic Republic of Ethiopia, 1995, Proc. No. 1/1995, *Federal Negarit Gazeta*, Year 1, No.1. The relevant provisions of this Convention have also tremendously influenced the contents of the 2005 Criminal Code of the Federal Democratic Republic of Ethiopia, 2005, Proclamation No. 414/2004, *Federal Negarit Gazeta*, Year 10, No. 59 [hereinafter Criminal Code]; See Article 507 of the Code.

⁸ See Girma Admasu, *Hijacking of Aircraft under Ethiopian Law*, Senior Thesis, Unpublished, Faculty of Law, Addis Ababa University, 1995.

number of factors.⁹ Though incidents involving hijacking – an element of international terrorism¹⁰ – have been absent in recent times, the threat is always there. Thus, it is important to give attention to criminal jurisdiction of states since it is not possible to try and punish hijackers without having legitimate criminal jurisdiction.

The focus in this article is on the provisions of the Hague Convention dealing with criminal jurisdiction of states. Although, Ethiopia has been a party to the Hague Convention and has made it an integral part of its domestic laws, little or nothing has been written in Ethiopia regarding criminal jurisdiction of states over hijackers under the Convention. Due to this, much is not known about the convention in general and the articles of the Convention which particularly deal with criminal jurisdiction of states over hijackers in particular. Moreover, the Convention, though drafted by highly renowned experts, calls for some critical analysis in relation to criminal jurisdiction of states over hijackers. This piece will be important for Ethiopian readers as the discussions made throughout this modest work do have relevant repercussions for Ethiopia. Therefore, this piece is aimed at critically examining the provisions of the Convention regulating criminal jurisdiction of states and the other alternative obligation – extradition. It is hoped to contribute to the knowledge (among various stakeholder) about the criminal jurisdiction of states over hijackers in general and criminal jurisdiction of Ethiopian courts in particular.

The article is divided into four sections. In the immediately following section, attempt is made to introduce the Hague Convention by concentrating on its adoption, purpose, scope and some innovative approaches of same. Section Two is devoted to the examination of criminal jurisdiction of states by focusing on the following themes: How can states assume criminal jurisdiction over hijackers? Is prosecution of hijackers mandatory or optional? What is the status of extradition under this convention? Are prosecution and extradition alternative obligations? How can conflict of jurisdiction of states party to the Convention be resolved? The third section analyses criminal jurisdiction of Ethiopian courts over hijackers and the allocation of such jurisdiction in the Ethiopian federal set up. Finally, concluding remarks are provided.

⁹ See generally Weldesellassie Weldemichael, *Terrorism in Ethiopia and the Horn of Africa: Threat, Impact and Response*, Mega Publishing Enterprise, Addis Ababa, 2010.

¹⁰ *Ibid.*

1. The Hague Convention: An Overview

1.1. Adoption of the Hague Convention

Since the adoption of the Tokyo Convention in 1963, the international community became more sensitive to the problem of hijacking than ever before and greater concern had been overtly accorded to the phenomenon. As a result, a large number of representatives of countries (from 77 states)¹¹ participated at the Hague Convention. Numerous hijacking incidents witnessed in this period served as a pushing factor for active state participation in the Convention.¹²

Informed by the weaknesses (in squarely dealing with issues of extradition and prosecution of hijackers) of the already adopted Tokyo Convention, participants tried to make the Hague Convention potent. The planners of the new Convention utilized the Tokyo agreement as vantage point from which an international law of hijacking could effectively be implemented. In this regard, K.E. Malmborg writes:

“The impetus to the new convention stemmed not only from the bland provisions of the Tokyo Convention, but also from the new upsurge of aircraft seizures, seizures tantamount to international blackmail which posed an even more urgent and drastic threat to international civil aviation than in the past.”¹³

During the adoption of this Convention, uncertainty arose about the potentially conflicting nature of the newly proposed provisions of The Hague Convention *vis-à-vis* those agreed upon in Tokyo.¹⁴ The U.S.A, even before becoming a party to the Tokyo Convention, made overtures to the International Civil Aviation Organization (ICAO) demanding a draft protocol proposal the purpose of which would be dealing solely with the crime of hijacking of aircraft to secure some provisions for mandatory extradition of the offender(s). This protocol proposal was meant to counter unforeseen nuances arising from two international conventions over essentially the same

¹¹ The participants include a representative from the former U.S.S.R which was not a party to the Tokyo Convention; see Joyner, N., *Aerial Hijacking as an International Crime*, New York, Oceana Publication, 1970, p. 171[hereinafter Joyner].

¹² *Ibid.*

¹³ Malmborg, K., “Adress by K.E. Malmborg”, *American Journal of International Law*, Vol. 65, No.4, 1971, p.77.

¹⁴ McWhinney, *supra* note 2, p. 76

international problem.¹⁵ However, it was not accepted by the ICAO Legal Committee and Sub-committee since states would become parties to both conventions without inconsistent obligation.¹⁶

The incorporation of mandatory prosecution of hijackers was opposed by the ICAO. But the legal committee of the ICAO was directed to examine both the development of model national legislation and the possibility of an international convention dealing with the prosecution of hijackers. Thus, in 1968 these two considerations were given attention by the ICAO and in February 1969 the ICAO Secretariat recognized that certain beneficial objectives could be realized from both.¹⁷ Accordingly, the Secretariat noted that:

“The above objectives could be attained either by the enactment of uniform national legislation by consenting states or by means of an international instrument. Such instrument might be one which would leave untouched the Tokyo Convention, some provisions of which would remain applicable to certain complementary provisions which, without amending the Tokyo Convention, would fill gaps and would also include other provisions which a proper study of the subject might indicate.”¹⁸

Subsequent meetings of the ICAO sub-committee on February 10-22, 1969 and September 23-October 3, 1969, supported the latter contention i.e. that a multilateral convention would be the more effective means to see that a state in whose territory the hijacked aircraft has landed would either prosecute the hijacker itself or else extradite the same for prosecution to some other state having jurisdiction. The draft convention produced by the sub-committee was adopted with only minor revisions made by the legal committee.¹⁹

All these preparations and contentions came finally into fruition when a special diplomatic conference was convened from 1-16 December 1970 at The Hague to consider the draft proposal. The result of the Conference was the Convention for the “Suppression of Unlawful Seizures of Aircraft”, more commonly known as The Hague Convention.²⁰ Adopted on the 16th of December 1970 (after 74 of the 77 countries represented at the diplomatic

¹⁵ Joyner, *supra* note 11, p. 166.

¹⁶ Malmborg, *supra* note 13, p. 76.

¹⁷ *Ibid.*

¹⁸ McWhinney, *supra* note 2, p. 167.

¹⁹ Malmborg, *supra* note 13, p. 42

²⁰ *Ibid.*

conference voted for it),²¹ The Hague Convention entered into force on 14 October 1971²² as per Article 13(3) of the same convention which stipulates that it is to enter into force thirty days after ratification by ten states signatory to the Convention.

1.2. Purpose and Scope of the Hague Convention

A look at its preamble helps better understand the purpose of The Hague Convention. The Preamble²³ states:

“the states parties to this convention, considering that unlawful acts of seizure or exercise of control of aircraft in flight jeopardize the safety of persons and property, seriously affect the operation of air services, and undermine the confidence of the peoples of the world in the safety of civil aviation; considering that the occurrence of such acts is a matter of grave concern; considering that, for the purpose of deterring such acts, there is an urgent need to provide appropriate measures for punishment of offenders.”

The paramount purpose of The Hague Convention, as discerned from the preamble quoted above, relates to suppression of unlawful aircraft seizure. In other words, The Hague Convention was adopted for the purpose of fighting the expansion of the aerial hijacking problem which evolved from an essentially limited U.S.A-Cuban²⁴ regional problem to a more genuine worldwide problem affecting equally a number of countries with differing political and ideological bases.²⁵

As far as its scope is concerned, the Convention covers all cases of hijacking of aircraft with some exceptions. A closer look at Articles 1 and 3 of the Convention explicates the scope. Article 1 of the Convention provides that:

²¹ *Ibid*

²² *Id*, P. 45

²³ Hague Convention, *supra* note 5.

²⁴ On this point, Edward McWhiney writes: “at the opening of the 1960s, a hijacking of aircraft was transformed from ‘flight to freedom’ of the Cold War Era to rash of armed hijackings in the USA as most of the hijacking incidents occurred between USA and Cuba attributable to ideological differences and confrontations. However, the hijacking incident did not remain humorous incidents or nuisance of civil air transportation in the USA. Rather, it soon diffused around the world. See McWhiney, *supra* note 2, p. 78.

²⁵ *Id*, p. 41

- “Any person who on board an aircraft in flight
- a. Unlawfully, by force or threat thereof, or by any other form of intimidation, seizes or exercises control of that aircraft, or attempts to perform any such act or;
 - b. Is an accomplice of a person who performs or attempts to perform any such act commits an offence (herein after referred to as the offence)”

The Convention is applicable to any person on board an aircraft who commits the afore-mentioned acts. That the Convention is applicable to passengers, crew members and copilot is not arguable. However, whether the convention applies to the pilot is unclear. What if the pilot diverts the aircraft he pilots from the normal route and lands in another place without any good reason? Cannot he be considered a hijacker? It may be argued that since there is no force or threat thereof directed against the pilot, the act of diversion of an aircraft from its normal route to some other place cannot be considered as an act contemplated by Article 1 of the Hague Convention. But what must be taken into consideration are the unlawfulness of the diversion and the motive of the pilot. It is thus submitted that a pilot who unlawfully diverts an aircraft or unlawfully seizes the same is a hijacker for the purpose of the Convention.

Article 1(b) clarifies that attempted offense and complicity are within the purview of the convention. As to the type of aircraft, Article 3(2) of the Convention stipulates the Convention does not apply to aircraft used in military, customs and police services. Therefore, only civil aircraft are covered. With regard to the spatial coverage of the convention, sub-3 of the same article provides that “this Convention shall apply only if the place of take off or the place of actual landing of the aircraft on board which the offence is committed is situated outside the territory of the state of registration of that aircraft.” It is also immaterial whether the aircraft is engaged in an international or domestic flight. Finally, the aircraft concerned must be in flight.²⁶

²⁶ In applying the Convention appropriately, understanding as to when an aircraft is considered in flight is of paramount importance. The Hague Convention, under Article 3(1) provides: “for the purpose of the Convention, an aircraft is considered to be in flight at any time from the moment when all its external doors are closed following embarkation until the moment when such door is opened for disembarkation. In the case of forced landing, the flight shall be deemed to continue until the competent authorities take over the responsibility for the aircraft, for persons and property on board.”

1.3. Some Innovative Approaches of the Hague Convention

The Hague Convention, in trying to rectify the Achilles' heel of its predecessor – the Tokyo Convention - contains some innovative provisions. For instance, Article 1 of The Hague Convention defines the crime of hijacking more explicitly than the Tokyo Convention. Though it does neither explicitly recognize aerial hijacking as an offence against customary international law nor specify that states should have universal jurisdiction over the offender, the Convention makes it evident that there is an international consensus that hijacking is an illegal act subject to prosecution and punishment under municipal laws. It obligates contracting states to take steps to establish their legal jurisdiction over unlawful seizure of aircraft and any other act of violence against passengers or crew committed in connection with hijacking. In this regard, Article 4 (1) of the Convention stipulates that:

- “1. Each contracting state shall take such measures as may be necessary to establish its jurisdiction over the offence and any other act of violence against passengers or crew committed by the alleged offender in connection with the offence, in the following cases:
 - a. When the offence is committed on board an aircraft registered in that state;
 - b. When the aircraft on board which the offence is committed lands in its territory with the alleged offender still on board;
 - c. When the offence is committed on board an aircraft leased without crew to a lessee who has his principal place of business or if the lessee has no such place of business his permanent residence, in that state.”

In addition to obligating the contracting states to assume criminal jurisdiction in the afore-said manner, the Hague Convention further extends state jurisdiction. Under Article 4(2), each contracting state must take such measures as may be necessary to establish its jurisdiction over the offence where, the alleged offender being present in its territory, it does not extradite him pursuant to Article 8 to any of the states mentioned in paragraph 1 of Article 1. Consequently, any party to the convention, in whose territorial jurisdiction an alleged hijacker is found, can assume jurisdiction over him or extradite him according to its municipal laws.

Interestingly, Article 4 (3) of the convention does not exclude any criminal jurisdiction exercised in accordance with national law.²⁷ Moreover, the Hague Convention, unlike the Tokyo Convention which failed to institute an international system to deter hijackers, commits contracting parties to prosecute the offender if he is not extradited. Extradition is not, of course, specifically required, but Article 7²⁸ of the convention renders extradition the only acceptable option to prosecution. Therefore, the procedural provisions of the Hague Convention (regarding the detention of the accused hijackers) are made more effective by the forceful provisions of the above cited article. This is because Article 7 requires prosecution without exception whatsoever. Besides, the obligation to either prosecute or extradite binds contracting states regardless of the location of the offence. Hence, the rewards and opportunities to escape punitive actions would be eliminated for potential hijackers.²⁹

Another important aspect of The Hague Convention involves Article 8 which provides in part as follows:

- “1. The offence shall be deemed to be included as an extraditable offence in any extradition treaty existing between contracting states, contracting states undertake to include the offence as an extraditable offence in every extradition treaty to be concluded between them.
2. If a contracting state which makes extradition conditional on the existence of a treaty receives a request for extradition from another contracting party with which it has no extradition treaty, it may at its option, consider this convention as a legal basis for extradition in respect of the offence.”

The above quoted provision serves as a legal basis for extradition of hijackers among contracting parties (to The Hague Convention) which may

²⁷ As would be discerned from the discussions under part three, grounds of criminal jurisdiction over hijackers, which are recognized under the Hague Convention, are not fully incorporated under the Ethiopian Criminal Code, for instance. However, the Ethiopian Criminal Code has generally incorporated what are called the territorial, protective, active personality, passive personality and universality principles. See Arts. 11-20 of the Criminal Code; see also Philippe Graven, *Introduction to Ethiopian Penal Law (Arts. 1-84 Penal Code)*, Faculty of Law, HSIU, 1965, pp. 34-42[hereinafter Graven].

²⁸ Article 7 of the Hague Convention reads: “The contracting state in the territory of which the alleged offender is found, shall, if it does not extradite him, be obliged, *without exception whatsoever and whether or not the offence was committed in its territory*, to submit the case to its competent authorities for the purpose of prosecution. Those authorities shall take their decisions in the same manner as in the case of any ordinary offence of a serious nature under the law of that state” (emphasis added).

²⁹ Joyner, *supra* note 11, p. 196.

not have entered into extradition treaty of any nature. In addition, contracting states assume international obligation to include the crime of hijacking as an extraditable offence in every extradition treaty to be concluded between them. Moreover, hijacking is mandatorily read into any extradition treaty to be entered between two or more contracting states. Accordingly, hijacking is an extraditable offense should there exist an extradition treaty – which must not necessarily and expressly make hijacking an extraditable offense – between or among parties to the Convention.

By virtue of sub-articles 3 and 4 of the same article, contracting states that do not subject extradition to the existence of a treaty must, subject however to the conditions provided by their law, recognize the offence as an extraditable offence between themselves. It is also provided that the offence be treated, for the purpose of extradition between contracting states, as if it had been committed not only in the place in which it occurred but also in the territories of the states required to establish their jurisdiction in accordance with Article 4(1).

Despite these laudatory facets of Article 8, there is an important omission regarding the two non-extradition exceptions, nationals of the requested state³⁰ and “political offenders”³¹ – both of which usually feature in bilateral treaties. Studies also show that the otherwise detailed and praiseworthy provisions (of the Hague Convention) on extradition of hijacker, this has not been fully materialized. Extradition has been grossly underused in jurisdictional settlements, whereas the legal antithesis – asylum –has been too

³⁰ National constitutions provide that no citizen of a state concerned shall be extradited to a foreign country. For instance, the Basic Law of the Federal Republic of Germany (as amended by the Unification Treaty of 31 August 1990 and Federal Statute of 23 September 1990) in its Article 16(2) provides that “no German may be extradited to a foreign country”. Similarly, Article 50 of the 1955 Revised Constitution of Ethiopia stated that “no Ethiopian subject might be extradited to a foreign country” although he/she might be extradited in accordance with international agreements to which Ethiopia was a party. Also, the 1987 People’s Democratic Republic of Ethiopian Constitution (Article 32(2)) prohibited the extradition of Ethiopian nationals without any exception. In contradistinction to its predecessors, the 1995 FDRE Constitution is silent whether or not Ethiopian nationals may be extradited to foreign countries. Yet, the Criminal Code prohibits extradition of nationals. Article 21(2) states that “no Ethiopian national having that status at the time of the commission of the crime or at the time of the request for his extradition may be handed over to a foreign country though he shall be tried by Ethiopian courts under Ethiopian law.”

³¹ Joyner, *supra* note 11, p. 199.

often the case.³² Therefore, the asylum phenomenon constitutes the most formidable obstacle hindering total prosecution of alleged offenders and thus reduces the international efficacy of the convention to suppress illegal aircraft seizure and attempts thereof.³³

2. Criminal Jurisdiction of Contracting States over Hijackers under the Hague Convention

2.1 Introduction to Criminal Jurisdiction of States under International Law

Though the primary focus in this article is not on criminal jurisdiction of states under international law in its wider sense, a brief reflection on the subject provides a context to the main thesis, i.e., criminal jurisdiction of states over hijackers of aircraft under the Hague Convention.

The term jurisdiction is very technical and susceptible to different meanings in different circumstances.³⁴ For instance, Malcolm N. Shaw expounds that “jurisdiction concerns the power of a state to affect people, property and circumstances and reflects the basic principles of state sovereignty, equality of states and non-interference in domestic affairs.”³⁵ Ian Brownlie posits “jurisdiction refers to particular aspects of the general legal competence of states often referred to as sovereignty.”³⁶ Jurisdiction in international law, according to Bassiouni, refers to “two aspects of the authoritative decision making, the first is rule making and the second is rule enforcing.”³⁷

Within the context of international law, criminal jurisdiction pertains to the jurisdiction of the judiciary of a given state to try cases in which a foreign factor is involved.³⁸ As a rule, international law does not obligate states to assume jurisdiction. More often than not, rules of international law consist of prohibitions. If, for example, a municipal court, not complying with these

³² *Ibid.*

³³ *Id.*, p. 200.

³⁴ Malanczuk, P., *Akehurst's Modern Introduction to International Law*, Routledge, London, 7th Revised edition, New York, 1997, p.109.

³⁵ Shaw, M., *International Law*, Cambridge University Press, Cambridge, 4th edition, 1997, p.452 [hereinafter Shaw].

³⁶ Brownlie, I., *Principles of Public International Law*, Clarendon Press, Oxford, 2nd edition, 1973, P.291 [hereinafter Brownlie].

³⁷ Bassiouni, M., *International Extradition and World Public Order*, Oceana Publication, New York, 1974, p.202 [hereinafter Bassiouni].

³⁸ Shaw, *supra* note 35, p.457.

prohibitions, exercises jurisdiction it may be held liable internationally to the national state of the individual who is adversely affected by the decision of that state, notwithstanding the decision is fair or just.

That said, it must be noted that international law neither forbids nor requires municipal courts to assume jurisdiction; it makes, of course, an offer of jurisdiction which may be rejected by municipal courts whenever they deem the same unnecessary.³⁹ But as discussed later on, this is not the case under international conventions incorporating the principle *aut dedere aut judicare* – *prosecute or extradite*. Therefore, if a country is unwilling to extradite a certain offender, it is under obligation to prosecute him. Again, without prejudice to the above exception, the jurisdiction of municipal courts is determined principally by municipal laws while, in this case, the role of international law is confined to putting few limitations on the discretion of states.⁴⁰

Below, the various principles of criminal jurisdiction of states in international law are explained. There are five theories or principles of criminal jurisdiction recognized by international law. The principles, which do not enjoy the same degree of recognition, includes: the territorial principle, the active personality principle, the passive personality principle, the protective principle and universality principle.⁴¹

1.1.1. The Territorial Principle

The territoriality principle is a manifestation of sovereignty exercisable by a given state within its territory and is the basic foundation for the application of legal rights of a state. The fact that a country should be able to prosecute for offences committed within its territory is concomitant to responsibility for the enforcement of law and the maintenance of good order within that state. In short, this principle of criminal jurisdiction is founded upon the tenets of sovereignty and equality of states. All states thus adhere to this principle.⁴² It must however be borne in mind that although criminal jurisdiction is principally and predominately territorial, territorial jurisdiction is not exclusive. States are at liberty to consent to the limitation of their

³⁹ Malanczuk, *supra* note 34,110.

⁴⁰ *Ibid.*

⁴¹ Bassiouni, *supra* note 37, pp. 204-205.

⁴² *Id.*, p.206

territorial jurisdiction and therefore they may enter into arrangements whereby jurisdiction is exercised within or outside the national territory.⁴³

2.1.2. The Active Personality Principle

It is widely acknowledged that nationals of a state are entitled to a state's protection even when they are outside the territorial limits of a state. A national, on his part, has a corresponding obligation to obey those national laws which are recognized as having an extra-territorial effect.⁴⁴ A state may enforce its penal laws against its nationals even when the conduct charged as criminal was committed in a foreign jurisdiction. And, international law does not prohibit such exercise of jurisdiction.⁴⁵

Countries which belong to the continental legal system are examples of jurisdictions where the active personality principle applies. A case entertained by the Swedish Supreme Court illustrates the application of the principle. The accused, a Swedish national, was involved in a road traffic accident in the Federal Republic of Germany. One of his defenses, when prosecuted in Sweden, was that the traffic code had not been intended to apply outside Swedish territory. The Supreme Court held that every crime committed by a Swedish citizen may be punished even if committed abroad.⁴⁶

In contradistinction to the civil law countries, common law countries exercise criminal jurisdiction over their nationals abroad only when the crimes committed are very serious as defined by their domestic laws. The English courts, for instance, generally limit such claims to treason, murder and bigamy.⁴⁷

2.1.3. The Passive Personality Principle

This principle is considered to be the complement of the active personality principle. While the active personality principle ensures nationals of a state who have committed offences abroad will be brought to justice, the passive personality principle ensures that a state's interest in the welfare of its nationals abroad will be protected. According to M. Cherif Bassiouni, this principle has been accepted since the ultimate welfare of a state itself depends

⁴³ Shaw, *supra* note 35, p. 462.

⁴⁴ Bassiouni, *supra* note 37, p.251.

⁴⁵ *Id.*, p.252.

⁴⁶ Gilbert, G., *Aspects of Extradition Law*, Martinus Nijhoff Publisher, Dordrecht, 1991, p.43.

⁴⁷ Shaw, *supra* note 35, p.466.

upon the welfare of its nationals, it can be asserted that a state has a legitimate interest in punishing those who have been guilty of committing crimes against its nationals while aboard.⁴⁸

When Adolf Eichmann, a Nazi war criminal, was prosecuted by Israel under Israeli law, the district court of Jerusalem asserted jurisdiction based on this principle. In justifying its assumption of jurisdiction over Eichmann, who committed crimes against the Jewish people, the court stated that given the link between the Jewish people and Israel was evident, Eichmann's crime against these people gave the court jurisdiction to try the case.⁴⁹ Although the overall opinion has been that the passive personality principle is dubious in its nature, numerous states enacted statutes incorporating it.⁵⁰

2.1.4. The Protective Principle

This principle posits that states may exercise jurisdiction over aliens who have committed an act out of the territorial jurisdiction of a given state, where the act is detrimental to the security of the state concerned. In the words of Bassiouni, the principle is:

“in effect, a long arm theory, which allows a state to overreach beyond its physical boundaries to protect its interests from harmful effects, engaged in aboard. The protective theory allows a state to assert jurisdiction over an alien, whether an individual or juridical entity, acting outside the state's territorial boundary but in a manner which threatens significant interests of the state.”⁵¹

Although it is a well entrenched principle, its practical extension and its scope are not clear enough.⁵²

2.1.5. The Universality Principle

All the principles discussed so far are applicable to a given situation only where a link between a state claiming jurisdiction over the offences and

⁴⁸ Bassiouni, *supra* note 37, p.255.

⁴⁹ Gilbert, *supra* note 46, p.45.

⁵⁰ Shaw, *supra* note 35, p.466.

⁵¹ Bassiouni, *supra* note 37, p.259. Bassiouni has made it clear that this principle is applicable when an individual or a juridical person jeopardizes the significant interests of a state abroad. However the relevant issue is as to what constitutes the significant interests of a state concerned. How do we define the scope of application of the significant interest of the state?

⁵² Shaw, *supra* note 35, pp.468-469.

the offense itself, the offender or the victim of the offence exists. In each of these cases, a state justifies its assumption of criminal jurisdiction by alleging, for instance, that a given conduct has affected its or the interests of its national or its national has affected the interests of other individuals outside the state in some way.

The universality principle, however, rests on a different rationale. Owing to their nature, some offences affect the interests of all states irrespective of the locus of the crime and against which state they are committed. Moreover, offences may be committed in an area which is not under the exclusive jurisdiction of a given state such as on the high seas, the air space or the outer space. Such crimes are crimes against mankind and are called *delictus ius gentium*.⁵³ Hence, any state may, if it captures the offender, prosecute and punish the offender on behalf of the international community. In effect, the universality principle of criminal jurisdiction allows all states of the globe to protect the universal values and interest of mankind.⁵⁴ The universal jurisdiction is established by customary international law and by conventions.⁵⁵

2.2. Criminal Jurisdiction of States under the Hague Convention

2.2.1. General Remarks

As seen earlier,⁵⁶ Article 4 of The Hague Convention governs the assumption of jurisdiction over the crime of hijacking. Instead of declaring the competence of the states enumerated therein over the offence of hijacking, the article merely states that each contracting state *shall take such measures as may be necessary to establish its jurisdiction*. Therefore, it may be asked: does the wording of the provision commits contracting states to only take certain measures to establish their jurisdiction, enacting legislation without exercising jurisdiction? Put in other words, does the obligation under Article 4 include

⁵³ *Id.*, pp. 262-263. Generally, these crimes are called international crimes. According to Shaw, piracy and war crimes are typical examples of international crimes in which case the offenders are to be arrested and punished by any state in the world. According to this author, some conventions establish what might be termed as quasi-universal jurisdiction such as the crime of hijacking of aircraft.

⁵⁴ Gilbert, *supra* note 46, p.46.

⁵⁵ *Ibid.*

⁵⁶ See the discussion under 1.3 above.

both the establishment of the basis for jurisdiction and the exercise of the same?

The jurisdiction of a state is its competence under international law to prosecute and punish for crime which has three aspects; executive jurisdiction, legislative jurisdiction and judicial jurisdiction.⁵⁷ It may be understood that taking measures necessary to establish jurisdiction of a state, in the sense of enacting legislation over certain offences, is one aspect of the notion of jurisdiction under international law. Yet, if the provisions of Article 4 are to be construed as simply obligating contracting states to take certain measures pertaining to jurisdiction without exercising it, then a contracting state enacting legislation making hijacking a crime, but refusing to enforce its legislation, would be fulfilling its contractual obligations under the convention. This proposition appears valid since the wording of the provision requires no more than taking measures by a contracting state to establish its jurisdiction over the crime of hijacking.

On the other hand, it can be argued that, although its wording is not absolutely clear, Article 4(1) of the Convention intends to confer complete jurisdiction to states – that is to say, each contracting party state shall take measures necessary to establish its legislative, executive and judicial jurisdiction. This construction can be substantiated by Article 2 of the Convention under which contracting states expressly undertake to exercise their legislative jurisdiction in a certain manner i.e., making hijacking punishable by severe penalties. Furthermore, as per Article 7 of the Convention, a contracting state in whose territory a hijacker is found is obliged to submit his case to its competent authorities for the purpose of prosecution. Thus, a contracting state is duty bound to bring the executive and judicial aspects of jurisdiction into operation.⁵⁸ It should also be borne in mind that the preamble to the convention speaks of the *urgent need to provide appropriate measures for the punishment of offenders*.⁵⁹ Therefore, it is safe

⁵⁷Shubber, S., ‘Aircraft Hijacking under the Hague Convention: A New Regime?’ *International and Comparative Law Quarterly*, Vol. 22, 1973, p.706. In addition, see Malanczuk *supra* note 34, p.109; Shaw, *supra* note 35, P. 452.

⁵⁸Of course, the criminal justice system of countries in the world brings the three branches of the government into play. The law-maker prescribes rules and procedures regarding crimes. The executive branch arrests, investigates and prosecutes offenders using the rules and procedures set forth by the law-maker. The judiciary tries and punishes the offenders using the laws passed by the law maker.

⁵⁹See the preamble of the Hague Convention, *supra* note 5.

to conclude that contracting states undertook under Article 4 not only to take measures to establish their jurisdiction, but to exercise it under the regime of the Convention as well.⁶⁰ Hence, the argument that the obligation of a contracting state ends once it has taken measures to establish its jurisdiction without exercising it must be refuted.

That said, criminal jurisdiction under the Convention may be assumed based on the grounds discussed herein below.

2.2.2. The State of Registration of the Aircraft⁶¹

By virtue of Article 4(1) of the Hague Convention, the state of registration of the aircraft has the power to exercise jurisdiction over the crime of hijacking committed on board aircraft of its nationality wherever it is committed. This power extends to enacting legislation against hijacking, arresting hijackers and putting them on trial if they hijack aircraft registered in that state. It can also take certain measures to prevent a hijacked aircraft from taking off by blocking the runway or disabling the aircraft itself. It can also send its fighter aircraft to intercept a hijacked aircraft and force it to land.

The Hague Convention also deals with aircrafts which are subject to joint or international registration when such aircraft are operated by joint air transport operating organizations or internationally operating agencies. In these cases, the contracting states concerned shall designate for each aircraft the state (among them) that has the attributes of the state of registration and hence that exercises jurisdiction for the purpose of the Convention.⁶² This is a useful device for avoiding any vacuum in the field of jurisdiction.

2.2.3. The State Where the Aircraft Lands with the Hijacker

A contracting state, on whose territory a hijacked aircraft lands with hijacker still on board, is competent to exercise criminal jurisdiction over the

⁶⁰ Shubber, *supra* note 57, p. 707.

⁶¹ This reflects the active personality principle (discussed in 2.1.2) which is a declaratory of customary international law. Under customary international law, states can claim jurisdiction vis-à-vis ships, aircraft and persons bearing their nationality. Ethiopian laws incorporate this principle; see, e.g., Articles 14, 15(1) and 18(1), Criminal Code and Article 104, Criminal Procedure Code of the Empire of Ethiopia, 1961, *Negarit Gazeta*, Proclamation No. 185/1961, Extraordinary Issue No. 1 of 1961 [hereinafter Criminal Procedure Code] .

⁶² Article 5, Hague Convention, *supra* note 5.

offender.⁶³ This contracting state has the power to arrest, try and imprison the hijacker irrespective of whether or not the hijacking occurred in its airspace. Needless to say, there is no need of granting such right to the landing state, if the offence is committed in its airspace, because, the state has well-founded criminal jurisdiction under the territorial principle.⁶⁴ But it is interesting to note that the principle under consideration extends the competence of states over hijacking occurring without the territorial limits of such a state and without any apparent link between the offence and the state, except for the landing in its territory.

2.2.4. The State Where the Charterer of Aircraft has his Principal Place of Business or Permanent Residence

The Convention effectively regulates the question of jurisdiction over the hijacking of aircraft registered in one country and leased to another country. Article 4 paragraph 1(c) of the Convention empowers the state where a charterer (lessee) of an aircraft has his principal business or his permanent residence to exercise jurisdiction over a hijacker of such aircraft. The provision puts such state on the same footing as the state of registration of the aircraft or the state of landing.

Nonetheless, the provision under consideration seems to apply only to physical persons who have leased an aircraft from the state of registration – it states “*his principal place of business or permanent residence.*” In the opinion of this author, limiting the scope of application of this provision only to lessees/charterers of physical persons does not seem to be acceptable. This is because a juridical person can lease an aircraft without crew. Incidentally, the state of registration or incorporation of the juridical person may be taken as the permanent residence of the juridical person while the principal place of business is the place where such person is carrying on major business activities.

From the foregoing, it is clear that the state where the charterer of an aircraft has his principal place of business or his permanent residence has the power, for example, to arrest, investigate and try a hijacker or a person who attempts to hijack that aircraft, *whether* the offence of attempt is committed in the airspace of that state or outside it. In case where the crime is committed or

⁶³ *Ibid*, Article 4(1)(b).

⁶⁴ Amato, A., *International Law Studies: Collected Papers*, Kluwer Law International, The Hague, 1997, Vol. II, pp.187.

attempted in the air space of that state, the right to exercise jurisdiction could be based on the territorial principle. On the contrary, if however the crime is committed or attempted in the air space of another state, then a new situation is created by the convention, as formerly no such basis of exercise of jurisdiction can be said to exist.⁶⁵

2.2.5. The State Where the Hijacker is found

A state party to the Convention in whose territory a hijacker is found has the power and responsibility to exercise criminal jurisdiction over him by virtue of Article 4(2) of the Convention. The principle laid down in this provision may be regarded as novel in the sphere of extra-territorial jurisdiction under international law⁶⁶ as there seems to be no connection between the offence of hijacking, the offender, the hijacked aircraft and the state entitled to exercise jurisdiction. The only situation that serves as the basis of criminal jurisdiction of such state is the presence of the offender in the territory of that state. The offence can be committed by a foreign national, against a foreign aircraft, in the airspace of a foreign state or over the high seas, and yet the mere presence of the offender in a contracting state after the commission of the crime of hijacking entitles the latter to exercise jurisdiction over him. One may however argue that the exercise of jurisdiction would be based on the nationality principle for Article 4(2) applies to nationals of the state referred therein, where they return to their national states after hijacking foreign aircraft in foreign territories.⁶⁷

The rationale behind according criminal jurisdiction to the state where the hijacker is found is meant to close possible gaps in jurisdiction through which hijackers may escape punishment since it gives as many parties to the convention as possible the power to exercise jurisdiction over the offence of hijacking with the ultimate aim of deterring hijackers.⁶⁸ This reinforces the purpose of the convention as expressed in its preamble: *the state parties to this convention, for the purpose of deterring unlawful act of seizure or*

⁶⁵ See Shubber, *supra* note 57, p.750

⁶⁶ *Ibid.*

⁶⁷ This is also in line with the active personality principle discussed above, a principle which posits that nationals have the duty to obey national laws which are recognized as having extra-territorial effect.

⁶⁸ See Shubber, *supra* note 57, p. 713.

*exercise of control of aircraft in flight, [must] provide appropriate measures for punishment of offenders.*⁶⁹

2.3. Conflict of Jurisdiction among Contracting States over Hijackers

From the foregoing, it must be clear that the state of registration, the state of landing of the aircraft with the hijacker, the state where the hijacker is found and the state of the operator of the aircraft when it is on lease have the power to exercise criminal jurisdiction over a hijacker of air craft. The problem, however, is numerous states may assume jurisdiction simultaneously. Suppose that a commercial aircraft registered in State A is leased to an airline operating in State B. The same aircraft is hijacked to State C with the hijacker still on board. Assuming that all the three states are parties to the Hague Convention, all of them have the power to assume jurisdiction over the hijacker. Even more, any contracting state where the hijacker is found has jurisdiction.

The Convention does not contain rules on conflict of jurisdiction. So, how can such conflict of jurisdiction be resolved in case all or some of the countries enumerated above claim jurisdiction and fail to reach agreement by themselves? Yoram Dinstein, Professor of International Law from Tel-Aviv University, argues:

“Not all [contracting] states have equal rights and duties [with respect to jurisdiction]. There are three states spelled out in the first section of Art.4, which enjoy a favored status inasmuch as they can exercise their rights unconditionally. The three preferred states are: the state of registration, the state of the operator of the aircraft when it is under lease and the state where the aircraft lands with the hijacker.”⁷⁰

As to the “first preferred state”, the above author posits that in so far as the crime of hijacking is concerned, in many instances and in many ways, the offence will cause the gravest harm to the state of registration. With regard to the “second preferred state”, this state, he maintains, is preferred to be the second, depending on quasi-territorial power. As regards the “third preferred state”, he argues that there is no doubt that such a state should have jurisdiction if the offender is going to end up there and will not be extradited to the state of registration or to that of the operator.⁷¹

⁶⁹ See the preamble of the Hague Convention, *supra* note 5.

⁷⁰ Dinstein, Y., ‘Criminal Jurisdiction over Aircraft Hijacking’, *Israel Law Review*, 1972, Vol. 10, No.2, p.201.

⁷¹ *Ibid.*

However, there are counter argument to Dinstein's proposition. It can be safely maintained that the structure set up under Article 4 of the Convention clearly shows that the state of landing is on equal footing with the state of registration and the state of the operator. In this regard, Feller, Professor of Criminal Law from Hebrew University of Jerusalem, posits:

“A pre-determined scale of priorities with regard to jurisdiction means that the jurisdiction of the less preferred states is excluded by the jurisdiction of the state to which the higher preference has been granted according to that scale. While the absence of universal jurisdiction in relation to a given offence means that, if a particular state has no jurisdiction either on the basis of territoriality, protective principle, or nationality whether active or passive, it will not be authorized to put the offender on trial even if he is found within the territorial boundaries of the state.”⁷²

In view of that, an international agreement on the above basis would involve a duty, on the part of each contracting state to extradite an offender, who is present in its territory to the state to which priority is given. In the absence of jurisdiction according to one of the above principles and if an application for extradition made by a state entitled to jurisdiction in accordance with the scale of preference, the offender would not be brought to justice in the state in which he is found. But this does not seem to be the spirit and the purpose of the convention as a contracting state in which the offender is found is entitled to exercise jurisdiction unless it extradites him to some other state claiming jurisdiction.⁷³

Therefore, according to the stance taken by Feller, it is not possible, in the absence of any specific provision in this regard, to deduce from the order in which the two sub-articles of article 4 of the Convention appear that there is order of preference among states referred to therein.⁷⁴ The writer of this article is also of the opinion that the argument of Dinstein is unconvincing.

To sum up, The Hague Convention which establishes wide range of jurisdictions leaves the question of conflict of criminal jurisdiction among contracting states unanswered. Given however that its ultimate purpose is punishing hijackers and thereby deterring the crime of hijacking, hijackers must not be let escape punishment whenever there is conflict of jurisdiction

⁷² Feller, S., ‘Comment on Criminal Jurisdiction over Aircraft Hijacking’, *Israel Law Review*, Vol.19, No.2, 1972, p.307.

⁷³ *Ibid.*

⁷⁴ *Ibid.*

among contracting states. In the opinion of this writer, the most acceptable recourse whenever contracting states do not reach agreement over conflict of criminal jurisdiction among them would be submitting their dispute to arbitration as per Article 12 of the Convention.⁷⁵

2.4. The Prosecute-or-Extradite Obligation of Contracting States: *Aut Dedere Aut Judicare* Principle

The expressions prosecute-or- extradite or *aut dedere aut judicare* is commonly used to refer to the alternative obligation to prosecute or extradite offenders. This principle is contained in a number of multilateral treaties that aim at securing international cooperation in the suppression of certain kinds of criminal conduct. Though the obligation is phrased in different ways in different treaties, it basically requires a state (a party to the multi-lateral convention) which has hold of someone who has committed a crime of international concern, either to extradite him or else to take steps to have him prosecuted before its own courts.⁷⁶ This formula is used under the Hague Convention which requires the state in which an alleged offender is found either to extradite him to a state which has jurisdiction or alternatively, if it does not extradite him, to submit the case to its competent authorities for the purpose of persecution. Below, these alternative obligations of contracting parties under the Hague Convention are discussed in turn.

2.4.1. The Obligation to Prosecute Hijackers

Incorporated in Article 7, the obligation to prosecute hijackers is taken as the strength of the Hague Convention. This obligation is a mandatory obligation except that it can, alternatively, be compensated by extradition obligation. Article 7 does not subordinate the duty to prosecute to parties' existing laws regarding extra-territorial jurisdiction.

⁷⁵ Art. 12(1) of the Hague Convention provides that “any dispute between two or more contracting states concerning the interpretation or application of this Convention which cannot be settled through negotiation, shall, at the request of one of them, be submitted to arbitration. If within six months from the date of request for arbitration the parties are unable to agree on the organization of the arbitration, any of the parties may refer the dispute to the International Court of Justice by request in conformity with the statute of the Court.”

⁷⁶ Bassiouni M. & Wise, E., *Aut Dedere Aut Judicare: the Duty to Extradite or Prosecute in International law*, Kluwer Law International, the Hague, 1995, p.3.

The obligation to prosecute is not an absolute obligation; neither is extradition. These are only alternative obligations. If a country is willing and able to prosecute a hijacker, it is not obliged to extradite. Bassiouni and Wise notes:

“The wording of Art.7 was a compromise worked out at last moment during the negotiation which produced the Hague Convention. Those who drafted the convention sought, as far as possible, to deny a haven to aircraft hijackers. One way to do so might have been to impose an absolute obligation to extradite offenders to the state of registry of the aircraft. This was proposed but rejected, since it would potentially require extradition of nationals and also foreclose the possibility of political asylum in cases in which it might be thought appropriate. *Efforts, therefore, centered on imposing an obligation to prosecute when extradition is refused.*”⁷⁷ (Emphasis added)

Furthermore, it must be borne in mind that Art.7 of the Hague Convention, by introducing the prosecute-or-extradite obligation, is binding on all contracting parties regardless of the location of the offence. This means that this provision is aimed at denying sanctuary to alleged offenders.⁷⁸ But, whether states are duty-bound to prosecute any hijacker irrespective of the motive of the hijacking appears unclear. In this regard, it is maintained that:

“the Hague Convention embodies a mature legal evolution of international efforts to deter unlawful aircraft seizure. Even so, it is seriously incapacitated by the universally sanctioned municipal right of providing safe haven for offenders under select circumstances.”⁷⁹

As noted above, if contracting states are not willing to extradite hijackers to other states, they have to prosecute the offenders “without exception whatsoever”. Moreover, when contracting states opt for prosecution of a hijacker, they are obligated to make hijacking punishable by severe penalties.⁸⁰ Yet, what is meant by “severe” penalties is not defined anywhere in the Convention and thus its determination is totally left to the discretion of each contracting state.⁸¹ Incidentally, states are not prohibited to give asylum to hijackers regardless of the motive of hijacking.

⁷⁷ *Id.*, p.16

⁷⁸ Joyner, *supra* note 11, p.196.

⁷⁹ *Id.*, p.200.

⁸⁰ Hague Convention, *supra* note 5, Article 2.

⁸¹ Lissitzn, O., ‘International Control of Aerial Hijacking: The Role of Values and Interests,’ *American Journal of International Law*, Vol.65, No.4, 1971, p.83. That international

2.4.2. Extradition of Hijackers

Extradition is a formal process through which a person is surrendered by one state to another by virtue of a treaty, reciprocity or comity as between the respective states.⁸² According to O'Connell, a renowned publicist on international law, extradition pertains to "the surrender by one nation to another of an individual accused or convicted of an offense, outside of its territory, and within the territorial jurisdiction of the other, which, being competent to try and punish him, demands the surrender."⁸³ The process of extradition is not a recent phenomenon. It is a legal process which dates back to the earliest civilization. Extradition, throughout history, has remained a system consisting of several processes where sovereign surrenders, to another, a person sought after as an accused criminal or a fugitive offender.⁸⁴

Extradition, whether executed by treaty, reciprocity or comity, is premised on the assumption that the interest of a given state has been affected by the conduct of a given offender who is not within the state's jurisdiction but within the jurisdiction of another state. This assumption presupposes that the interest of the requesting state has been affected in such a manner that it seeks to subject the offender in question to its jurisdictional authority and the state wherein the individual sought after is located has no greater interest in that person. Consequently, the requested state will not tend to shield that person from the jurisdictional control of the requesting state by denying extradition request.⁸⁵ The first substantive aspect of extradition is, therefore, the requesting state's jurisdiction over the subject matter for which extradition of the alleged offender is sought. Unless this is met by the requesting state, the state of refuge which has jurisdictional control over the offender may not entertain an extradition request.

standard of severity is not well defined can easily be observed from the difference, from jurisdiction to jurisdiction, in the punishment for the offense of hijacking. For instance, the 1970 Code Penal of France makes hijacking of aircraft punishable with a term of 5 years to 10 years imprisonment; and if such act results in injury or death, the punishment is from 10 to 20 years of life imprisonment; the 1973 former U.S.S.R Law on hijacking provided a punishment of 3 to 10 years. Article 507(1) of the FDRE Criminal Code provides that hijacking is punishable with rigorous imprisonment from 15 to 25 years.

⁸² Bassiouni, *supra* note 37, pp. 200.

⁸³ O'Connell, D., *International Law*, 2nd ed., Vol. II, Stevens & Sons, London, 1970, p.720.

⁸⁴ Bassiouni, *supra* note 37, pp. 200.

⁸⁵ *Ibid*, p.202.

Coming to extradition of hijackers under the Hague Convention, if a country does not prosecute a hijacker, it is under obligation to extradite him to another state which claims jurisdiction over the hijacker. Article 8, which regulates extradition of hijackers, may be considered as important contributions in the fight against hijacking of aircraft. Prior to the coming of the Hague Convention, the lack of extradition treaties between states where the hijackers take refuge and the states requesting their extradition was used as a basis for refusal to extradite hijackers.⁸⁶ The Convention however declares the offence of hijacking as an *extraditable offence* and states party to the convention undertook to treat it as an *ordinary offence of a serious nature* for the purpose of extradition. These features of the convention are new additions to the principles of jurisdiction which already existed under customary international law or treaties.

Under Article 8(1) of the Convention, contracting parties undertake to consider hijacking of aircraft as an offence the perpetrator of which can be extradited. Moreover, it is agreed that this concept of extraditability is read into existing extradition treaties as well as those to be concluded in the future. With regard to the former, states parties to the convention are expressly committed to include hijacking as an extraditable offence in existing treaties. In effect, this means that existing extradition treaties between contracting parties have been automatically amended by the provision concerning the amendment of existing extradition treaties between contracting states.⁸⁷ Similarly, where two states parties to the convention conclude an extradition treaty between them without the later containing any provision declaring hijacking of aircraft an extraditable offence, this notion of extraditability will be read into it.

If a contracting state, which makes extradition conditional on the existence of a treaty, receives a request for extradition from another contracting state with which it has not extradition treaty, it may at its option consider this convention as the legal basis for extradition in respect of the offence. By virtue of Article 8(2), a contracting party, which requires the existence of an extradition treaty between itself and the requesting state, can consider the Hague Convention as a treaty for purpose of extraditing hijackers. Furthermore, under Article 8(3) contracting states which do not make extradition conditional on the existence of a treaty must recognize the

⁸⁶ Shubber, *supra* note 57, p. 725.

⁸⁷ Gilbert, *supra* note 46, P. 43.

offence as an extraditable offence between themselves subject to the conditions provided by the law of the requested state. This tantamount to creating a multilateral (international instrument) for the extradition of hijackers of aircraft among the parties to The Hague Convention with the reservation that the conditions laid down by national laws should be complied with.⁸⁸

Finally, Article 8(4) of the Hague Convention sets forth that the offence of hijacking shall be treated, for the purpose of extradition between contracting states, as if it had been committed not only in the place in which it occurred but also in the territories of the states required to establish their jurisdiction in accordance with Article 4(1).

2.4.3. Questions Concomitant to the Prosecute-or-Extradite Obligation

Now, it is clear that the “prosecute-or-extradite” obligation is an alternative obligation. Despite that, a close scrutiny of Article 8 leaves the following conspicuous questions arising in relation to these alternative obligations:

1. What is the order, if any, according to which extradition of hijackers may be carried out?
2. Is it possible to extradite national hijackers of the requested state under the Convention?
3. If a country does not accept extradition request, is it always under obligation to prosecute the hijacker irrespective of the motive of the hijacking?

As regards the first question, it is already seen that the Hague Convention fails to design any viable mechanism which can be used to resolve disputes regarding conflict of criminal jurisdiction between or among contracting states. The absence of such mechanisms may also lead to conflict between or among contracting states in the case of extradition too. This is because more than one state having criminal jurisdiction may request the extradition of a hijacker and the requested state may – if it does not have the desire to prosecute the alleged offender – be in trouble to choose the appropriate state. There is no clear cut solution to avoid the conflict. Yet, it may be that either the requested state may have its own standards to which requesting state must adhere to to surrender the hijacker. In this regard, the requested state may take into account such factors as availability of evidence,

⁸⁸ Shubber, *supra* note 57, p.725.

competence of the forum of the requesting state, presence of adequate and effective mechanisms to ensure fair trial of the offender and the country whose interest is affected most by the perpetrator.

Concerning the second question, civil law countries do not usually extradite their own nationals while common law countries have not adopted such a restrictive approach, although, in certain specific cases, a discretionary clause to that end is included in extradition arrangements.⁸⁹ The rationale for refusal of extradition of nationals rests on the assumption that national of the requested state is likely to receive ill treatment or an unfair trial in the hands of the requesting state.⁹⁰ Though exemptions of nationals from extradition are usually embodied in extradition treaties, there is no indication in the Hague Convention so far as the extradition of nationals of the requested state is concerned. The only mention of the offender occurs in Article 7, without any qualification. Therefore, it may be argued that a state party to the convention which receives extradition request of its own national may grant extradition provided that it is compatible to its national law. This means that if the extradition of nationals is not compatible to its national law, it cannot be obliged to extradite its national given the optional nature of extradition under the Convention.

The third question has a lot to do with the political offence exception to extradition and prosecution which has remained a standard clause in almost all extradition treaties and some municipal laws. Although widely recognized, the term political offence is not defined in treaties, domestic legislation, extradition laws or uniform state practices. On account of this, judicial interpretations have been the principal sources for its significance and application.⁹¹ In one case, it was maintained that:

“for an offence to be considered as political offence (for the purpose of extradition proceedings) it must at least be shown that the act is done in furtherance of, (done with the intention of assistance, as a sort of overt act in the course of acting in a political manner), political rising, or dispute between two parties in the state as to which is to have the government in its hands.”⁹²

⁸⁹ Gilbert, *supra* note 46, p.95.

⁹⁰ For more, see *supra* note 30 and the accompanying texts.

⁹¹ Bassiouni, *supra* note 37, p. 371.

⁹² Green, L., ‘Extradition versus Asylum for Aerial Hijackers,’ *Israel Law Review*, 1975, Vol. 10, No.2, p.217.

Another court decision expounded that:

“for an offence to constitute an offence of a political character there must be two or more parties in the state, each seeking to impose the government of their own choice on the other, and that, if the offence is committed by one side or other in pursuance of that object, it is a political offence, otherwise not”⁹³

The above judicial explanations, Green asserts, reflect the 19th century view of democracy with political systems organized on the basis of reputable parties, with one in power and another seeking to overthrow it and take over the reins of government for itself. But it must not be thought, the same author argues, that this view of political life is no longer acceptable by judicial tribunals even at present.⁹⁴

One more point, the Chilean Supreme Court in 1957 held that a political offence, according to generally accepted principle, is one involving any attempt against the political organization of a state or the political rights of citizens, that is, an attack upon the constitutional order of the country concerned.⁹⁵

Though the term eludes precise definition, the above explanation is believed to elucidate as to what constitutes a political offence. Finally, it must be answered why political offence is usually excluded from extradition or prosecution. The reason for the political offence exception rests in part upon the asylum states' human treatment and belief in human rights and personal and political freedom. Put in other words, extradition is denied since political crimes affect the sensitive interest of a given government, and therefore inspire a passionately hostile atmosphere which jeopardizes an ordinary and fair trial in the country to which the offender is extradited.⁹⁶

⁹³ *Ibid.*

⁹⁴ *Id.*, p.218.

⁹⁵ *Ibid.*

⁹⁶ See generally, Bassiouni, *supra* note 37.

3. An Overview of Criminal Jurisdiction over Hijackers in Ethiopia

3.1. Introductory Remarks

Ethiopia has been a federal country *de jure* since 1994.⁹⁷ Accordingly, there is division of power between the Federal Government and the Federating Units.⁹⁸ The division of power pertains to legislative, executive and judicial power.⁹⁹ At the federal level, the House of Peoples' Representatives, the Prime Minister and his Council of Ministers, and the Federal courts exercise legislative, executive and judicial authority, respectively.¹⁰⁰ The regional states exercise their executive, legislative, and judicial authority through the Regional Administration, State Council, and the Regional Judiciary.¹⁰¹

The federal legislative organ is empowered to enact laws in matters assigned to the Federal Government by the Constitution.¹⁰² And, the power to enact criminal code is vested in the Federal Parliament although states may enact penal laws on matters that are not specifically covered by federal penal legislation.¹⁰³ For the first time in Ethiopia's legal history, hijacking of aircraft is expressly criminalized under a 1996 federal law.¹⁰⁴ The law, meant to punish aircraft seizures and sabotages against the safety of aviation, was apparently a restatement of The 1970 Hague Convention and the 1971

⁹⁷ Although historic Ethiopia was a *de facto* federal state, it has become a federal state *de jure* as of 1994 when the current constitution was adopted. The constitution establishes a Federal and Democratic state structure. And, the Ethiopian is formally known as the Federal Democratic Republic of Ethiopia; see Article 1, FDRE Constitution, *supra* note 7, also, Assefa Fisseha, *Federalism and the Accommodation of Diversity*, Wolf Legal Publisher, Nijmegen, 2005 [hereinafter Assefa], pp.11-22; Solomon Nigussie, 'Ethiopia's Fiscal Federalism: A Constitutional Overview', in Assefa Fiseha & Getachew Assefa (eds.), *Institutionalizing Constitutionalism and Rule of Law: Towards a Constitutional Practice in Ethiopia*, (Ethiopian Constitutional Law Series, Vol.3), Faculty of Law, Addis Ababa University, 2009, p.84.

⁹⁸ See Assefa, *supra* note 97, pp.382-422.

⁹⁹ Article 50, FDRE Constitution.

¹⁰⁰ Assefa, *supra* note 97, pp.382-422.

¹⁰¹ *Ibid.*

¹⁰² Article 55(1), FDRE Constitution.

¹⁰³ *Id.*

¹⁰⁴ Offences against Civil Aviation Proclamation, 1996, *Federal Negarit Gazeta*, Proclamation No.31/1996, 2nd Year, No.19.

Montreal Convention. In force until replaced¹⁰⁵ by the 2005 Criminal Code, Offenses against the Civil Aviation Proclamation filled the void left by the 1957 Penal Code.¹⁰⁶ Because the crime of hijacking remains to be a serious concern for the Federal Government of Ethiopia, the new Criminal Code gives appropriate emphasis to the offense of hijacking. The Preamble states that the gaps in the 1957 Penal Code in properly dealing with such crimes as the hijacking of aircraft was one of the reasons in adopting the new Criminal Code.¹⁰⁷ Under Article 507 of the Criminal Code, aircraft hijacking is an offense punishable with rigorous imprisonment from fifteen to twenty five years.

3.2. A Cursory Look at the Principles of Criminal Jurisdiction in Ethiopia

The Criminal Code incorporates the five principles of criminal jurisdiction, i.e., the territoriality principle, the protective principle, the active personality principle, the passive personality principle and the universality principle.¹⁰⁸ These principles of criminal jurisdiction of courts are classified into two major categories: principal criminal jurisdictions and subsidiary jurisdictions.¹⁰⁹ The first three principles relate to the principal jurisdictions of the Ethiopian courts. And, the last two, i.e., passive personality and universality principles concern the subsidiary jurisdiction of our courts.¹¹⁰

¹⁰⁵ In fact, the major aspects of the 1996 Offences against Civil Aviation Proclamation are retained in Articles 505-513, Criminal Code. Also, the Criminal Code does not repeal the proclamation either expressly or tacitly. It thus seems safe to maintain that the proclamation is only made redundant.

¹⁰⁶ The Penal Code of the Empire of Ethiopia, 1957, *Negarit Gazeta*, Proclamation No.158/1957, Extraordinary Issue No.1 of 1957

¹⁰⁷ See Preface, Criminal Code, *supra* note. 7.

¹⁰⁸ Previously, these principles were incorporated in the 1957 Penal Code; see Articles 11-22 of the repealed Penal Code, also Graven, *supra* note 27, pp.34-56. As far as the principles of criminal jurisdictions are concerned, the new Criminal Code has not made any meaningful departures from the 1957 Penal Code. Accordingly, the analysis made by Graven on Articles 11-22 of the 1957 Penal Code is apparently valid as regards Articles 11-22 of the current Criminal Code.

¹⁰⁹ See Graven; *supra* note 27, p. 34.

¹¹⁰ Sub-section I of section II, Chapter 2, Title I, Book 1 of the general part of the Criminal Code deals with principal principles of criminal jurisdiction. Sub-section II of the same section deals with subsidiary principles of criminal jurisdiction of Ethiopian courts.

Ethiopian courts assume principal jurisdiction having regard to “the place of commission of the offence, or the nature of the offence or the special status of the offender.”¹¹¹ Whereas, subsidiary jurisdiction is exercised “only where either the crime or the criminal is in some way connected with Ethiopia.”¹¹² Ethiopian Courts have principal jurisdiction in cases covered under Articles 11, 13 and 15 (2) of the Criminal Code. Under Article 11, Ethiopian courts exercise criminal jurisdiction over any person, whether a national or a foreigner, who has committed any of the crimes specified in the Code on the territory of Ethiopia. Accordingly, aircraft hijacking committed in Ethiopia is subject to criminal jurisdiction of Ethiopian courts, irrespective of the nationality of the offender or the nationality of the aircraft. However, the territoriality principle may not apply regarding offenders enjoying immunities on account of official status sanctioned by public international law.¹¹³ Yet, no Ethiopian national who happens to be a hijacker on the territories of Ethiopia, can invoke immunity as immunity is to be invoked by foreign nationals who are entitled to do so under public international law.

Where an offender, committing a crime on the territories of Ethiopia, takes refuge in a foreign country, his extradition must be requested so that he would be tried under Ethiopian law by Ethiopian courts. Because the Ethiopian Courts exercise principal jurisdiction when a crime is committed on the territories of Ethiopia, the Ethiopian authorities must seek the extradition of the offender to Ethiopia. If the state concerned is a party to the Hague Convention, it is duty-bound either to prosecute the offender or extradite him/her to Ethiopia.¹¹⁴ However, Ethiopia does not enjoy any power to compel the requested state to surrender the offender to its authorities since the requested state is always at liberty either to prosecute or extradite the criminal.¹¹⁵ Similarly, where the foreign country where the offender has taken refuge is not a party to the Hague Convention, Ethiopian authorities may still seek the extradition of the hijacker. Should however such state not be obliged

¹¹¹ Graven, *supra* note 27, p.34

¹¹² *Ibid.*

¹¹³ Article 11(2), Criminal Code; see also Malanczuk, *supra* note 34, pp.123-129.

¹¹⁴ Extradition can be accomplished in accordance with bilateral treaties existing between Ethiopia and the requested state. Failing this, it can be accomplished in accordance with Article 8 of the Hague Convention provided that the requested state is a party to the Convention. See discussions under 2.4.2.

¹¹⁵ As noted earlier, the prosecution or extradition obligation under The Hague Convention is an alternative obligation. See discussions under 2.4.

by other bilateral or multilateral treaty or by reciprocity or by comity, the Ethiopian authorities may request the country of refuge to try the offender by itself. This is, in fact, delegation of criminal jurisdiction of Ethiopian courts to the courts of the country where the offender has taken refuge.

The protective principle of criminal jurisdiction under Article 13 of the Criminal Code permits Ethiopian Courts to exercise principal jurisdiction over offenders who has committed crimes outside Ethiopia against the country, its safety or integrity, its institutions, essential interests or currency. Applied to the crime of hijacking, Ethiopian courts would thus exercise principal criminal jurisdiction over hijackers even if the crime is committed outside Ethiopia where, for instance, the offense is committed against its national flag carriers.

Also, Ethiopian courts exercise principal jurisdiction by virtue of active personality principle under Article 14 and 15 (2), Criminal Code. If a member of the Ethiopian diplomatic or consular service, an Ethiopian official or agent commits crime in a foreign country where he works, he may not be prosecuted in the foreign country on account of international principles of immunity. Yet, he is tried by the Ethiopian Courts where the offense committed is punishable under the Ethiopian Criminal Code and under the law of the country where it was committed. In the case of hijacking, this does not arise as an issue since hijacking of aircraft is anyway a crime punishable with severe penalties in jurisdictions where the Hague convention is in force. Also, countries which are not members to the Convention do not condone the commission of the crime of hijacking since it is a serious threat to their aviation industry and the safety of passengers which entails several economic and political repercussions.

Another instance where Ethiopian courts exercise principal jurisdiction over offenders, through the principle of active personality, involve crimes against international law and especially military crimes as defined under the Ethiopian Criminal Code. As per Article 15(2), the application of this principle is confined only to a member of the defense forces although the crime committed by the defense force may go beyond military crimes. Where a member of the defense forces commits the crime of hijacking abroad, Ethiopian courts may thus exercise principal criminal jurisdiction over the offender provided a civil aircraft is involved; military aircraft is not within the ambit of the Hague Convention.¹¹⁶

¹¹⁶ Article 3, the Hague Convention, *supra* note 5.

The subsidiary application of the Ethiopian Criminal Code is regulated under Articles 17-18. Article 17(1)(a) embodies universality principle of criminal jurisdiction. Accordingly, the Code is applicable to, and hence Ethiopian Courts assume criminal jurisdiction over, an offender, any person who has committed outside Ethiopia a crime against international law or an international crime specified in Ethiopian legislation, or an international treaty to which Ethiopia has adhered. However, because the crime of hijacking has not yet become an international crime punishable by all states,¹¹⁷ Article 17(1)(a) seems irrelevant¹¹⁸ to cases involving foreign offenders who hijacked aircrafts abroad. Had the universality principle of criminal jurisdiction been applicable to the crime of hijacking, Ethiopian Courts would have exercised criminal jurisdiction over such offender irrespective of his nationality or the place of the offense.

The subsidiary application of the Ethiopian Criminal Code to any person who has committed a crime outside Ethiopia against an Ethiopian national is prescribed under Article 18. An application of this principle suggests Ethiopian Courts may assume criminal jurisdiction where, for instance, an Ethiopian national onboard an aircraft hijacked by a foreigner in a foreign territory sustains injury. This is so notwithstanding that the offender is a citizen of a state that has not joined the Hague Convention. Note however that Ethiopian courts must not exercise criminal jurisdiction unless the act to be tried, in our case hijacking, is prohibited by the law of Ethiopia and the state where it was committed and is of sufficient gravity under Ethiopian law to justify extradition.

Finally, there is no contradiction between the Hague Convention's and Criminal Code's principles of criminal jurisdiction. The principles incorporated under the Ethiopian Criminal Code are supplementary to the grounds of criminal jurisdiction of states set forth under the Hague Convention. Therefore, Ethiopian courts can assume criminal jurisdictions over hijackers by invoking the Hague Convention without contradicting the relevant provisions of the Ethiopian Criminal Code. Of course, the Convention does not exclude any criminal jurisdiction exercised in

¹¹⁷ Shaw, *supra* note 35, pp.473-474.

¹¹⁸ Similarly, Article 17 (1)(b) is not totally applicable to the crime of hijacking as it only concerns crimes against public health or morals as regulated by Articles 525, 599, 635, 640 and 64.

accordance with national law.¹¹⁹ Where principal jurisdiction is assumed, Ethiopian courts need not extradite hijackers to requesting states. However, Ethiopian courts – where exercising only subsidiary jurisdiction – may be at liberty either to prosecute or extradite the hijacker. According to Article 21 (1) of Criminal Code, any foreigner who commits an ordinary crime outside the territory of Ethiopia and who takes refuge in Ethiopia may be extradited in accordance with the provisions of the law, treaties or international custom.¹²⁰ Yet, no Ethiopian national having that status at the time of commission of the crime or at the time of request for his extradition may be handed over to a foreign country; he may thus be tried in Ethiopia.¹²¹

3.3. Which courts (the Federal Courts or the Regional Courts) are Empowered to Try Hijackers in Ethiopia?

In the current federal set up, judicial power is divided between the federal and the regional courts. Though it is generally stated that federal and state courts assume autonomous judicial authority in their respective jurisdictions, the constitution leaves certain jurisdictional issues unregulated. For instance, the Federal Constitution has not allocated jurisdictions over crimes between the Federal Courts and the regional courts and thus one cannot tell whether adjudicating criminal cases falls within the constitutional competence of the Federal Courts or the regional courts.

The Federal Courts Proclamation¹²² defines common jurisdiction of the Federal Courts. Article 3 of the Proclamation provides that federal courts shall have jurisdiction over cases arising under the Constitution, federal laws and international treaties. From this, one may rightly maintain that Federal Courts do have the competence to entertain cases involving Ethiopia's international obligation under The Hague and similar conventions to which Ethiopia is a party.

In addition, by virtue of Article 4(8) of the Proclamation, Federal Courts do have jurisdiction over crimes committed against the safety of aviation. That

¹¹⁹ Article 4(3), the Hague Convention, *supra* note 5.

¹²⁰ For more, see discussions e under 2.4.2; see also Fisseha Yimer, 'Extradition in Ethiopian Laws,' *Journal of Ethiopian Law*, Vol.13 1986, pp.147-156. In this article, Ato Fisseha Yimer eloquently discusses extradition focusing on Article 21 of the 1957 Penal Code and other international treaties to which Ethiopia is a party.

¹²¹ Article 21(2), FDRE Criminal Code.

¹²² Federal Courts Proclamation, 1996, *Federal Negarit Gazeta*, Proclamation No. 25/1996, 2nd Year, No.13.

the crime of hijacking is one of the most serious crimes committed against the safety of aviation goes without saying. Hence, it is the federal courts which have criminal jurisdiction to adjudicate criminal cases involving the hijacking of aircraft.

Pursuant to Article 8(4) of the Federal Courts Proclamation, the Federal High court has first instance jurisdiction over “crimes committed against the safety of aviation” which obviously include aircraft hijacking. A cumulative reading of Articles 2 and 8 of the Federal Courts Proclamation (as amended),¹²³ the Federal Supreme Court can exercise first instance criminal jurisdiction over a hijacker provided the crime is committed by an official of the federal government such as a member of parliament, a member of the House of Federation, an official with ministerial rank, a judge of the Federal Supreme Court and any other official of the federal government of equivalent rank. Besides, where a crime of hijacking is committed by a foreign ambassador, consul, as well as a representative of international organization and a foreign state, the Federal Supreme Court has the power to entertain the case.

At this juncture it must be clear that regional courts of all levels do not have any criminal jurisdiction, under regional capacity, to entertain crimes of hijacking. Nevertheless, the regional supreme courts can entertain cases involving hijackers since they enjoy this power by virtue of the power delegated to them by the FDRE Constitution.¹²⁴ Regional Supreme Courts have the power to exercise the jurisdiction of the Federal High Court. Hence, because first instance criminal jurisdiction over the offense of aircraft hijacking, as a matter of rule, belongs to the Federal High Court and because powers of the Federal High Court may be exercised by the regional supreme courts by virtue of constitutional delegation, the latter can exercise the power to try hijackers of aircraft on the basis of such constitutional arrangement.¹²⁵ Nonetheless, regional supreme courts exercise delegated power unless and until federal high courts are established in the regional states. As the establishment of the Federal Courts throughout Ethiopia or in some parts of

¹²³ See generally Proclamation to Amend the Federal Courts Proclamation, 2003, *Federal Negarit Gazeta*, Proclamation No.321/2003, 9th Year, No.41[hereinafter Federal Courts Proclamation as amended].

¹²⁴ Articles 78 *cum* 80, FDRE Constitution.

¹²⁵ *Ibid*, Article 80(4);

the country is envisaged by the FDRE Constitution,¹²⁶ the House of Peoples' Representatives has established federal high courts in Southern Nations, Nationalities and Peoples' Regional State (SNNPRS), Gambella, Benishang-Gumuz, Somali and Afar Regional States in 2003.¹²⁷ This means that the respective regional supreme courts in these regional states do not anymore have the power and the responsibility to exercise the jurisdictions of the Federal High Court.¹²⁸ Meanwhile, Regional Supreme Courts of Amhara, Oromia, Harari and Tigray Regional States may still exercise criminal jurisdiction over hijackers by virtue of the power delegated to them under the Constitution until federal courts are established in these regions.

The Federal Supreme Court has an appellate jurisdiction over cases involving aircraft hijacking, notwithstanding the case has been first entertained by the regional Supreme Courts or the Federal High Court.¹²⁹ Also, the Federal Supreme Court has power of cassation over any final court decision where the decision against which review by cassation is sought contains fundamental error of law. Yet, tests regarding whether a decision contains fundamental error of law have not thus far been outlined in Ethiopia.¹³⁰ By the same token, a criminal proceeding involving the prosecution and trial of hijackers in Ethiopia may be subject to cassation review by the Cassation Division of the Federal Supreme Court. Finally, the decision of any court may be subject to constitutional review by the council of

¹²⁶ *Id.*, Article 78 (2).

¹²⁷ Federal High Court Establishment Proclamation, *Federal Negarit Gazeta*, Proclamation No.322/2003, 9th Year, No. 42.

¹²⁸ Despite the enactment of the proclamation cited in note 127 above, benches of the Federal High Court have not been established in the regions. Rather, a bench of this court works in circuit; an interview with Ato Amare Amogne, a judge at the Federal Supreme Court (conducted on January 3, 2011).

¹²⁹ Article 80(6), FDRE Constitution; Article 10, Federal Courts Proclamation as amended.

¹³⁰ Article 80(3)(a), FDRE Constitution. Regarding the problems involved in identifying whether a decision of the lower courts contains fundamental (basic) error of law, see, e.g., Yohannes Heroui, 'ስለሰበር ሥልጠንና ሥርዓቱ ጥቂት ማስታወሻዎች' *Ethiopian Bar Review*, Vol. 3, No.1, 2009, pp.131-148; Muradu Abdo, 'Review of Decisions of State Courts over State Matters by the Federal Supreme Court,' *Mizan Law Review*, Vol.1, No.1, 2007, pp.60-74; Mehari Redae, 'የፌዴራል የሰበርና የሰበር ሰበር የስልጣን ምንጭ ገልጠን ብናየው! (በሰበር መ.ቁ 26996 እና 31601 መነሻነት የቀረበ ትችት),' *Journal of Ethiopian Law*, Vol.24, No.2, 2010, pp.201-213; Molla Mengitu, 'ፍርድና በፍርድ ላይ የቀረበ ትችት : የክልል ፍ/ ቤቶች የውክልና የዳኝነት ስልጣንና ውክልናው ቀሪ የሚሆንበት ሁኔታ,' *Journal of Ethiopian Law*, Vol.24, No.2, 2010, pp.191-200.

Constitutional Inquiry¹³¹ – an advisory body to the House of Federation which has the final power to adjudicate constitutional disputes in Ethiopia.¹³²

Concluding Remarks

The aspiration of mankind to fly in the sky materialized at the beginning of the twenty century, heralding the beginning of quick global communication. However, several problems have emerged concurrently with the consolidation of the aviation industry. Hijacking of aircraft is one such formidable menace to civil aviation since at least 1960's.

Since then, numerous conventions have been adopted with a view to coordinate global efforts to combat the threats posed by aircraft hijacking. The 1970 Hague Convention, which specifically addresses the crime of hijacking, is considered to be the anti-hijacking convention *per se*. This Convention attempts to define acts which constitute hijacking. It also prescribes rules regarding the obligation of states with regard to prosecution and extradition of hijackers. The Convention has taken a unique stance regarding principles of criminal jurisdiction of states parties to the Convention without of course jeopardizing the continuity of principles of criminal jurisdiction of states traditionally known under international law. The Hague Convention reinforces the assumption of criminal jurisdiction based on principles existing under national and international laws.

Despite its strong sides, the convention contains some inbuilt defects. Crucially, the convention does not contain rules on conflict of jurisdiction. Extradition of nationals and the granting or denials of asylum to hijackers (who are also political offenders) are not dealt with squarely. The convention is not also able to resolve conflicts arising between requesting states in the case of extradition.

Ethiopia, a party to the Convention since 1979, assumes international obligation to combat the problem of hijacking. Notwithstanding its international obligation, the crime of hijacking is also a national concern in

¹³¹ Articles 83 and 84, FDRE Constitution.

¹³² The Constitution is the supreme law of the land (Article 9(1), FDRE Constitution). This means that no law, no action or no decision should contradict with the Constitution. If any law, or any action or decision of courts contradicts with the constitution, it will be declared null and void by the House of Federation, the interpreter of the Constitution; see Articles 62(1) and 83, FDRE Constitution; also Assefa, *supra* note 97, pp. 383-400.

Ethiopia where hijacking incidents are not new. As far as the jurisdiction to try hijackers is concerned, Ethiopian courts can assume criminal jurisdiction by virtue of the relevant provisions of the Hague Convention and of course the 2005 Criminal Code, albeit the scope of application of the later is more limited than the former. Where principal jurisdiction is assumed, Ethiopian courts try the offender. Where subsidiary jurisdiction is assumed, the tendency would be to extradite offenders to a requesting state in accordance with the provisions of the Convention or any other bilateral treaty signed between Ethiopia and states concerned.

Entertaining criminal cases involving hijackers is the exclusive power of the Federal Courts, though regional supreme courts can exercise this power by virtue of constitutional delegation until and unless federal high courts are established in concerned regional states. At the federal level, it is the Federal High Court of Ethiopia which has first instance jurisdiction to adjudicate criminal cases involving hijacking of aircraft. Yet, Federal Supreme Court may exercise first instance jurisdiction in some exceptional circumstances depending upon the status of the offender.

Federal Bicameralism and Second Chamber Powers in Parliamentary Form of Government: A Brief Analysis of the Ethiopian System

Addissie Shiferaw^{*}

Abstract

The conventional wisdom about the original idea of federal bicameralism is that it works effectively along with a presidential rather than parliamentary governmental form. Second chambers exercise real powers normally associated with their traditional function as institutions organized for representation of vertically dispersed subnational power entities at the national level when the presidential system of governance ensuring clearly separated horizontal and cross-checking distribution of power is superimposed on the federal state structure. In this sense, the parliamentary system adopted in the Ethiopian federation has produced a second chamber significantly weaker than the first chamber. However, a multiplicity of other factors adds to form of government to impact the power configuration in the upper house. Proper concern for these factors in the political design or redesign of the federation would remedy the apparent power deficit second chambers display in the parliamentary governmental form, and even making parliamentary governance the preferred form for ensuring the central representation of politically salient territorial cleavage patterns in ethnically diverse polity such as Ethiopia.

Introduction

The object of this piece of work is the brief exposition of the formal status and actual function of the second chamber in the Ethiopian federation's two-housed, in broad terms, "legislature". It attempts to shed some light on Ethiopian bicameralism at the national level. In particular, it uncovers the relationship between parliamentary governance and the extent of powers assigned to the second chamber in the "National Assembly". It is believed that locating the place of bicameralism in Ethiopia would have the capacity to meaningfully affect any attempt of showing the direction and measuring the potential achievement of the Ethiopian federation.

The body proper in this article, other than the introduction and conclusions parts, is divided into two broader parts with further subdivisions under each. The first part brings general insights on the roots of bicameral representation. It attempts to explore possible conceptual links between governmental form and bicameralism. Governmental patterns in almost every republican country take one of the two major forms: parliamentary or

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presidential. The general trend is that either of these governmental forms can be superimposed on a polity having a federal¹ structure as the underlying rule of state organization. But it is claimed that because of the virtually mutual overlapping of executive and legislative powers in parliamentary form, bicameralism and, for that matter, second chamber work better in a presidential form of government where the legislature exists separate from and independent of the executive. The first part considers the validity of these competing claims, and tries to discover and explain the ideal arrangement that gives bicameralism and second chambers a proper status and role they would assume in parliamentary governmental form.

Any federal arrangement, whether parliamentary or presidential in its governmental form, would normally adopt bicameralism and formally confer certain powers on the second chamber. Of course, it is difficult to sustain that bicameralism is in the exclusive nature of federalism; bicameral chambers are also noticeable in countries with unitary state structure. But the rule remains that a federal system works out a mechanism of ensuring the institutional representation of certain collective interests, which necessitated the adoption of the federal alternative in the first place, by addressing the deficit attributed to the democratic principle of majoritarian governance. Such a mechanism usually involves the organization of upper house in parallel to the majoritarian lower house in a bicameral chamber, and the conferring of certain formal powers on this second chamber. The scope of powers could vary from one federal country and governmental form to another and even within parliamentary (or, for that matter, presidential) federal systems, as many other contextual variables that could impact the power balance may be at work in a federation. In light of these general perspectives, the second part makes a relatively in-depth analysis of the constitutional status and power structure (especially in relation to that of the first chamber) of the second chamber in the Ethiopian parliamentary federal system.

Finally, findings and recommendations along with some concluding remarks summarize the major problems associated with bicameralism in Ethiopian parliamentary federalism.

¹ A unitary state structure can also assume either the parliamentary or presidential form of government.

1. Bicameralism in Parliamentary Federation: Feasibility and Effectiveness

1.1. Some Remarks on Representation in a Federal System: Roots for and Importance of Legislative Second Chambers

It is well-documented that *federalism* refers to a primarily ideological interest in the sense that it stands for an analytic approach to human association that has as its point of analysis the question of diversity-in-unity.² As a conception constituting “a variable response to opposed demands for the dispersal and concentration of power”,³ federalism deals with both basic “moral questions” – highly charged emotional questions – and “amoral matter-of-fact issues” – such as routine pursuit of economic benefit and security.⁴ Also its ideological focus is not limited to any one area; it is multi-faceted in that it is *by its nature* philosophical, constitutional, political, social, economic, cultural and legal.⁵ On the other hand, *federation* designates “a more descriptive, institutional arrangement of fact.”⁶ It is “a distinctive organizational form or institutional fact,”⁷ a tangible mode of state organization which instances the division of power along territorial lines between central government and regional governments, and in which the accommodation of the regions is entrenched in the decision-making procedure of the central government through a formal constitutional mechanism.⁸

There exists a “symbiotic relationship” between federalism – concern for difference and diversity, and federation – the institutional expression of such concern.⁹ This relationship involves a linkage of very particular importance: the principle of *representation* serves as “a conceptual ligament” tying federalism and federation together.¹⁰ A federal compromise involves the integration of certain territorial units into an overarching sovereignty and, at

² King, P., *Federalism and Federations*, Croom Helm Ltd., London, 1982, p. 20 [hereinafter King].

³ *Ibid*, p. 21.

⁴ Burgess, M., *Comparative Federalism: Theory and Practice*, Routledge, London, 2006, p. 1[hereinafter Burgess]

⁵ *Ibid*.

⁶ King, *supra* note 2, p. 21.

⁷ Burgess, *supra* note 4, p. 2.

⁸ King, *supra* note 2, pp. 140-141.

⁹ Burgess, *supra* note 4, p. 2.

¹⁰ *Ibid*, p. 207.

the same time, formal constitutional stipulation for entrenching the autonomy of the territorial units. The autonomy of collective interests that are based in territorially organized units is ensured in large part by accounting for special representation of the units in the decision-making processes of the overarching center. The usual institutional response to this demand manifestly noticed in contemporary federations is the organization of confederal-type legislative second chambers in addition and parallel to popular, usually majoritarian, lower houses. Thus, issues of ensuring creation of a central government responsible to the population of the federation as a whole and of preserving the territorial autonomy of the federating units come into direct play. Bicameral, or two-chambered, legislative structure at the center is an oft-sought solution to address these twin questions of representation.

As briefly noted earlier, the organization by formal constitutional means of second chambers in a bicameral setting resulting in a system of institutional duality of the legislature at the center is not the peculiaristic feature of a federal state structure; nor is it the only mechanism of formally ensuring the representation at the center of territorial identities in a federation itself. If viewed simply as one of institutional arrangements alone,¹¹ the issue regarding separation of legislative powers does not distinguish federal states from non-federal ones. This is because a great variety of states which normally are not federal do have nonetheless featured bicameral legislatures: the Swedish, Dutch, British and French parliaments are typical examples.¹² Thus, mere institutional division in the form of legislative bicameralism is not so much a distinctive feature of federations as the substantive representation of territorially distributed authority by means of constitutional entrenchment.

¹¹ *Id.*, p. 204. In referring here to the phrase “institutional arrangement alone” we mean that federal and non-federal states alike factually display institutional duality in the legislature at the center, and that it is another factor beyond mere institutional division that distinguishes federal states as regards the question of legislative representation.

¹² King, *supra* note 2, p. 94. Michael Burgess has an additional thing to say regarding the French and British Parliaments: “[The second chamber in the French bicameral Parliament is]...based on indirect elections in the Departments and with mostly a suspensive veto power. [The House of Lords in the UK’s two-chambered Parliament is]...an essentially pre-modern...[system incorporating the interests of the aristocracy into the central legislative decision-making process, only] recently reorganized along purely functional lines.” See Burgess, *supra* note 4, p. 204. Similarly, the Swedish *Riksdag* is bicameral, though ambiguously so because the difference between the interests the two chambers represent is blurred. See De Minon, M., ‘The Passing of Bicameralism’, *American Journal of Comparative Law*, Vol. 23, 1975 p. 236 [hereinafter De Minon].

In this sense, it is possible, at least theoretically, to serve the same end of ensuring territorial representation in a federation within a unicameral legislature through a different means.¹³ And even where federal second chambers do exist and have the constitutional power to influence legislation, this power may be just “essentially a paper work” proving quite unequal to the task of defending rights of the territorial units, entailing that second chambers are “simply not to be regarded as everywhere and necessarily indispensable to the accomplishment of such a defence.”¹⁴ This is considerably related to the question of legitimacy and effectiveness of second chambers and it stands to reason that these questions are, at least to a certain extent, the function of other interrelated factors such as whether the system of governance is parliamentary or presidential, whether the federation is a “coming together” or not, whether the second chamber is organized on the basis of the “senate” or “council” model, whether or not a single national political party controls political power throughout the federation, and, more related to political party power orientation, whether a plurality-vote based or proportional representation driven election system is in place. These are generally the matters considered later on, placing primary focus upon parliamentary governance and the others as they relate to it, which the author believes would help explain bicameralism in the Ethiopian federation. But first, the next two sub-sections reveal the purpose of legislative second chambers in federations.

¹³ *Id*, p. 95. King begins by citing examples of federations with unicameral legislatures, saying that federations in Cameroon, Pakistan and Yugoslavia did not in fact lead to bicameralism. He then goes on to say that “the simplest means [to ensure representation of territorial units] would be for the procedures employed to select (or elect) the members of the second chamber to continue, and once this procedure used to determine membership of the second chamber is fixed, then rather than form a second chamber, the membership – its voting units – might simply be added to those voting members already present in the first chamber. Of course account to balance the number of the representatives and to place special decision-making (such as supermajority or double majority) on some, but not all, matters may be made to maintain the system as ultimately ensuring regional representation. Another writer testifies to the possibility of the same mechanism, summing “... the unicameral federal legislature does not work, despite its name, like a [N]ational [A]ssembly, but follows a new pattern which recognizes the participation of different social sectors, whether states or communities.” See De Minon, *supra* note 12, p. 241.

¹⁴ *Id*, pp. 94-95.

1.1.1. Second Chamber Representation and Diversity of Sub-national Cleavage Patterns

It has been highlighted above that the main purpose of a bicameral arrangement in a federation is the entrenched constitutional representation of regional units in the legislative decision-making procedures of the overarching central government. Also, it has already been noted that bicameralism is not the sole alternative available to federations. Nevertheless, it is the alternative in widespread practice in contemporary federations. The purpose of bicameral arrangement needs to be explained having regard to its collective roots in the federation as expressed by formal constitutional means and informal societal mechanisms. Yet, the concern hereinafter is not so much to go back and question the need for second chambers as to explain arguments sustained in the need to have them, especially vis-à-vis lower houses, and for their legitimate position in the federation.

Different representative institutions everywhere are historically the result of societal divisions and differences of some kind – local, class or professional interests; federated states or regions; etc.¹⁵ The upshot of this statement is that the bicameral (or pluricameral) structure of parliament serves little purpose in a homogeneous society and that it gains feasibility in so far as different representative assemblies are rooted in different societal bases.¹⁶ To some extent this claim parallels the critical sociological perspective that questions the very relevance of a federal option to states with social homogeneity, drawing a conceptual debate about the relationship between a ‘federal society’ and ‘federal state’ and leading some scholars to describe this view as “the sociological fallacy,” dismissing the argument that the federal idea specifically suits countries with a high degree of social heterogeneity.¹⁷ Of course, contemporary scholarship tends to acknowledge the fact that federation is what Michael Burgess calls “a theory of circumstantial causation” that works in the specific context of each state and takes different

¹⁵ De Minon, *supra* note 12, p.236.

¹⁶ *Ibid.* De Minon alludes to the ambiguously bicameral nature of the Swedish *Riksdag* (where relative heterogeneity exists) and Norwegian *Shorting* (where society is homogeneous). He states that “[w]hereas in Norway they have one chamber and pretend to have two, in Sweden they have two and pretend to have one.”

¹⁷ Burgess, *supra* note 4, p. 108. Also, see Galligan, B., *A Federal Republic: Australia’s Constitutional System of Government*, Cambridge, Cambridge University Press, 1995, p. 55, cited in Burgess, *supra* note 4, p. 108. Galligan states that “[f]ederalism is a function not of societal differences but of institutional arrangements and political communities.”

forms at different times in different circumstances in a certain state.¹⁸ To that extent institutional design and the role of political elites in constructing federations do matter. But to be successful, these have to be based on at least two preconditions: (1) a coexistence between local-regional community sub-state identities, values and loyalties and significant elements of shared, overarching values and identities in the federation at large; and (2) the dual values, identities and loyalties must be reflected in the central institutions of the federation so that different forms of representation facilitate the expression of different interests on different policy matters.¹⁹

The analysis once again suggests the intimate relationship between federalism and federation reflected in the presence of certain differences and their representation in central institutions via, most practically, bicameral legislature. The presence of interest cleavages (based on historical, economical, cultural, ethnic, linguistic, religious, communal, traditional, or any other social divisions) is a good ground for a federation, but that alone does not lead to the organization of a federal state and ultimately to representation of these collective interests. As Burgess clearly puts it, “it is not the mere existence of a particular social cleavage that matters in a federation so much as the constellation of cleavage patterns having political salience.”²⁰ A federal design is a structural response to identity groups’ political self-consciousness. And, its classical conception requires that these politically self-conscious identities must be territorially organized.²¹ It is the representation in central institutions of the federation of such politically salient territorial (and in limited cases non-territorial) diverse interest groups that bicameralism is intended to ensure. Thus, the organization of a second chamber in the legislature presupposes, at least in a federal system, the existence of some

¹⁸ *Id.*, p. 109.

¹⁹ Simeon, R. & Conway, D., ‘Federalism and the Management of Conflict in Multinational Societies’, in Gagnon, A. & Tully, J.(eds.), *Multinational Democracies*, Cambridge University Press, 2001, p.361, cited in Burgess, *supra* note 4, p. 139.

²⁰ Burgess, *supra* note 4, p. 140.

²¹ According to the contemporary theories and practices of the federal idea, it is even possible to incorporate non-territorial cleavages having political salience, even though territorial representation remains the normal pattern. This non-territorial form of federalism surfaced during the last days of the Austro-Hungarian Empire and is presently the case in Belgium. Detailed account of this can be found in Burgess, *supra* note 4, pp.141-142, and in Kymlicka, W., ‘Federalism and Secession: At Home and Abroad’, *Canadian Journal of Law & Jurisprudence*, Vol. 23, 2000, pp.216-219.

degree of heterogeneity of cleavage patterns that have interest and political demand for representation differing from that the lower house represents.

1.1.2. Second Chamber Representation and the Limitation of Conventional Democracy

In its purely classical sense and as the Greek etymological origins of the term indicate, democracy stands for “popular rule”; it is a political system in which the people of a country rule through any form of government they choose to establish, which in modern democracies means that supreme authority is exercised for the most part by representatives elected by popular suffrage with responsibility, at least in principle, to the electorate ensured through the legal procedures of recall and referendum.²² In a sense democracy implies governance by the choice of the majority of the people in a country. It tends to subjugate choices of the minority. The assembly constituted by elected representatives, working according to rule of the majority, may not only be efficient but legitimate in so far as it is rooted in a homogenous body politic.²³ When the body politic and its representation lack the basic homogeneity that entitles the majority to represent the minority, however, the rule of popular choice does not work satisfactorily. This is because in plural societies where a federation is forged out of diversity, the system works to the detriment of social cleavages conscious of their minority position.²⁴ A political institution that is constituted by the choice of individual members of the population forming the majority in a socially heterogeneous body politic may still be efficient, but such an institution cannot claim legitimacy from the minority who would seek to have certain distinct collective interests guaranteed. The institutional setup in a socially diverse polity should be concerned primarily with *procedure* of decision-making process and only then with the *outcome* of that process – legitimacy before efficiency – because “efficiency without legitimacy will turn into chaos.”²⁵

Indeed, it is claimed that in federations “all that is minimally guaranteed” is the “entrenched position of constitutive territorial units, not the

²² Richard M. Pious, “Democracy” *Microsoft Encarta* 2009 [DVD]. Redmond, WA: Microsoft Corporation, 2008.

²³ De Minon, *supra* note 12, 242.

²⁴ *Id.*, pp.241-242.

²⁵ Fleiner, T., ‘The Yugoslav Crisis: Challenge for a New Theory of Federalism’, *Cardozo Journal of International & Comparative Law*, Vol. 6, 1998, p. 96.

rights of individual citizens.”²⁶ Seen from the perspectives of the historical situations leading to a federation, there is some truth in such a claim. In most cases, member units in federal states had achieved the status of self-governing colonies, provinces, cantons, or states prior to the federation; without the primary guarantee of the particular interests of these units the federation would probably not have emerged.²⁷ This is not to say that responsible government and popular representation are not possible or necessary in a federation, but that these matters are overridden by what is called “existential federalism” – the political existence of independent units within the federation.²⁸ As De Minon explicitly puts:

“In hyperfederal societies the imperatives of existential federalism overrun the exigencies of democracy. The political subject in direct relation with the state is not the citizen but the federated unit and the same is true in relation to communities in plurinational states. For this reason those entities dominate the legislature or at least play the role of rigid channels for popular suffrage.”²⁹

The solution to the apparent clash between these two categories of interests lies, among others, in the constitutional organization of second chambers in a bicameral legislative setting of dual representation and incorporation of special legislative decision-making techniques such as the requirement of special and multiple majorities on certain extraordinary constitutional issues. More specifically, the solution is to “constitute the lower, or first chamber, on the majoritarian principle of representation by population” but to “add an upper house, or second chamber, constituted on the federal principle of representation by region” whereby legislation would have to be passed by both chambers.³⁰ Pending further discussions on the importance of equal representation of units in second chambers, it must now be posited that the federal idea in all federations suggests that representation shall not be solely on the basis of population. And given the peculiar nature of the interest they represent, the status and role of second chambers in

²⁶ King, *supra* note 2, p. 88.

²⁷ Hueglin, T. & Fenna, A., *Comparative Federalism: A Systematic Inquiry*, Broadview Press, Peterborough, 2006, p. 179 [hereinafter Hueglin & Fenna].

²⁸ Schmitt, K., *Verfassungslehre*, Duncker & Humblert, Berlin, 1928, cited in De Minon, *supra* note 12, p. 242.

²⁹ De Minon, *supra* note 12, p. 242.

³⁰ Hueglin & Fenna, *supra* note 27, p. 179.

federations has been an “identity bracelet,” for these states are forged out of diverse cleavage groups.³¹

1.2. Second Chambers in Parliamentary Form of Government

In a federal state structure, bicameralism as an institutional and constitutional means of entrenching sub-national units does not normally cling to the form of government. Yet, the status and *modus operandi* of second chambers may differ based on whether the superimposed system of governance is parliamentary or presidential. In this section, the conceptual status of bicameralism in parliamentary governance is discussed. The discussion seeks to get to a theoretical compromise position that both gives effectiveness and fosters the continued operation of parliamentary political supremacy.

The constitutional system with a parliamentarian model of governance is known by the fusion of legislative and executive powers within a single body, the parliament, because the executive, usually called the government and headed by a prime minister, is chosen by a party or coalition of parties that reflect a majority of legislators in parliament whose continuation in office is based on continued majority support in parliament, resulting in a single electoral legitimacy.³² Because government in a parliamentary system is formed out of a popularly elected legislative chamber, control over government administrators is held by that chamber most representative of the whole population, even within a setting of legislative bicameralism.³³ This means that in federations with a bicameral legislature, the popular chamber, the lower house, usually gains real political authority vis-à-vis the upper house. Such assumption of political hegemony by the lower house within a bicameral legislative setting does not exist in presidential form because of dual (divided) popular legitimacy³⁴ and the fact that executive political authority is vested in an independent presidency separate from the legislature.

³¹ Burgess, *supra* note 4, p. 204.

³² Landsberg, B. & Jacobs, L., *Global Issues in Constitutional Law*, Thomson/West Group, St. Paul, 2007, pp. 56-57 [hereinafter Landsberg & Jacobs].

³³ Claus, L. ‘Separation of Powers and Parliamentary Government’ in Amar, V. & Tushnet, M. (eds.), *Global Perspectives on Constitutional Law*, Oxford University Press, Oxford, 2009, p. 48.

³⁴ A presidential model of constitutional government involves the separate popular election of the chief executive (the president) and the legislature; the independent election suggests that normally neither the president nor the legislature is subject to dismissal by the other,

The idea of presidential federation, cast by the U.S. model and later followed by Latin American countries,³⁵ is generally regarded as more virtuous to guarantee the creation of limited government, since it combines vertical territorial distribution of authority between levels of government with horizontal separation of powers (along with a system of checks and balances) among the branches of government. The combination of federalism with presidentialism created what the federalists called the “compound republic” intended to provide double security to the rights of the people, by first dividing powers between two distinct governments and then subdividing the portion allotted to each among distinct and separate branches.³⁶ The structure produces a system of “compounded representation” that incorporates interests across the republic by simultaneously dispersing tendencies of majoritarian tyranny.³⁷ In a sense, the dispersal of power in presidential governance reinforces the very federalist project of power distribution across various units whose presence and interest is institutionally guaranteed through a bicameral second chamber having co-equal legislative power with the first chamber, suggesting that federalism and presidentialism can be seen as complementing operational principles.³⁸ Federalism also works in tandem with parliamentary rule, though the fusion of executive and legislative powers in parliamentarism would mean relatively limited federalist dispersal of power in comparison to presidential federalism, the overall virtue of which nevertheless depends on a host of other determinants.

producing a system of dual legitimacy and not just divided functions but clearly separated powers. See Landsberg & Jacobs, *supra* note 32, pp. 56-57

³⁵ Hueglin & Fenna, *supra* note 27, pp 58-59, 63-64, 76-77. “Hispanic” countries (so called because they are former colonies of Spain and/or Portugal and inhabited by peoples of Spanish and/or Portuguese descent) such as Mexico, Venezuela, Brazil, and Argentina are presidential federations modeled after the U.S. system. Latin American presidential federations came to be referred generally as “Hispanic” federations.

³⁶ Madison, J., *Federalist 51*, in Hueglin & Fenna, *supra* note 27, p. 105.

³⁷ Brzinski, J., Lancaster, T. & Tuschoff, C., “Introduction”, *West European Politics*, Special Issue, 4-5 (1999), cited in Burgess, *supra* note 4, p. 207.

³⁸ Hueglin & Fenna, *supra* note 27, p. 59. Such a virtue in presidential federation has not been realized in Hispanic federations where centralist tendency exists owing to the countries’ colonial tradition of authoritarianism, Catholicism and clientelism. Authoritarian parties and military dictatorships used the federal structures of regional administration as transmission belts for their nationalist projects. Nevertheless, recent improvements suggest that federalism and presidential governance are opportunity structures for democratization from below.

The system of “parliamentary federalism”, that had its origins earlier in the British imperial tradition, emerged in the nineteenth century British colonial territories as part of imperial decentralization. It was an attempt to reconcile the Westminster notion of parliamentary sovereignty with the idea of a basic territorial distribution of power.³⁹ The Westminster system of parliamentary governance involved and still involves the absolute supremacy of parliament and fusion of executive and legislative powers.

As originally understood, “parliamentary sovereignty” suggests that there is neither judicial nor formal constitutional limit to the power of parliament to make or unmake any law. Everyone including courts is prohibited from acting contrary to any parliamentary act.⁴⁰ Moreover, as this formally unlimited power operates on the basis of majoritarian decision-making that is characteristic of a parliamentary system, it may end up effectively in “majority sovereignty”. The parliamentary majority operational principle may work well in the context of unitary state with a socially homogeneous electorate.

In contrast, a different dimension presents itself when a federal structure based in heterogeneous collective interests is opted for. Where different territorial group identities with different sets of preferences exist, consociational techniques of negotiation and compromise bring harmony and ensure minority participation in governance by mitigating the effects of administration through majority votes on the basis of rights.⁴¹ In order to guarantee diversity-in-unity, a heterogeneous society requires a supreme, federal constitution.⁴² Federations are constitutional: a federal design begins with a stipulation of constitutional kind; the constitutional stipulations assume some notion of institutional arrangements, including a bicameral legislature of

³⁹ Burgess, *supra* note 4, p. 201. The first country to introduce this system was Canada in 1867 followed by Australia in 1900 and India in 1950. Although the Nigerian federation also somehow resulted from British imperial decentralization, its form of governance is presidential rather than parliamentary. Though evolved on an entirely different course to that of the British former colonies, the German federation has also adopted a parliamentary form with some peculiar features.

⁴⁰ Claus, *supra* note 33, p. 49. But the fact that there is no explicitly written constitutional limit on the power of the parliament in Westminster tradition does not mean that there is altogether no limit; there are general conventions of constitutional status that informally limit the power of the parliament. And popular control over parliamentarians can always be exercised (by the electorate) through the democratic and legal procedure of recall.

⁴¹ Hueglin & Fenna, *supra* note 27, p. 48.

⁴² De Minon, *supra* note 15, p. 237.

regional representation, sufficiently fixed and stable, or (in other words) entrenched, to require some unusual or extraordinary procedure to overturn them.⁴³ Thus, federalism does not accept “parliamentary sovereignty” as expression of democracy, but rather “constitutional sovereignty”. Hence, the Westminster model is flawed in so far as its *adversarial nature* and *majoritarian thrust* can serve to exclude territorial minorities,⁴⁴ for in plural societies, wherein politically conscious minorities exist, the majority is not entitled to represent the minorities and its opinion does not constitute the “general will.”⁴⁵

In the light of the foregoing, it is now clear that constitutionally entrenched federal second chambers are generally acknowledged as instruments of ensuring diversity-in-unity. Also, parliamentary federalism, still featuring a fusion of executive and legislative powers in a federation, must incorporate into the legislative decision-making procedure of the center interests of constituent units via a constitutionally fixed bicameral legislature as against merely majoritarian political hegemony of the lower house.

That said, the organization, composition and functioning of federal second chambers are determined within the specific context of each federation since the federation itself is the result of particular circumstances having political salience. Their particular shape does not relate to some “inherent political virtue”, but to sheer “political and historic necessity”.⁴⁶ Indeed,

⁴³ King, *supra* note 2, p.145.

⁴⁴ Burgess, *supra* note 4, p. 201. King states that “[a] parliamentary system...whose members (or deputies or congressmen) represent nationwide interest, or professional groups only, to the exclusion of entrenched territorial units, is in such degree more aptly to be styled a ‘corporatist state’ than a ‘federation’.” See King, *supra* note 2, p. 89.

⁴⁵ De Minon, *supra* note 15, p. 241. In a nation divided into, for example, regional entities and racial, religious or linguistic communities, the majoritarian principle makes it possible for a region or community to obtain numerical control of parliament, as was the case in Northern Nigeria between 1963 and 1966. In such a plural society, the other regions or communities – the minorities – are not represented but oppressed by the majority.

⁴⁶ Sager, P., ‘A Swiss Federalism: A Model for Russia?’ *St. Louis–Warsaw Transatlantic Law Journal*, 1995, p.167. As to the specific circumstance in which Switzerland emerged and survived as a model federation, Sager claims “[t]he existence of a threat and the recognition of clear and present danger foster not only fanaticism, but may stimulate rational behavior. This only occurs, however, where the national leaders establish what the threats are and explain the high cost of failure.”

James Madison defended bicameralism, i.e. organization of the Senate, not from the dogmatic point of view, but political necessities of the time.⁴⁷

Federalism is a system of guaranteed group protection. And, representation via second chamber is a manifestation of such group guarantee of territorial units. Apparently, there is a theoretical problem with such representation because the participation of the constituent units in the legislative decision-making of the federation conflicts with the democratic principle of “one person, one vote, one value.”⁴⁸ But the two different interests involved in federal representation – individual and collective – can be reconciled since representation by region via second chamber is instituted as a complement rather than alternative to representation by population via lower house.

In resorting to bicameral design, constitutional framers would have to settle at least three basic but often “politically charged” questions.⁴⁹ These are: (1) in what proportion the sub-national units would have to be represented; (2) in what way the constituent units would have to be represented; and (3) what powers to give the second chamber. Taken as a whole, there would be a connection between answers to these questions and form of government, and, in parliamentary form, between these answers and issues of democratic control and responsible government.

The issue of *in what proportion* to represent the constituent units relates to whether size is considered. The choice of the solution to this problem varies on the spectrum that contains the confederal principle of equal representation regardless of population size at one extreme and the majoritarian rule of representation by number of individual members of the units at the other.⁵⁰ This could also include accounting for geographical size of the territorial unit.

⁴⁷ James Madison, *The Federalist*, No.62 cited in De Minon, *supra* note 15, p. 236. Madison in reference to the Senate in the making of American bicameralism said it is “... superfluous to try by the standard of theory a part of the constitution which is allowed on all hands to be the result not of theory but of a spirit of ... concession which the peculiarity of our political situation rendered indispensable.”

⁴⁸ Burgess, *supra* note 4, p. 205.

⁴⁹ Hueglin & Fenna, *supra* note 27, p. 180.

⁵⁰ Hueglin & Fenna, *supra* note 27, p. 180. In confederal unions, discrepancy in population of the units is in principle irrelevant because each member participates as a member state (somehow retaining traditional sovereignty under international law), not as a group of people within a state. But the transition to federation involves a somewhat lessened sovereignty and a conferring of the traditional sovereignty to the federal center which incorporates the populations of the units into the central decision-making process.

What is evident here is that mostly federation comprises units with great discrepancies both geographically and demographically.⁵¹ If the one extreme of equality between territories is adopted, then practically it must always to some degree subvert any strict equality between citizens – an incongruity which may characterize a federation as what King posits a practically “incomplete democracy” which nonetheless may have to be accepted as compromise for having the federation.⁵² The model of federal bicameralism that combines the equal representation of units in the upper house with representation of the people as a whole in a lower house, as cast by the United States and later followed by Australia and Switzerland,⁵³ is a classic scheme that hews to a middle point between the majoritarian pattern of “National Assembly” characteristic of unitary systems and the diplomatic conferences of confederations.⁵⁴ On the opposite extreme, it is unthinkable, in federation *qua* federation, to institute a second chamber on the strictly majoritarian basis of representation by regional population. This is so for the simple reason that straightforward majoritarianism only duplicates the allocation of seats and votes in the first chamber, which effectively renders the majoritarian basis of unitary tendency as the sole alternative without making any concession to smaller units for guaranteeing the protection of which federalism was founded. What is possible and indeed exist is a middle ground position that takes account of both constituent membership and unequal size. This is a system of *weighted representation* whereby smaller units are given more weight than they would command on the basis of their populations and larger units are still given more seats and votes but cannot automatically dominate the decision-making process.⁵⁵ Germany and, to a certain extent, Ethiopia could be regarded as federations where difference in size of the units is weighted for determining their proportion of representation in the second chamber.⁵⁶

⁵¹ *Id.*, pp.78 and 180.

⁵² King, *supra* note 2, p.91. Equal representation of the units is said to produce pronounced malapportionment in that it results in the overrepresentation of smaller units.

⁵³ Hueglin & Fenna, *supra* note 27, p. 180.

⁵⁴ De Minon, *supra* note 15, p. 238.

⁵⁵ Hueglin & Fenna, *supra* note 27, p. 181.

⁵⁶ *Ibid.* Pending further discussions on the Ethiopian case, it suffices for now to state here that each Nation, Nationality and People will have at least one representative, and will have one more for each one million of its population; see Article 61(2), FDRE Constitution.

The question of *in what way* to represent constituent units via federal bicameralism is about who or what should be represented. The answer largely lies in whether people or governments of the constituent units are represented.

Although democracy (rather direct democracy) basically contains an aspect of popular self-rule, representative democracy becomes the feasible alternative in larger territorial settings, and people consent to delegate the task of governance to elected representatives. Government is thus instituted, through representation, for persons and their interests.⁵⁷ Democracy in a federal political system additionally recognizes that people of the constituent units may have different interests from the majority will of an entire country.⁵⁸ This premise would logically lead to the conclusion that second chambers should represent regional *people*.⁵⁹ At the same time, people of constituent units in a federation have their own regional governments established through representative democracy, and these democratically legitimized constituent state governments are “constrained in pursuing what may be in the best interest of these regional populations by the powers that have been assigned to the central government.”⁶⁰ It is logical again that representation in national second chambers should be given to the regional *governments* so that they can codetermine national policies on behalf of their electorates.⁶¹

The choice of either alternative is related to the kind of second chamber organization. There are two different design models for second chamber representation: *senate* and *council*.⁶² Whereas in the senate model second chambers represent regional people, in the council model they represent constituent unit governments.⁶³ In the senate model, which is adopted in Australia, USA (since 1913)⁶⁴ and some Latin American presidential federations, senators come to office through direct election by the population of the constituent units and have as free mandate as that of lower house members. They are not therefore bound by instructions or any other form of

⁵⁷ James Madison, *The Federalist*, No.54, cited in Burgess, *supra* note 4, p.194.

⁵⁸ Hueglin & Fenna, *supra* note 27, p. 182.

⁵⁹ *Ibid.*

⁶⁰ *Id.*

⁶¹ *Id.*

⁶² *Id.*, pp.59-61.

⁶³ *Id.*, p.182.

⁶⁴ It is ratification of the Seventeenth Amendment to the US Constitution that introduced direct election for the American Senate.

guidance from state governments.⁶⁵ In the council model, on the other hand, which is rooted in the German federal tradition and recently adopted in South Africa, councilors are instructed representatives of constituent unit executive governments who may represent the regional people only indirectly.⁶⁶

There is also a half-way approach that combines aspects of the senate and council models: this is *legislative election*, adopted in Austria and India. In this approach, members of the second chamber are chosen by regional legislatures rather than by regional people or executive governments.⁶⁷ In a presidential federation, legislative election of second chamber may be assimilated more to the popular than to governmental representation, because the separation of the legislature from the executive branch leaves the latter unrepresented and indirectly allows the regional legislature, which is directly elected by regional population, to indirectly guarantee regional popular preference.⁶⁸ In parliamentary federations, legislative election would likely reinforce executive representation. Because the regional executive is always the majority in the regional legislative organ, it easily manages to select the representatives it deems would protect its interest by using its majority votes in the legislature. In effect, this would convert the system to the council model.

In principle, representatives in the legislative election approach may be free to vote as they choose (to which extent the approach more closely approximates the senate rather than the council model). Nevertheless, how they vote may depend on the power configurations in the constituent unit assemblies that elect them. This is particularly the case in parliamentary governmental form,⁶⁹ an extreme example being set by the Canadian parliamentary federation's appointed second chamber, where members are

⁶⁵ *Id.*, p. 60.

⁶⁶ *Id.*, p. 60-61, 183. The council model of second chamber organization, which is also seen as practically consistent with the federal principle of federating unit representation, is intrinsically associated with *administrative federalism*.

⁶⁷ *Id.*, pp. 61, 182-183. There are two alternative models for second chamber representation in Ethiopia: legislative election or direct popular election. Yet, the former is more likely to prevail as legislatures have the power to decide whether or not to resort to direct popular election. See *infra* note 91.

⁶⁸ *Id.*, p. 61. Until 1913 when the Seventeenth Amendment came into force, US senators were elected by their respective state legislatures; see also *supra* note 64.

⁶⁹ *Id.*, p. 182.

appointed by an individual – the provincial governor-general subject to consultation with and approval by the prime minister.⁷⁰

Since upper house design model is a function of circumstantial factors that are specific to each federation, in which form of government may be only one of them, the connection between second chamber organizational models and form of government appears elusive. Yet, most parliamentary federations adopt either the council model or its *affiliates* – legislatively elected or appointed second chambers. Such models have presumably been adopted to facilitate cooperative federalism and, as government and legislature are merged together, to bring the two legislative houses to a common course of effective governance where otherwise it would be likely that government will be crippled because of impasse and legislative deadlock. But the fact that some parliamentary federalism has adopted a senatorial model of directly elected second chamber, where again other factors that prevailed in the polity during federal formation have shaped the kind of second chamber,⁷¹ suggests that generalizations are difficult to make. In such federations, the apparent conflict between popularly elected independent upper house and a Westminster-based parliamentary system is revealed in practice through a party discipline establishing its grip on the political system and eliminating the federal quality of the Senate with a view to artificially avoid the potential for confrontational deadlock between the two houses.⁷² Notwithstanding some reservations, it may thus be posited that genuine coherence of federal bicameralism into parliamentarianism in terms of both theoretical validity and practical applicability requires to a large extent the second chamber to be organized on the basis of the council model or its variants in parliamentary federations. On the other hand, the senate model suits presidential federations because it reinforces the separation of powers doctrine and the principle of checks and balances by further dividing the power of the legislative branch to two co-equal chambers, with the executive existing separate from and independent of the legislature considerably reducing the risk of total governmental collapse posed by legislative gridlock.

⁷⁰ *Id.*, p. 192.

⁷¹ *Id.*, p. 209; the strongly democratic basis of Australian politics, also marked by the homogeneity of the population, reinforced the inclination for a popularly elected version of the American senate model. Furthermore, strong upper houses were an established part of governmental system in the Australian colonies in the late 19th century.

⁷² *Id.*, p. 214.

The real question that determines the substantive role of second chambers in a federation lies in the legislative power orientation: answering either /both of the two basic questions highlighted above does not matter if the upper house does not have a role to play. Hence, the third basic question, “*what powers to give to second chamber,*” needs to be answered.

The power given to second chambers varies with the form⁷³ of the constitutional government in the federation. While bicameralism with co-equal legislative powers conferred on the two chambers is generally the tendency in presidential federations, weakened second chambers are common among parliamentary federal systems. The argument for equal second chamber powers is that federal bicameralism in its very essence addresses the need to balance the popular or majority will by the compounded will of self-governing regional peoples or their governments, and to guard second chambers against overturning and outvoting by parliamentary majorities in the first chamber.⁷⁴ From a federalist point of view, second chambers could even exercise special powers holding a superior role in matters of an inherently federal nature, in addition to joint legislative power with the lower house on other matters.⁷⁵ The US Senate, for instance, exercises special powers with regard to the ratification of treaties, approval of executive appointments, and appointments to the Supreme Court.⁷⁶

In parliamentary federal systems, however, requirements of democratic control and responsible government provide serious arguments in favor of weakened second chambers. The very “essence of representative democracy” requires the “most truly democratic” chamber to have the last say on at least the core matters of governance.⁷⁷ Moreover, the parliamentary conventions of responsible government may have resulted in weakened second chambers. Historically, this had its origin in the British constitutional tradition, on the basis of which so-called Westminster model federations are adopted, whereby the very character of federal upper houses as second chambers led to their decay because traditionally many of the federal senates or councils had no greater powers than making suspensory veto.⁷⁸ In parliamentary governance,

⁷³ Apart from form of government, the status and strength of the constituent units before the federation may contribute to bicameral legislative equality or otherwise.

⁷⁴ *Id.*, p.183.

⁷⁵ *Id.*, p.184.

⁷⁶ US Constitution, Article II, Section 2[2].

⁷⁷ Hueglin & Fenna, *supra* note 27, p.184.

⁷⁸ De Minon, *supra* note 15, p.239.

where governmental accountability to the people is ensured through elected representatives, the executive – prime minister and cabinet – is responsible only to the popular house, of which prime minister and cabinet are members, and therefore the popular chamber, the lower chamber, becomes an arena for the true political contest in parliament.⁷⁹ Since the executive government cannot be accountable to two legislative chambers which might vote differently on a particular issue and where the stand-off between the two may create a considerable stalemate leading to governmental collapse, second chambers cannot have co-equal powers.⁸⁰

Considering the need for a weakened second power, Hueglin and Fenna state that the relative powers of federal upper houses have been curbed in three alternative ways: to give second chambers only a suspensive veto whereby legislation may only be delayed for a defined period of time but not vetoed altogether; to regard them as organs of last-resort mechanism for resolving disputes; and to limit the policy fields in which second chambers have equal powers.⁸¹ However, second chambers should be given special or exclusive powers with regard to “matters of inherently federal nature” even in a parliamentary federation, regardless of the form of government, in order for them not to remain a paper work.

In light of this backdrop, the next section discusses second chamber powers in the Ethiopian parliamentary federation.

2. Roles and Powers of Second Chamber in the Ethiopian Federation

The 1995 Ethiopian Constitution establishes a federal state structure, the Federal Democratic Republic of Ethiopia (FDRE).⁸² Like most federal constitutions, it recognizes a bicameral national assembly, or the “Federal

⁷⁹ Walker, P., ‘Federalism in the Commonwealth’, *Journal of the Parliaments of the Commonwealth*, Vol.13, 1961, cited in De Minon, *supra* note 15, p.240. The Fundamental Law of the ex-Belgian Congo in 1960 offers counter-evidence to the thesis that prime minister is responsible only to the lower house. The law made the prime minister responsible to both houses that enjoyed the same powers. This was maintained in the 1964 Constitution. De Minon, *supra* 15, p.240.

⁸⁰ Hueglin & Fenna, *supra* note 27, p.184.

⁸¹ *Ibid.*

⁸² Article 1, Constitution of the Federal Democratic Republic of Ethiopia Proclamation, 1995, *Federal Negarit Gazeta*, Proclamation No.1/1995, 1st Year No.[hereinafter FDRE Constitution]; see also Declaration of the Establishment of the Federal Democratic Republic of Ethiopia, 1995, *Federal Negarit Gazeta*, Proclamation No. 2/1995, 1st Year No. 2.

Houses” as it is called in the language of the Constitution. The bicameral national assembly consists of the *House of Peoples’ Representatives* (HPR) and the *House of the Federation* (HoF).⁸³ Federalism and bicameralism are also made to co-exist with a parliamentary form of government.⁸⁴ Like any federation, the Ethiopian federal exercise is conditioned by the consideration of certain collective territorial interests having political salience. And, it has a constitutionally stipulated bicameral institutional setting at the center in order to guarantee these interests. Below, a brief discussion of what these interests are is followed by an insight into the power configurations of the second chamber. Crucially, the power configuration of the second chamber is examined with a view to assess its effectiveness in guaranteeing the interests within the context, and indeed simultaneous presence, of various factors, both formal (constitutional) theoretical and informal (extra-constitutional) practical.

2.1. Collective Roots of and Interest Distribution in the Bicameral Federal Arrangement

The Ethiopian Constitution establishes the sovereignty of the Nations, Nationalities and Peoples of Ethiopia, declares itself as the expression of their sovereignty, and states that such sovereignty is realized through systems of both direct and representative democracy.⁸⁵ Thus, in essence collectivity on the basis of the *nation*, *nationality* or *people* criteria is constitutionally elevated over and above individuality of persons. It is again these groups – nations, nationalities, peoples – that have primacy of protection via the bicameral scheme of representation in the central decision-making procedure.⁸⁶ At first glance, this seems to blur the very relevance of bicameralism since in any order nations, nationalities, and peoples are subjects of primary constitutional protection. In order to evaluate the validity of this statement, however, it is crucial to see various specific constitutional provisions, particularly those on the power structure of the lower house and upper house, and the political practice.

⁸³ *Id*, Article 53.

⁸⁴ *Id*, Article 45.

⁸⁵ *Id*, Article 8. The preamble of the Constitution also declares that Nations, Nationalities and Peoples have, through the Constituent Assembly they elected duly and out of free will, adopted the Constitution as a binding instrument.

⁸⁶ *Id*, Article 62.

Elsewhere, the Constitution stipulates that the constituent units of the federation, states, are to be delimited based on “settlement patterns, language, identity and consent of the people concerned.”⁸⁷ This means that the territorial distribution of authority, which is the very essence of a federal design, has as its sole organizing principle ethno-linguistic identity markers. Also, the nomenclature of the nine states listed under Article 47(1) clearly confirms that statehood follows ethno-linguistic identification with sub-national political groups.

Here, it very important to see what a *state* recognized as such on ethno-linguistic lines, which is structured into the membership of the federation and having a distinct and theoretically unassailable government of its own with all the three traditional powers intact,⁸⁸ on the one hand, and *nation*, *nationality* or *people* as a collective identity, endowed with full sovereignty, on the other, would constitute. Is there a difference, in essence, between the interests they represent? If there is, to whatever degree, divergence is bound to occur between their representation at least in the second chamber at the center, as one of them, notably the constituent state, is apparently left unrepresented or underrepresented. The author believes that explaining this situation will help to point out the real collective interests purported to be represented in the bicameral assembly.

What is, then, meant by nations, nationalities and peoples? The literal appearance of these terms in the Ethiopian Constitution seems to suggest a difference in degree among them, but the Constitution does not provide any formal criteria for distinguishing one from the others. What it has instead done is to give a vague common definition that brings each of them, to be so, under the scrutiny of similar set of criteria. According to Article 39(5) of the FDRE Constitution:

“A ‘Nation, Nationality or People’, for the purpose of [the] Constitution, is a group of people who have or share a large measure of a common culture or similar customs, mutual intelligibility of language, belief in a common or related identities, a common psychological make-up, and who inhabit an identifiable, predominantly contiguous territory.”

⁸⁷ *Id.*, Article 46.

⁸⁸ *Id.*, Article 50. According to the general structure of state organs spelled out under article 50, the Federal Democratic Republic of Ethiopia comprises the federal government and the state members, both having their own legislative, executive and judicial powers with regard to matters constitutionally allocated to each.

Nation, nationality or people, under the definition, refer to a collective entity. It is a “group of people”, and each of them, to be so, should undergo an ethno-linguistic identity orientation along territorial lines. To this extent, the interest nation, nationality or people represent coincides with that represented by a state member; it is a nation, nationality or people, fulfilling the definitional criteria, which can form a state member of the federation. But the terms “nation”, “nationality” and “people” are still not meant qualitatively to be the same, though they are subject to a similar set of definitional factors and are intended to produce the same effect. According to David Turton, a reason for use of these three different terms could be that they are instrumental in making “constitutional theory” apparently conform with a “highly awkward reality”.⁸⁹ While the theory makes Ethiopia a country with “ethnically and linguistically homogenous and territorially contiguous constituent units, each with a right to self-determination as a distinct ‘nation’,” in reality Ethiopia is home to about eighty “ethno-territorial groups varying enormously in size, all of which satisfy the definition but none of which have clear-cut territorial and linguistic boundaries, and only six of which have ‘mother states’ named after them,” leading to a differential reference to the country’s ethno-linguistic territorial groups – the six groups as “nations” and the others as “nationalities”, or “peoples”.⁹⁰ Viewed in this sense, the nation-nationality-people formula produces the effect of entitling some ethno-linguistic groups to separate statehood in the federation and putting others in conglomerate

⁸⁹ Turton, D., ‘Introduction’, in David Turton, (ed.) *Ethnic Federalism: The Ethiopian Experience in Comparative Perspective*, James Currey Ltd., Oxford, 2000, p.18 [hereinafter Turton].

⁹⁰ *Ibid*; the “nation” concept, as Turton used it, seems to imply cultural and linguistic homogeneity of people inhabiting a contiguous territory, entitling it to self-determination to a separate constituent statehood in the federation and even having the basis for self-determination to the fullest, i.e., to an independent nation-statehood via secession. “Nationality” or “people”, on the other hand, describes a small, sometimes tiny, ethnic group, in a mixture of same, which does not constitute an overall majority and is not considered large enough to form its own state in the federation. Oromo, Amhara, Somali, Afar, Tigre, and Harari are the six groups that are considered “nations” and have their own “mother states”, but in reality even the states named after these groups are not culturally and linguistically homogenous. The remaining groups are “nationalities” or “peoples” which are contained in the three states displaying cultural and linguistic heterogeneity.

statehood while even leaving some other minorities, thereby rendering the Ethiopian ethno-linguistic federal design “incomplete”.⁹¹

Of course, Article 47(2) provides that nations, nationalities or peoples within the enumerated nine states have the right, subject to fulfillment of the procedures stipulated by the Constitution, to establish its own state at any time. But this is yet to be realized in the Ethiopian constitutional practice despite persistent claim by some groups for same, and what is being noted here remains unaffected at least for now. Again to this extent, the interest and representation of nations, nationalities and peoples may differ from that of states. Hence, the question “who can claim to have a set of preferences differing from that of the whole federation and, thus, is practically represented in the second chamber – is it the people as individual members, the nations, nationalities or peoples as collective identities, or the states as governments?” must be answered.

Basically HoF, the second chamber, is composed of representatives of nations, nationalities and peoples.⁹² It is thus obvious that every nation, nationality or people would be represented as a group in the central decision-making process regardless of whether or not it constitutes statehood in the federation. Seen alone, this gives the impression that a state member formed out of many small nationalities or peoples will have more representatives than a state with more or less homogenous nation. This is particularly so if such a state could have its hands in the selection process by recruiting representatives affiliated with the state government: this appears to be the case in Ethiopia where State Councils, endowed with political supremacy in accordance with parliamentary governance, have the power to elect members of the upper house.⁹³ This asymmetry in representation could be said to conflict with the “equality of member states” provision of the Constitution – equality of all the

⁹¹ Ethiopia, not unlike other multinational federations, can be considered “partial ethno-territorial federalism”. See, e.g., Duchacek, I., ‘Antagonistic Cooperation, Territorial and Ethnic Communities’, *Publius: Journal of Federalism*, Vol. 7, 1977, pp.17-18, cited in Assefa Fisseha, *Federalism and the Accommodation of Diversity*, Wolf Legal Publisher, Nijmegen, 2005, p. 232.

⁹² Article 61(1), FDRE Constitution.

⁹³ According to Article 61(3) of the FDRE Constitution, it is within the power of the State Council to elect members of the HoF by itself or cause them be elected by the concerned nation, nationality or people. In accordance with the parliamentary system of government that the FDRE Constitution envisages, the State Council is the highest organ of state authority, with the executive formed out of it and responsible to it; see Articles 45 *cum* 50(3), FDRE Constitution.

states in terms of “rights and powers”,⁹⁴ especially regarding their status and role in the national government and its institutions, including the second chamber. Similarly, the composition of the HoF through a compounded representation⁹⁵ based on the size of nation, nationality and people involves inequality for it, on the one hand, may be counted on to counterbalance the weight of representation a state composed of many nationalities and peoples may have, and, on the other hand, could contravene the constitutionally declared sovereignty of, and thus equality among, each nation, nationality and people upon which the federation is based.

In contrast, the present Indian federal structure, though organized along ethno-linguistic lines with the constituent states formed out of particular ethnic groups,⁹⁶ does not give sovereignty to ethno-linguistic territorial groups: it rather recognizes the sovereignty of the people of the union as a whole. Nor does it seek to represent in the Union Parliament’s second chamber, the Council of States, linguistic groups that do not constitute statehood in the union.⁹⁷ In other words, a group interest based in ethno-linguistic identity orientation would have representation in the second chamber only when these groupings coincide with constituent statehood. Again, because no sovereignty is conferred on the constituent states, federalism in India recognizes no concept of equality of constituent states in terms of rights and powers and, thus, no equality of the states’ representation in the Council of States.⁹⁸ Because the allocation of seats in the upper house takes account of population size of the constituent units, reinforcing the popular basis of the lower house, the Indian federation is regarded as “one of the most demos-enabling on the world.”⁹⁹ Apart from the supposed absence of unit equality, the members of the Indian Council of States are, quite similarly with that of Ethiopia, chosen by the constituent states’ legislatures

⁹⁴ *Ibid*, Article 47(4).

⁹⁵ *Id*, Article 61(2).

⁹⁶ Bhargava, R., ‘The Evolution & Distinctiveness of Indian’s Linguistic Federalism’, in Turton, *supra* note 89, pp.100-102[hereinafter Bhargava].

⁹⁷ Majeed, A., ‘Republic of India’, in Kincaid J. & Tarr, G. (eds.), *A Global Dialogue on Federalism: Constitutional Origins, Structure, and Change in Federal Countries*, Volume I, McGill-Queen’s University Press, Montreal, 2005, pp. 183-184, 187 [hereinafter Kincaid & Tarr].

⁹⁸ *Id*, p. 187.

⁹⁹ Bhargava, *supra* note 96, p.112.

through an indirect election that is more likely to end up in the representation of constituent unit governments rather than the regional population.¹⁰⁰

Although the classic theory of federalism requires that all the units in a federation be represented in the second chamber on a parity basis instead of representation by population on the basis of majority rule, strict equality results in the overrepresentation of small units. As already noted, the ideal solution to this dilemma is present in the German system of weighted representation – successful in taking account of economic differences between units which are nonetheless culturally homogenous. Even in societies, such as Ethiopia, where the forces of deep cultural-national diversity have resulted in a federal constitution that declares the sovereignty of “nations, nationalities and peoples” and where the need for equality of representation in the second chamber becomes stronger, some account of size may be necessary. Yet, the author believes the composition of the Ethiopian second chamber is based more on “representation by population” than it should be. According to Article 61(2) of the FDRE Constitution, which reads: “Each Nation, Nationality and People shall be represented in the House of the Federation by at least one member; Each Nation or Nationality shall be represented by one additional representative for each one million of its population,” does not however stipulate a maximum number of representatives a nation, nationality or people may have in the HoF. Accordingly, a nationality with one million populations will have only two representatives while a nation with thirty million will have thirty-one – a great disparity. As the Ethiopian population is dominated by some five or six nations or nationalities, with more than seventy ethno-linguistic groups having population that is numerically insignificant, one may rightly question the sovereignty and supposed equality that the Ethiopian nations, nationalities and peoples are constitutionally entitled to; because the small groups could still be outvoted in the second chamber that somehow reflects the majoritarian thrust of the lower house.

Of course, the allocation is not purely majoritarian and addresses some degree of proportionality, but it is not proportional enough to answer the myth of sovereignty of nations, nationalities and peoples that the Constitution stipulates. It is so disproportionate as to the interests of smaller nationalities that even some states formed out of many nationalities, such as the Southern

¹⁰⁰ Hueglin & Fenna, *supra* note 27, pp.61 and 183; see also *supra* note 67 above. In parliamentary governance, legislative election quite effectively ends up in executive representation. Cf. again page 13 above, and *infra* note 104.

Nations, Nationalities and Peoples' State (SNNPS),¹⁰¹ that theoretically were to have numerous representatives in the HoF as compared to states formed out of homogenous nation in perceived conflict with constitutional equality clause, can be outnumbered and outvoted. Primacy of constitutional protection is given to nations, nationalities and peoples, as their expressly stipulated sovereignty suggests, and not to the states as such. The Constitution is more or less clear in recognizing the nations, nationalities and peoples as the founders of the federation, with the member states as such serving only instrumental purposes, and thus parity (or at least appropriate proportionality) with regard to representation in the HoF of nations, nationalities and peoples is given more constitutional base than equality of constituent states as such. The Indian Council of States also takes account of size of the units by population number, but the federal structure does not confer any kind of sovereignty on the units and even impliedly recognizes inequality in representation.¹⁰² Nevertheless, it can be argued that both in Ethiopia and India, despite some concessions for proportionality of representation by taking account of the number of individual persons of units, second chambers are arenas for representation of territorial entities as a group or collectivity, which more often than not are channeled through constituent states' governments, rather than direct representation of regional population.

For more comparative purposes on this regard, second chambers in Switzerland and Nigeria are relevant, both federations being rooted in diverse ethnic cleavages. In the Swiss federal structure, whose territorial distribution of authority guarantees the protection of asymmetric cultural and linguistic groups,¹⁰³ cantonal sovereignty meant that the upper house (the Council of States) in the bicameral parliament (the Federal Assembly) is originally intended to represent cantonal interests on the basis of equality irrespective of size with election of the members by cantonal legislatures.¹⁰⁴ However, the responsibility of electing the deputies to the Council of States has gradually

¹⁰¹ FDRE Constitution, *supra* note 82, Article 47(1)(7).

¹⁰² De Minon, *supra* note 15, pp. 238-239.

¹⁰³ Schmitt, N., 'Swiss Confederation', in Kincaid & Tarr, *supra* note 97, pp. 348-353. But, unlike in Ethiopia and India, linguistic and religious cleavages do not coincide with cantonal boundary, and such cross-cutting of cleavage patterns has undermined the potential for political mobilization along particular identity group and significantly reduced minority-majority tensions which paved the way for the emergence and survival of Switzerland as the longest functioning multicultural federation.

¹⁰⁴ *Id.*, pp.354, 358, 360.

been taken away from the cantonal legislatures and nowadays given to the people for election by universal suffrage. This implies that the Council of States is merely another forum for representing the people and its members are not instructed representatives of cantonal interests, but still the people in each canton elects equal number of deputies.¹⁰⁵ In respect of both the interest represented and the proportion of representation, the Swiss second chamber differs from its Ethiopian and Indian counterparts. The prevalence of direct popular and consociational democracy that undermined minority-majority divides despite linguistic and cultural diversity and the simultaneous conservative commitment to sovereignty of the cantons in Switzerland, absent or weak in Ethiopia and India, are the factors that explain the difference.

The Nigerian federation is also a structural design for the accommodation of ethno-territorial cleavages. It is unique in, unlike its Ethiopian and Indian counterparts, recognizing territorial organization on the basis of religion, thereby paving the way for the “establishment of a multiplicity of subunits that are not strictly coterminous with ethnic group boundaries.”¹⁰⁶ The Nigerian multi-state federation’s legislature is also bicameral, the two federal chambers being the Senate (second chamber) and the House of Representatives (first chamber).¹⁰⁷ Just like the Swiss Council of States, but unlike the Ethiopian HoF and the Indian Council of States, the Nigerian Senate is composed of equal number of representatives from each of the thirty-six states who are directly elected by the state people.¹⁰⁸ But what explains the relative strength in terms of its composition (vis-à-vis the lower house), as senators are free from the instruction or guidance of state government, is the adoption of presidentialism that entailed a strict separation of powers and personnel between the federal executive and legislature.¹⁰⁹

¹⁰⁵ *Id.*, 360. Switzerland is a country where republican values, American system of separation and checks and balances, and direct popular democracy prevail; thus, the system is generally demos-enabling. But the conservative thrust of the federation as a “coming together” and the recognition of cantonal sovereignty have prevailed in maintaining equality of representation regardless of size in the Council of States.

¹⁰⁶ Suberu, R., ‘Nigeria: Dilemmas of Federalism’, in Amoretti, A. & Bermeo, N. (eds.), *Federalism and Territorial Cleavages*, The Johns Hopkins University Press, Baltimore, 2004, pp.332-338.

¹⁰⁷ *Id.*, p. 343.

¹⁰⁸ *Ibid.*

¹⁰⁹ *Ib.*

2.2. HoF's Power Configuration vis-à-vis the Lower House

The form and character of sub-national autonomy and sub-national unit role at the center in a federation partly depends on the specific context in which the sub-national units are established. Also, second chambers are arenas for exercising shared-rule, and these patterns help to explain the extent to which sub-national groups participate in the national policy-making process.

The historical patterns of sub-national unit formation in a federation can be generally categorized into two: devolutionary and aggregative.¹¹⁰ An aggregative federation is created by the “coming together” of previously independent entities, which was the case with the United States, Switzerland and Australia. In aggregative federation, the concern is more with the establishment of a common government at the center with constitutionally entrenched forums for shared national governance than with the detailed stipulation of the federating units’ self-evident autonomy.¹¹¹ This pattern suggests that the units would have genuine participation (at least theoretically) at the center via, among others, strong second chamber. A devolutionary federation, on the other hand, is created by the structural rearrangement of a pre-existing larger political union, the purpose of which is usually to “hold together” units; Belgium, Germany, India, Pakistan, Nigeria and Spain are a few examples.¹¹² The tendency in devolution is to seek ways for ensuring sub-national self-rule.

The Constitution of the FDRE appears to fulfill a “myth of origin” for the federal state structure by declaring it to be the result of a free mutual negotiation and consent of previously independent sovereign nations, nationalities and peoples – as if it is an aggregative federation.¹¹³ However, the reality is in the opposite: the nations, nationalities and peoples and their states did not have prior existence, and the federation is simply created by the devolution of power from a pre-existing centralized unitary state to ethno-linguistic units.¹¹⁴ Not uncommon in devolutionary federations, such a reality

¹¹⁰ Watts, R. ‘Foreword: States, Provinces, Lander, and Cantons: International Variety among Subnational Constitutions’, *Rutgers Law Journal*, Vol. 31, 2000, p. 945.

¹¹¹ *Ibid.*

¹¹² *Ibid.*

¹¹³ Turton, *supra* note 89, p.14. The Preamble as well as Articles 8 and 39 of the FDRE Constitution illuminate the matter.

¹¹⁴ Assefa Fiseha, ‘Theory versus Practice in the Implementation of Ethiopia’s Ethnic Federalism’, in Turton, *supra* note 89, p. 132.

has resulted in an insignificant sub-national participation at the center, and the Ethiopian case is regarded as fit to what is called “withholding federation” whereby the start with a centralized structure and unease with the political implications of devolution tend to make national powers dominant, and more emphasis is placed on “self-rule” than “shared-rule.”¹¹⁵ The overall division of legislative and executive powers places overriding authority in the hands of the center, with the states serving only as instruments of implementation.¹¹⁶

This background along with the parliamentary system of government has significantly affected shared rule the states might exercise at the center via the second chamber. The bicameral “Federal Houses” setting at the center does not give a law-making power to the HoF, the upper house. Instead, it confers exclusive legislative authority with regard to virtually all powers allocated to the federal government on the HPR, the lower house.¹¹⁷ Inconsistent with the constitutionally stipulated sovereignty, nations, nationalities and peoples, as represented in HoF, are stripped off shared power at the center. Relegation of the HoF from the law-making process presents another constitutional conundrum because it conflicts with the entitlement of every nation, nationality and people to equitable representation in the federal government.¹¹⁸

The Nigerian federal system – which, like the Ethiopian federal system, is the result of devolution from the centre – appears to provide a puzzling contrast. The Nigerian Senate enjoys equivalent policy-making powers with the House of Representatives, with the former even exercising exclusive authority for the confirmation of major federal appointments.¹¹⁹ Note however that Nigeria is a presidential federation where there is barely a need, since executive political authority resides in a separate presidency,¹²⁰ to compromise the very essence of confederal-type co-equal legislative second chamber as

¹¹⁵ Ghai, Y., ‘Ethnicity and Autonomy: A Framework for Analysis’, in Ghai, Y. (ed.), *Autonomy and Ethnicity: Negotiating Competing Claims in Multiethnic States*, Cambridge University Press, Cambridge, 2000, cited in Assefa, *supra* note 114, p. 133.

¹¹⁶ Assefa, *supra* note 114, p. 133.

¹¹⁷ FDRE Constitution, *supra* note 82, Articles 51 *cum* 55.

¹¹⁸ *Ibid*, Article 39(3). The right to equitable representation in the federal government is reduced to almost nothing since representation in government is hardly meaningful without participation in law-making.

¹¹⁹ Suberu, *supra* note 106, p. 343.

¹²⁰ *Ibid*. Cf. note 108 above. Note also that the Nigerian federation is a centralized one, owing not to the domination of the upper house by the lower house but to practical political factors.

forum of non-majoritarian regional group interest guarantee in favor of the popular and majoritarian lower house. Similarly, the two chambers of the bicameral parliament in the Swiss federation have “exactly the same powers”.¹²¹ But this appears to have something to do with the aggregative nature of the federation than with the form of governance. As seen below, the Swiss governmental form is not presidential. Incidentally, the Canadian second chamber (the Senate) which was formally given equal powers with the first chamber (the House of Commons) appears to be comparable with its Nigerian and Swiss equivalents.¹²² Yet, the Canadian situation has some peculiarity: while the undisputed “primacy of parliamentarianism” and the “appropriateness of popular democratic rule through the lower house”, along with the historical creation of the provincial governments by devolution from an existing legislative union, point to a weakened upper house, the Senate has however no legislative role to play except provide “sober second thought”. This is because it is elected neither directly by provincial population nor indirectly by provincial governments: instead it is subject to partisan appointment by the prime minister that effectively brings it under the control of parliamentary majority in the lower house.¹²³

In Ethiopia, where the parliamentary form of government is constitutionally prescribed,¹²⁴ the lower house (HPR) is entrusted with the highest authority of the central government. The executive is formed and led by a political party or a coalition that has majority seats in this very house.¹²⁵ And, the fact that the house is responsible to the people of the federation as a whole indicates its majoritarian tendency.¹²⁶ Thus, the very organization of the central government places the task of governance in the lower house, and the second chamber is officially kept out of any meaningful role in shared rule.

Second chambers in other comparable jurisdictions are also generally weak. In India, where the Westminster-style parliamentary federation is established, the power of the lower house of parliament is significant. And, “the government’s primary responsibility is to this house rather than to the

¹²¹ Schmitt, *supra* note 103, p. 360.

¹²² Hueglin & Fenna, *supra* note 27, p. 190-193.

¹²³ *Id*, p. 193; Thus, formal equality is just a paper work, and in practice the second chamber in Canada’s parliamentary federation has a diminished legitimacy in the eyes of constituent units that seek a genuine shared rule at the center.

¹²⁴ Article 45, FDRE Constitution.

¹²⁵ *Ibid*, Article 56.

¹²⁶ *Id*, Article 50(3).

upper house of the states.”¹²⁷ In Switzerland as well, the bicameral Federal Assembly (consisting of National Council and Council of States), elects the executive, the Federal Council, and imposes ultimate supervision on it; there is also overlap of legislative and executive powers despite certain functional differences.¹²⁸ Unlike in a typical parliamentary system, however, no one house of parliament can have political hegemony since both houses exercise a joint governing authority and the executive cannot be dissolved by the legislature and vice versa.¹²⁹ The workability of the system lies in the fact that the possibility of conflict between the two legislative chambers, the very fear of which leads to lower house political superiority in parliamentary governmental form, is very minimal because the popular election of both national councilors and councilors of state in the same district, despite differences in number, makes them responsive to constituent interests.¹³⁰

The generally weakened position of second chambers in parliamentary forms of government is clear from the foregoing discussion. However, this should not automatically lead a conclusion that territorial group interests remain unrepresented. The “federalization of the lower house”¹³¹ may supplement a weak second chamber. This can be done by the modification of the “representation by population” principle in favor of the formula of sub-representation of demographically large units so that the more populous units would not have overwhelming legislative majority and outvote minorities in small units.¹³²

¹²⁷ Majeed, *supra* note 97, p. 181.

¹²⁸ Schmitt, *supra* note 103, p. 359.

¹²⁹ *Id.*, pp. 358-359. The executive is formed on the basis of collegiality principle; it is created having regard to consociational mechanisms and operates subject both to parliamentary procedures and popular will. As explained in relative detail below, Ethiopia should take lessons from such experiences.

¹³⁰ Bachtiger A. & Steiner, S., ‘Switzerland: Territorial Cleavage Management as Paragon and Paradox’, in Amoretti & Bermeo, *supra* note 106, p. 36 [hereinafter Bachtiger & Steiner]; here, the author is not suggesting councilors of states are totally unconcerned with the interest of the cantons they represent. Responsiveness to constituent interest is just a matter of degree which could increase with the popular election and freedom (from instructions of cantonal governments) of second chamber members.

¹³¹ De Minon, *supra* note 15, p. 240.

¹³² *Id.*, pp. 240-241. This was the case with the second Indonesian Constitution of 1949 which tried to equalize the representation of larger and small units. A similar formula was used in Malaysia from 1963 until 1965 in order to keep racial balance despite heavily populated Chinese Singapore. The same solution was resorted to by the Burmese Constitution of 1948 for the Karen and Cachin members of the House of the People.

In Ethiopia too, the Constitution states that the distribution of seats in the HPR should account for the representation of minorities, despite the general provision that this house is constituted through majoritarian popular election on the basis of universal suffrage.¹³³ Of course, the Constitution states that subsequent legislation is to be enacted for the “special representation of minority Nationalities and Peoples”¹³⁴ and out of the maximum 550 seats of the house a minimum of 20 seats is reserved for the representation of minority nationalities and peoples.¹³⁵ An electoral statute issued pursuant to this constitutional provision authorizes the HPR, not the HoF, to determine who these minority nationalities and peoples entitled to special representation are.¹³⁶ Once again, the HoF – an organ for the protection of nation-nationality-people interests – is removed from this rather slender, but apparently traditional to it, task. Even when these minority nationalities and peoples secure seats in the lower house, they cannot have their votes effectively count on since all laws and decisions in the HPR are adopted via the procedure of parliamentary simple majority.¹³⁷ Thus, the minorities could still have difficulties in influencing decisions pertaining to matters relating to their group interest; and hence, the significance of the special representation given to these groups in the first chamber is elusive.

Having highlighted the generally weakened position of the second chamber in Ethiopia, let us now reflect on the specific powers assigned to HoF under the FDRE Constitution. The most important powers of the HoF can be broadly put into three categories: (1) interpretation of the Constitution, resolution of constitutional disputes and determination of constitutional group rights;¹³⁸ (2) determination of the division of subsidies and joint tax revenues;¹³⁹ and (3) amendment of the Constitution.¹⁴⁰

Though a federal system exhibits a constitutional division of power between government levels and among various governmental branches, and

¹³³ Article 54, FDRE Constitution.

¹³⁴ *Ibid*, Article 54(2).

¹³⁵ *Id*, Article 54(3).

¹³⁶ Article 2(7) ¶ 3, Proclamation to Make Electoral Law of Ethiopia Conform with the Constitution of the Federal Democratic Republic of Ethiopia (Amendment) Proclamation, 2005, *Federal Negarit Gazeta*, Proclamation No.438/2005, 11th Year, No. 23.

¹³⁷ Article 59, FRDE Constitution.

¹³⁸ *Ibid*, Articles 62(1), 62(3), 62(6) and 83.

¹³⁹ *Id*, Article 62(7).

¹⁴⁰ *Id*, Article 105.

sanctions it through a constitutional supremacy clause, disputes about the terms of this division is inevitable owing to the artificiality and incompleteness of division of power in political life and the generality and inconclusiveness of constitutional language.¹⁴¹ And, institutions that handle the task of demarcating the boundary of powers and of enforcing the supremacy clause of the constitution have been set up in most federations. It is argued neither federal government nor the states must unilaterally assume this institutional task: there must be a separate and legitimate institution that handles the task.¹⁴² In some federations, e.g. Switzerland, the task is vested in the people via the exercise of participatory democracy.¹⁴³ Unlike most federations, the Ethiopian federal system gives the power of review of constitutionality and intergovernmental dispute resolution to a non-judicial, rather political non-legislative body, the HoF.¹⁴⁴ The *raison d'être* is that constitution is a political covenant, and, thus, the task of fixing its terms in the course of time must be vested in the political authors.¹⁴⁵ Thus, the power of constitutional interpretation is ultimately given to Ethiopian nationalities

¹⁴¹ Assefa, F., 'Constitutional Adjudication in Ethiopia: Exploring the Experience of the House of Federation (HOF)', *Mizan Law Review*, Vol.1 No.1, 2007, pp. 4-5; see also Davis, R., *The Federal Principle: A Journey Through Time in Quest of Meaning*, University of California Press, Berkley, 1978, p. 43 and Brudney, J., 'Recalibrating Federal Judicial Independence', *Ohio State Law Journal*, Vol. 64, 2003, p.175.

¹⁴² *Id*, p. 5.

¹⁴³ Hueglin & Fenna, *supra* note 27, pp. 311-312. Note however that the Swiss federal system may be likened to that of Ethiopia in that a federal court is precluded from engaging in issues of jurisdictional power settlement and review of constitutionality.

¹⁴⁴ Among parliamentary federations that empower the regular judiciary, usually the Supreme Court, to adjudicate constitutional issues are Australia, Canada, and India, the latter two being multinational ethno-linguistic federations. Similarly, the Supreme Court in the Nigerian multinational federation assumes comparable powers. In the German parliamentary federation, the power is given not to a regular judiciary, but to a special court called the Constitutional Court. This pattern is explained in Hueglin & Fenna, *supra* note 27, pp. 275-310. See also Majeed, *supra* note 97, p. 185 regarding India, and Suberu, *supra* note 106, p. 343.

¹⁴⁵ Assefa, *supra* note 126, pp. 10-14. Fear of "judicial adventurism", as Assefa calls it, that might hijack the very document that contains the "compact between the nationalities" to fit the judges' own personal philosophies, is the reason not to give this power to the courts. Assefa also claims that longstanding negative reputation of judiciary as institution operating under the shadow of administrative branches, and the ruling elites' ideological preferences of popular judge to regular judge, have strengthened the need for a non-judicial political organ.

through the instrumentality of the HoF, a representative institution of nationalities.

Matters of technicality or legality that constitutional interpretation entails are not overlooked by the Ethiopian Constitution, however. The important political question of representation is made to operate in tandem with a competing issue of constitutionalism, and the application of these two values results in a tribunal composed of legal professionals and politicians, tribunal that is both “theoretically valid and politically legitimate.”¹⁴⁶ The requirement of legal expertise in constitutional interpretation is provided by the Council of Constitutional Inquiry (CCI), albeit merely an advisory body to the political HoF.¹⁴⁷ Being assisted by the technical expertise of the CCI, the HoF not only decides on constitutional disputes in the concrete sense, but also is empowered to resolve issues of vertical division of powers and horizontal separation of powers in the abstract sense.¹⁴⁸ Thus, as nations, nationalities and peoples do not have a direct law-making power via the HoF at the center, their power as ultimate interpreters of the Constitution helps them to vindicate their interests by enabling them to, *ex post facto*, check on the constitutionality of laws and decisions adopted by the legislative lower house.

The second category of HoF’s powers relates to revenue and financial matters.¹⁴⁹ Since the real functioning of governmental levels in a federal system is highly affected by their relative financial strength, it is no surprise that the advantaged fiscal position of most national governments would result in the centralization of federations.¹⁵⁰ The powerful revenue bases of the central government and the simultaneous enormous growth of expensive public services provided traditionally by constituent unit governments give

¹⁴⁶ *Id*, p. 11.

¹⁴⁷ Council of Constitutional Inquiry Proclamation No. 250/2001, *Federal Negarit Gazeta*, 7th Year – No. 40, and FDRE Constitution, *supra* note 80, Articles 82-84,

¹⁴⁸ *Id*, Articles 21-23, and Assefa, *supra* note 141, pp.10, 18-20, 22-24. In relation, and addition, to this, the HoF has the power to resolve interethnic/interstate border disputes and decide on right to self-determination of nations and nationalities (the right to form their own institutions of self-government, whether sub-state or state, including secession); see Articles 62(7), 98, 99, FDRE Constitution, and Articles 3(3), 3(5), 19-33, Consolidation of the House of the Federation and Definition of its Powers and Responsibilities Proclamation, 2001, *Federal Negarit Gazeta*, Proclamation No.251/2001, 17th Year, No. 41[hereinafter Proclamation No. 251/2001].

¹⁴⁹ *Id*, Articles 3(6), 3(10), 35, and FDRE Constitution, *supra* note 80.

¹⁵⁰ Hueglin & Fenna, *supra* note 27, p. 322.

rise to vertical fiscal imbalance.¹⁵¹ The same can be observed in Ethiopia where powers of taxation tilt toward the center.¹⁵² The discrepancy between the revenue raising capacity and spending responsibilities of the two governmental levels is so huge that mechanisms of vertical fiscal transfer to correct the mismatch are put in place.¹⁵³ Unlike most federations with vertical imbalance, the intelligent side of Ethiopia's revenue sharing institutional setup is that fiscal transfers from the center to the ethno-linguistic states are made by the very body that represents the ethno-territorial units, the second chamber (HoF),¹⁵⁴ and this has the potential to defend the financial interest of the units.

HoF's power over the sharing of revenue between levels of government has three aspects. One pertains to "concurrent power of taxation",¹⁵⁵ i.e., revenue sources on which both the federal government and the states are mandated to jointly levy and collect: taxes on profit, sales, excise, and personal income arising from jointly established enterprises;¹⁵⁶ taxes on profits of companies and on dividends due to shareholders;¹⁵⁷ and taxes on incomes derived from large-scale mining and all petroleum and gas operations, and royalties on such operations.¹⁵⁸ The HoF determines the

¹⁵¹ *Id.*, p. 322-323.

¹⁵² Articles 96-97, FDRE Constitution; incidentally, there are federations, e.g. Switzerland and Canada, where revenue bases between the federal government and sub-national governments are more evenly balanced, see Hueglin & Fenna, *supra* note 27, p. 323.

¹⁵³ *Id.*, pp.323-333; Australia exhibits a high degree of vertical fiscal imbalance. While it provides for financial assistance states, it also gives the Parliament (effectively the lower house) the power to do so. In India, it is even recognized that the Union Government is in a better position to raise revenues and the States in a best position to manage developmental programs and to deliver most services, and thus the imbalance is corrected by continuous transfers through the instrumentality of such institutions as the Finance Commission, the Planning Commission, and the National Development Council. For more on India, see Majeed, *supra* note 97, p.196. Nigeria's oil revenue is greatly centralized and the subnational units share in the nationally collected revenue through a system of distributive federalism. See Suberu, *supra* note 106, p. 347.

¹⁵⁴ Article 62(7), FDRE Constitution.

¹⁵⁵ Article 98, FDRE Constitution.

¹⁵⁶ *Ibid.*, Article 98(1).

¹⁵⁷ *Id.*, Article 98(2).

¹⁵⁸ *Id.*, Article 98(3); incidentally, while the mining, petroleum and gas operations are normally found in the states' territory, the *revenue that may be obtained generally from running these operations* – in case they are governmentally run – is exclusively under federal power (see Articles 51(5) and 55(2)(a), FDRE Constitution). What is to be shared with the concerned state is only the *tax revenue* collected in relation to such operations.

division of these joint tax revenues by devising systems and mechanisms for carrying out same.¹⁵⁹ The second aspect of HoF's power over financial matters has to do with subsidies the federal government would provide to states – both general purpose grants and emergency/rehabilitation/development assistance – in a manner that does not hinder the proportionate development of the federating states.¹⁶⁰ The HoF is empowered to set “a reliable and an ongoing improvement formula of subsidies.”¹⁶¹ Sharing in the federal subsidies is not an inherent right of the states, though; the HoF sets its formulae in a manner that eventually makes the states independent from subsidies.¹⁶² The third aspect of HoF's financial powers involves “undesignated power of taxation” – a power which, unlike the above two, is exercised jointly with the HPR.¹⁶³ There are various tax sources that are left out of the explicit constitutional assignment of tax powers – there is no such thing as “residual power” with regard to tax powers – such as capital gains tax and value added tax (VAT) which are currently included in federal tax laws. The problem with HoF's power with regard to undesignated taxes is that the conjoint decision-making power of the HPR makes the HoF outvoted by the more numerous and majoritarian HPR, and is likely to result in ceding such power to the federal government at the expense of the states.

The third major power HoF exercises relates to amendment of the Constitution, which, as a supreme legal document, is rightly considered “legally immutable”, and hence, subject to change through extraordinary procedure and authority beyond the normal legislative process.¹⁶⁴ A federal constitution must be rigidly entrenched against any opportunistic change on the one hand, and needs to incorporate flexibility by providing for an anticipated and authoritative mechanism of change on the other – it contains “not only rules about the political system it is describing, but also rules about itself.”¹⁶⁵ Thus, a federal constitution stipulates for the authoritative procedures of its amendment.

¹⁵⁹ Article 35(3), Proclamation No.251/2001, *supra* note 148.

¹⁶⁰ Article 62(7) *cum* 94(2), FDRE Constitution.

¹⁶¹ Article 35(1), Proclamation No.251/2001, *supra* note 148.

¹⁶² *Id.*, Article 35(5).

¹⁶³ *Id.*, Article 3(10) *cum* Article 99, FDRE Constitution.

¹⁶⁴ Dicey, A., *An Introduction to the Study of the Law of the Constitution*, 8th ed., Macmillan, London, 1915, pp. 142-143, cited in Hueglin & Fenna, *supra* note 27, p. 247.

¹⁶⁵ Hueglin & Fenna, *supra* note 27, p. 247.

The amendment procedures of a federal constitution vary from one federation to the other. Nevertheless, as a federal constitution is a rule of game fixed by bargain among various interest groups, the change to that rule of game somewhat requires a higher (than that adopted in ordinary legislative process) procedure that ensures the participation of these groups. As a compromise resulting from bargains, federal constitutions typically rely on special majority requirements: super majorities (such as two-thirds, three-fourths, or any procedure that well goes beyond simple and absolute majorities), multiple majorities (such as approval by the two legislative bodies and the states), or a combination of the two.¹⁶⁶ In some specific cases even unanimity is required, as is in Canada for amendments on parliamentary representation and language policy; but most federations, presidential and parliamentary alike, require super majorities (along with double/triple majorities): two-thirds super majority in the two chambers of India, Germany and the US, three-fifths in Spain and Brazil, and three-fourths in South Africa.¹⁶⁷

Coming back to the constitutional amendment procedures in Ethiopia, a mixture of super majority and double/triple majority rules operate, and the HoF participates in each. Less rigorous, somewhat alternative, procedures are laid with regard to *initiation* of amendments: a proposal for amendment stands if it is supported by two-thirds majority vote in the HPR, *or* by a two-thirds majority vote in the HoF, *or* by one-third of the State Councils of the Member States, each Council adopting a majority vote.¹⁶⁸ It appears simple for states to initiate amendment as only three of the nine states (each state's Council passing the proposal by an absolute majority vote), but difficulty in coordination across states may render the procedure no less simple than as it is for the HPR and HoF. Still, it remains good for states to be able to initiate constitutional amendments.¹⁶⁹

¹⁶⁶ *Id*, p. 248.

¹⁶⁷ *Id*, p. 250.

¹⁶⁸ Article 104, FDRE Constitution.

¹⁶⁹ In some jurisdictions, such as the US, India and Australia, states are not entitled to initiate constitutional amendment. To be sure, Ethiopia is not the only one to allow states to initiate amendment, as provincial governments in Canada, majority of state legislatures in Brazil and autonomous communities in Spain can all initiate amendments. In Switzerland, however, the people can initiate amendment; see Hueglin & Fenna, *supra* note 27, pp. 250-251.

Under Articles 104-105 of the FDRE Constitution, the rules of super majority operate in conjunction with double or triple majority. The Fundamental Rights and Freedoms provisions,¹⁷⁰ the Initiation of Amendments provision,¹⁷¹ and the very provision¹⁷² stipulating procedures of amendment are amended by a triple majority, i.e., two-thirds super majority in both HPR and HoF each and unanimity of State Councils with each Council voting on the basis of absolute majority. This is a rather rigorous procedure which attaches significant importance to the concerned constitutional provisions, among which the provision that recognizes the group rights of nations, nationalities and peoples to equitable shared rule and full measure of self-determination including secession is one. All the other provisions of the Constitution can be amended based on a relatively less rigorous procedure that requires a two-thirds super majority of the joint session of the HPR and HoF and two-thirds super majority of State Councils each voting on majority basis.¹⁷³ This resembles the double majority system than the triple majority as the HPR and HoF vote jointly rather than separately; and the size of HPR is far greater than that of HoF the latter's power is likely to give way in favor of the former. Overall, the involvement of the HoF in the constitutional amendment process, one of the traditional roles of second chambers,¹⁷⁴ would ensure amendments are in the interests of the collective building blocks – nations, nationalities and peoples.

In addition to the three categories of major powers discussed above, HoF exercises some additional powers that do not directly impinge upon its role as the guardian of nationalities and that are less clear and effective. It is, for example, involved in the appointment of a nominal head of state.¹⁷⁵ It can also determine civil matters that it considers are important for sustaining one economic community, only a proposal for the HPR to legislate upon.¹⁷⁶ Finally, the HoF has the power to order federal government to intervene if any constituent state, in violation of the Constitution, endangers the constitutional order.¹⁷⁷

¹⁷⁰ Chapter Three, FDRE Constitution.

¹⁷¹ *Ibid*, Article 104.

¹⁷² *Id*, Article 105.

¹⁷³ *Id*, Article 105(2).

¹⁷⁴ De Minon, *supra* note 15, pp. 239-240.

¹⁷⁵ Article 70(2), FDRE Constitution.

¹⁷⁶ *Ibid*, Article 62(8).

¹⁷⁷ *Id*, Article 62(9).

2.3. Status of HoF in the Current Ethiopian Parliamentary Political Reality

In light of all the purpose for which second chambers are established and maintained in a federal system, it is all clear that the federal system must be reasonably decentralized in order for sub-national units to effectively exercise power of shared rule. Parliamentary form of governance tends to weaken the power of the upper house. As the principal procedure in a centralized Westminster system is majority rule, the centralizing majority principle of the Westminster system conflicts with the right to self-determination of nationalities in the Ethiopian Constitution: the “two contradictory principles introduced in one constitution seem to be doomed to an insoluble conflict.”¹⁷⁸ This suggests that the institutional setup in an ethnically divided country should be designed to tame majoritarian tendencies to give way for politics of compromise and accommodation. Parliamentarism in its pure and simple form as divorced from such kinds of consociational arrangements would end up in majority tyranny particularly in heterogeneous societies. However, parliamentary governmental system cannot be regarded as the sole factor for an all-round majoritarian rule that renders the second chamber powers and politics of consociation ineffective, and indeed it is possible to bring accommodative procedures into the realm of parliamentary governance. In contrast to the presidential system’s “one-person executive,” the collectiveness and inclusiveness of the executive in parliamentarism is a fine instrument of ethnic accommodation.¹⁷⁹ It is possible and practicable to arrange an inclusive scheme of “executive power-sharing among broad coalitions”,¹⁸⁰ and thereby ensure the accommodation of various ethno-territorial groups into central decision-making process.

There is no doubt that there are centralizing tendencies in Ethiopian federation despite the well-founded virtue of federalism to questions of self-rule and power-sharing by sub-national units in an otherwise ethno-linguistically plural country. One of the reasons for such centralizing drives, it seems, is lack of commitment to federalism on the part of political elites who championed it at its start. While it is to be noted that a positive political

¹⁷⁸ Fleiner, *supra* note 25, pp. 94-95.

¹⁷⁹ Lijphart, A., *Democracy in Plural Societies: A Comparative Exploration*, Yale University Press, New Haven, 1977, cited in Suberu, *supra* note 106, pp. 344.

¹⁸⁰ El-Gaili, A., ‘Federalism and the Tyranny of Religious Majorities: Challenges to Islamic Federalism in Sudan’, *Harvard International Law Journal*, Vol. 45, 2004, p. 512.

commitment to federalism for its own sake is a primary factor in the success of any federal experience, the leaders themselves must “feel federal”, and “[i]f the political commitment underpinning a federal system is only a commitment to short-term goals based upon tertiary factors, federal institutions survive so long as tertiary goals continue to be important.”¹⁸¹ There are valid claims that in federations such as Mali and Ethiopia political elites at the center often perceived federalism as “a transient step toward unification,”¹⁸² perhaps because it “tempered any separatist demands of minorities while the nascent state furthered national integration.”¹⁸³ The “lack of instrumental motivation”, which empties federalism of its meaning, has been the reason for the failure of federal projects in African countries.¹⁸⁴

Another reason has to do with the nature of political party controlling the executive. The federal system becomes more and more centralized, and effectiveness of the upper house declines, where hegemonic political parties and nationalist movements drive the political system to the concentration of power that federalism tries to keep dispersed.¹⁸⁵ De Minon states that “[i]n so far as they are under the ‘whips’ of a national party controlling central and regional legislatures and, through the parliamentary system, the governments too, [second chamber members] represent the political choices of the party in power more than their own parochial interests.”¹⁸⁶ The party presently in power in Ethiopia, the Ethiopian Peoples’ Revolutionary Democratic Front (EPRDF), appears at first sight to be based in regional governments; but in practical terms, it is highly centralized with strong party discipline and “controls all the regional state governments in the Ethiopian federation, either directly through its member parties or indirectly through its affiliate parties.”¹⁸⁷ What is more, the EPRDF had its centrally appointed heads responsible for running, or at least overseeing, regional governments, which

¹⁸¹ Franck, T., ‘Why Federations Fail’, in Franck, T. et al. (eds.), *Why Federations Fail: An Inquiry into the Requisites for Successful Federalism*, New York University Press, New York, 1968, pp.173-174, cited in el-Gaili, *supra* note 180, p. 517.

¹⁸² Nueberger, B., ‘Federalism in Africa: Experience and Prospects’, in Elazar, D. (ed.), *Federalism and Political Integration*, Turtledove Publishing, Tel Aviv, 1979, p. 178, cited in el-Gaili, *supra* note 180, p.517.

¹⁸³ El-Gaili, *supra* note 180, p.517.

¹⁸⁴ *Ibid.*

¹⁸⁵ De Minon, *supra* note 15, p. 238.

¹⁸⁶ *Ibid.*

¹⁸⁷ Assefa, *supra* note 114, pp.156-157.

justified the view of citizens that “the persons running the regions were not, in fact, the elected regional officers but the appointees of the federal government.”¹⁸⁸ This shakes governmental legitimacy in the states and weakens the functionality of the HoF at the center as an institution of shared-rule, and generally creates political instability.¹⁸⁹

A more related issue to the question of political party structure is the electoral system in place for assuming political power. The effectiveness of second chambers is not merely the function of the powers allocated to them; it is also the function of the power structure in the lower house, or in the executive. At one extreme is found the plurality based election of legislative and executive officers that adopts a winner-takes-all zero-sum politics, and that based on parity principle at the other extreme. Election of MPs (members of parliament) to the HPR, the lower house, in the Ethiopian parliamentary federal system is made on the basis of plurality of votes cast in each single-member electoral district.¹⁹⁰ This is essentially a first-past-the-post, winner-takes-all electoral system that has the effect of disregarding electoral votes in what is basically a heterogeneous country. This means that if many political parties compete to win the single-member constituency election, the one that obtains greater number, not majority, of votes cast than that of the rest wins the election while the others lose out. It turns out to be unrepresentative of popular preferences particularly when the numerous political parties obtain proportional votes. In Ethiopia, an ethnically divided country, it is proportional representation (PR), not representation based on first-past-the-

¹⁸⁸ *Id.*, pp. 154.

¹⁸⁹ In comparative parlance, Nigeria seems to provide a similarity to Ethiopia regarding the tendency toward single-party rule, but displaying a fairly limited integration and hegemony. Despite the formal prohibition of ethnic parties in Nigeria, the ruling Peoples’ Democratic Party (PDP) is a “heterogeneous and fractious association of power brokers from different communal constituencies”, with lack of party discipline and limited cohesion between national and state party branches leading to more self-governance and less federal intrusion (see, e.g., Suberu, R., ‘Federalism and the Management of Ethnic Conflict: The Nigerian Experience’, in Turton, *supra* note 89, p. 85). On the other hand, Indian ethno-linguistic federation, though once was under domination of national Congress Party, gave way to state-based parties that have managed relatively to exercise both self-rule in the state and shared rule at the center(see, e.g., Bhargava, *supra* note 96, pp. 107, 115 and 116.).

¹⁹⁰ Article 54(2), FDRE Constitution.

post system that is more suitable.¹⁹¹ PR is fundamental to “consensus democracy” that is needed in a more diverse country; it helps to achieve many “qualitative aspects of democracy” such as minority representation, proximity between government and median voters, and governmental legitimacy to reasonable citizenry.¹⁹² It is even argued that PR is an instrumentality to a truly collective and inclusive system of parliamentary governance, referred to by Ackerman as “constrained parliamentarianism”, suggestive of a “one-and-a-half house solution” that combines the federalist principle of regional differences with popular democratic legitimacy, ultimately ensuring the system’s “acceptability” before its “workability”.¹⁹³ In view of that, PR is employed in Italy and Spain, where political parties gain a share of parliamentary seats proportional to their national vote.¹⁹⁴ The German system has even another version of proportionality, called the “mixed-member proportional (MMP), whereby voters cast two kinds of votes – one for an individual candidate and one for their preferred party – so that half of parliamentary seats in the lower house go to the directly elected members, and the other half is filled by members from regional party lists in such a way that the final seat distribution is proportional to the result of the national vote.”¹⁹⁵

In a more informal sphere of government practice, Ethiopia can learn from the experiences of Switzerland and Nigeria. Though it is somehow formally grounded, the Swiss executive’s operation on the basis of the collegiality principle demonstrates that different interest groups can be accommodated into central governance on an informal basis (meaning, even in the absence of express constitutional stipulations for such).¹⁹⁶ The joint session of the two legislative chambers elect the Federal Council, the executive; this is a collegial body chosen on a consociational basis, on the

¹⁹¹ Lijphart, A., ‘The Future of Democracy: Reasons for Pessimism, but also for Some Optimism’, *Scandinavian Political Studies*, Vol. 23, No. 3, 2000, p. 265. Available at http://img.kb.dk/tidsskriftdk/pdf/sps/sps_ns_PDF , last visited on August 25, 2009.

¹⁹² *Ibid*, pp. 268-269.

¹⁹³ Ackerman, B., ‘The New Separation of Powers’, *Harvard Law Review*, Vol. 113, 1999-2000, p. 635.

¹⁹⁴ El-Gaili, *supra* note 180, p. 512.

¹⁹⁵ Hueglin & Fenna, *supra* note 27, p. 200. An undue multiplicity of political parties in the house can be avoided by excluding those getting votes below certain threshold. In Germany, access to the *Bundstag* was limited to parties that garnered at least 5 per cent of the national vote.

¹⁹⁶ Hueglin & Fenna, *supra* note 27, p.77.

basis of “voluntary proportional rule”, that, according to “an unwritten rule”, incorporates all the country’s linguistic and religious cleavages.¹⁹⁷ Elsewhere, Nigeria has a relative success story in ensuring shared-rule despite the claim that presidentialism’s bestowal of executive power on an independently elected individual makes it less preferable in a rather ethnically heterogeneous country. Nigeria’s presidential federation is successful in diffusing centrifugal forces and accommodating ethno-religious groups into shared rule, through the adoption of the federal character principle and certain procedures for increasing legitimacy of presidential election.¹⁹⁸ A candidate running for presidential office must obtain a broad territorial support: he/she must “get highest number of votes, plus not less than one-quarter of the votes cast in each of at least two-thirds of all the states in the Federation and the Federal Capital Territory, Abuja.”¹⁹⁹ The federal character principle calls for appointment to other executive offices to be based on the diversity of people, and it specifically requires the president to appoint at least one indigene minister from each state.²⁰⁰ Thus, there is no reason why a more inclusive parliamentarianism cannot accommodate ethno-territorial groups, perhaps more effectively than presidentialism.

Concluding Remarks

As a formula for the accommodation of diversity into unity in a federal design, the constitutional entrenchment of both shared- and self-rule is critical. Shared rule is usually accomplished by the organization of a second chamber in the central decision-making institutions. The institutionalization of a sensible and effective second chamber that compounds the lower house in an ethnically divided nation such as Ethiopia paves the way to what Thomas Fleiner calls “Composed Nation” – a nation concept that must be developed notwithstanding ethnicity, and, at the same time, must accept multiple and border-crossing loyalties.²⁰¹ While the power of second chambers may vary based on the form of government, matters of essentially federal nature must be vested in the second chamber. The parliamentary system of government in Ethiopia allocates political power at the center in favor of the majoritarian

¹⁹⁷ Bachtiger & Steiner, *supra* note 130, p. 34. For more details, the authors refer us to: Elazar, D., *Exploring Federalism*, University of Alabama Press, Tuscaloosa, 1987, 208.

¹⁹⁸ Suberu, *supra* note 106, p. 344.

¹⁹⁹ *Ibid.*

²⁰⁰ *Ibid.*

²⁰¹ Fleiner, *supra* note 25, p. 93.

lower house as against group interests of sovereign nations, nationalities and peoples. In so far as majoritarian rule is not (or cannot be) made to co-exist with nation-nationalistic group identity, the federal design remains a paper work or rather a poor design.

This author however believes the design is not that much poor; what is lacking is the commitment to the federal idea proclaimed in the Constitution. Elsewhere, India and Nigeria²⁰² have succeeded in ensuring shared rule at the center by incorporating ethno-territorial units, no matter how centralized the federation as a whole may be. Legitimacy, in the eyes of the ethno-linguistic groups, of the central institutions, including the second chamber, must be accounted for. The HoF needs to be empowered and equipped to deal authoritatively with questions of federalism.

The practical political centralization of federalism in Ethiopia may explain why the look-good-on-paper constitutional provisions have so far not been put into practice. A centralized political party structure with high party discipline, retaining power at all levels of government, has led some to describe the Ethiopian federal project as a “federation in form than in operation.”²⁰³ State-based multi-party system needs to be encouraged and made to share power in order to create a national sense of belongingness among the country’s various nationalities. And as divided ethnically Ethiopia is, winner-takes-all electoral system ought to be replaced by a system of proportional representation. Although there are some concessions made constitutionally in favor of “special minorities” for special representation in the lower house, it is far from being adequate. Powers given to the HoF make sense only if the lower house also exhibits some compromise politics. And if institutional legitimacy is assured, then I believe efficiency will come easier.

²⁰² A disclaimer must be made as regards Nigeria, however. A fairly stable federalism has been impossible so far in Nigeria owing to group tensions resulting from deep religious divides and, to a certain extent, from local dissatisfaction with the purportedly over centralized exploitation and distribution of oil wealth.

²⁰³ Assefa, *supra* note 114, p. 137.

A Legal Appraisal of the Liability of the Actual Air Carrier under Ethiopian Law

Hailegabriel G. Feyissa *

Abstract

On September 5, 1961, an Ethiopian Airlines aircraft crashed during a flight from Addis Ababa to Asmara. Some people on board the aircraft dead; some others wounded. Though at the time of the accident the aircraft was chartered by a certain petroleum corporation, claims for personal injury and death were brought against Ethiopian Airlines, the owner and operator of the aircraft. The claimants sought relief under the law of carriage by air. Nevertheless, the High Court of Addis Ababa partly rejected the plea and reasoned that the liability of the “actual” carrier may not necessarily be governed by the law of carriage by air.

It is now five decades since the High Court of Addis Ababa held that the liability of the actual carrier would sometimes be established based on laws other than the 1929 Warsaw Convention and/or the Commercial Code. In this particular contribution, the liability of the actual carrier in chartered and similar flights is appraised in light of historical and recent developments.

Introduction

In Ethiopia, liability of the air carrier has generally been governed by the 1929 Warsaw Convention¹ and the 1960 Commercial Code.² Before the coming into force of the 2008 Civil Aviation Proclamation,³ the liability of the domestic⁴ carrier is subject to the rules of Book III, Title II of the Commercial Code. Conversely, the liability of the international carrier is regulated by the Warsaw Convention,⁵ which Ethiopia joined in 1950.⁶

Article 69 of the Civil Aviation Proclamation provides that the “the liability of any carrier to passengers and cargo is governed by the rules and

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¹ The Convention for the Unification of Certain Rules Relating to International Carriage by Air, signed at Warsaw on 12 October 1929 [hereinafter Warsaw Convention].

² Commercial Code of Ethiopia, 1960, *Negarit Gazeta*, Proclamation No. 166/1960, 19th Year, No.3 [hereinafter Commercial Code].

³ Civil Aviation Proclamation, 2008, *Federal Negarit Gazeta*, Proclamation No. 616, Year 15, No. 23 [hereinafter Civil Aviation Proclamation].

⁴ Domestic carrier is seen here as air carrier serving domestic routes.

⁵ But see *Mengistu G. v Ethiopian Airlines and Customs & Excise Tax Administration*, Supreme Court of Ethiopia, Civil Appeal File No. 825/81, where Ethiopian courts applied the Commercial Code, instead of Warsaw Convention, in determining the liability of an international air carrier.

⁶ See <http://www2.icao.int/en/leb/Status%20of%20individual%20States/ethiopia_en.pdf>.

limitations contained in the international legal instruments to which Ethiopia is a party.” To date, Ethiopia is a party to the 1929 Warsaw Convention and the four 1975 Montreal Additional Protocols.⁷ Applying the theory of Article 69 of the Civil Aviation Proclamation, the liability of the carrier to passengers and cargo (but baggage⁸) is governed by the 1929 Warsaw Convention and the relevant Montreal Protocols. The phrase “any carrier” is obviously broad enough to include domestic as well as international carriers. It may also be argued the phrase any carrier refers to both contracting and actual carriers.

On September 5, 1961, an Ethiopian Airlines aircraft crashed during a flight from Addis Ababa to Asmara. Some people on board the aircraft dead; some others wounded. Though at the time of the accident the aircraft was chartered by a certain petroleum corporation, claims for personal injury and death were brought against Ethiopian Airlines, the owner and operator of the aircraft. The claimants sought relief under the 1929 Warsaw Convention. Yet, the High Court of Addis Ababa⁹ rejected the plea on the ground that the carriage was not international. In determining the liability of Ethiopian Airlines based on domestic laws, the court also reasoned that claims involving an actual carrier may not necessarily be determined based on the 1960 Commercial Code either. Would the holding of the High Court be any different if rendered after the coming into force of the 2008 Civil Aviation Proclamation?

This particular contribution attempts to answer the above question. In other words, the Ethiopian law on the liability of the actual carrier is reviewed. First, the scope of application of the existing Ethiopian laws on air carriage is highlighted with a view to provide background for subsequent discussions regarding the liability of the actual or performing carrier. Finally, a concluding remark is provided.

1. Ethiopian Law on Carriage by Air: Scope of Application

Ethiopia’s aviation history dates as far back as the pre-Italian Occupation (1936-1941) period.¹⁰ And, developments related to the law

⁷ *Ibid.*

⁸ See note 12 *infra* and the accompanying text.

⁹ *Negist Makonnen et al. v Ethiopian Airlines et al.*, Addis Ababa High Court Civil Case No.701/55 E.C [reported in *Journal of Ethiopian Law* Vol. 3(1), pp. 68-74].

¹⁰ See “The History of Aviation in Ethiopia” at www.ecaa.gov.et [last accessed December 23, 2010]); see also Bahiru, Z., Ethiopia’s Entry into the Jet Age, *Selamata*, Vol. 28, 2011, p.54.

governing air carriage appear to have begun with Ethiopia's accession to the 1929 Warsaw Convention in 1950. Moreover, Ethiopia enacted its Commercial Code in 1960. And, this Commercial Code contains rules on domestic air carriage. For over four decades the Commercial Code and the 1929 Warsaw Convention formed Ethiopian law on domestic and international carriage, respectively.¹¹

As recently as 2008, the House of Peoples' Representatives has enacted a comprehensive law that governs civil aviation. Article 69 of the Civil Aviation Proclamation No. 616/2008 read:

"The liability of *any* air carrier for damage caused to *passengers* and *cargo* on board the aircraft or during embarking or disembarking operations shall be governed by the rules and limitations contained in the *international* legal instruments to which Ethiopia is a party." [Italics added]

An interpretation of this provision is that domestic as well as international air carriage of passengers and cargo is governed by international instruments to which Ethiopia is a party. In effect, this would mean the Warsaw Convention along with its Montreal Protocols is the main, if not the sole, source of Ethiopian law on the liability of carriers in general.¹²

Assuming that the above interpretation is agreeable, the Ethiopian law on the liability of the carrier is mainly contained in the 1929 Warsaw Convention and the four Montreal Protocols of 1975.

¹¹ See *Negist Makonnen et al. v Ethiopian Airlines et al.*, *supra* note 9 where it was held the Warsaw Convention does "not concern flights within the boundaries of Ethiopia." See also note 13 *infra* and the accompanying text for a review of the scope of application of the Warsaw Convention.

¹² Note however that the literal interpretation of Article 69, Civil Aviation Proclamation, limits the application of international instruments to carriage of "passengers" and "cargo." It may thus be argued that the Commercial Code's rules on air carriage continue to apply vis-à-vis the carriage of baggage in domestic routes. Nonetheless, one may still argue there is no good reason for the legislator to subject the domestic carriage of baggage by air to a different regime. In the opinion of this author, Article 69 is an example of poor draftsmanship; and, it appears that the legislator intended to equate cargo with goods of all sorts including luggage. This however is not compatible with the tradition of the law on carriage by air, where luggage is distinguished from cargo. See, for example, Article 631 of the Commercial Code, Article 18 of the Warsaw Convention, and Articles XV *cum* IX of Montreal Protocol No. 4 to Amend the Convention for the Unification of Certain Rules Relating to International Carriage by Air Signed at Warsaw on 12 October 1929 as Amended by the Protocol Done at The Hague on 28 September 1955, Signed at Montreal on 25 September 1975 [hereinafter Montreal Protocol No.4].

In principle, the Warsaw Convention applies to international carriage.¹³ Irrespective of Article 2(1) of the Convention, some countries including Ethiopia extend the applicability of the Convention to carriage undertaken exclusively within their boundaries.¹⁴ As a result, the dichotomy between domestic and international air carriage under Article 2(1) of the Convention appears purposeless.¹⁵

The Warsaw Convention does not apply to (1) “experimental air carriage undertaken with a view to establish a regular line of air navigation;”¹⁶ (2) carriage “undertaken in extraordinary circumstances outside the normal scope of an air carrier’s business;”¹⁷ and (3) air transport carried out directly by the State or legally constituted public bodies.¹⁸

As would be seen further below, the Warsaw Convention may not necessarily govern the liability of the actual carrier in chartered, interchanged, and code-shared flights.¹⁹ It is also argued carriage by some flying machines is excluded from the ambit of the Convention.²⁰ Similarly, an airline employee cannot normally claim compensation under the Warsaw Convention as she is not “passenger”²¹ for the purpose of the Convention.

¹³ Article 2(1), Warsaw Convention.

¹⁴ Diederiks–Verschoor, I., *An Introduction to Air Law*, Kluwer Law International, The Hague, 2001, p. 60 [hereinafter Diederiks –Verschoor].

¹⁵ But see *supra* note 12.

¹⁶ Article 34, Warsaw Convention.

¹⁷ *Ibid.*

¹⁸ Of course, the Convention applies to carriage directly performed by the State unless a reservation excluding this type of carriage from the scope of applicability is made (Article 2(1), Warsaw Convention). Ethiopia has made a reservation regarding Article 2(1); see <http://www2.icao.int/en/leb/Status%20of%20individual%20States/ethiopia_en.pdf>.

¹⁹ See discussions under sections 2 and 3.

²⁰ Diederiks–Verschoor, p. 63; Matte, N., International Air Transport, in David, R. et al. (eds.) *the International Encyclopaedia of Comparative Law*, Martinus Nijhoff Publishers, The Hague, 1981, Vol. XII, Chapter 6, at § 66 [hereinafter Matte].

²¹ The Warsaw Convention governs the relations between parties to a contract of carriage. These parties are the passenger or shippers (consignees) and the air carrier. All other parties are outside the scope of the Convention. For example, damage sustained by third parties on ground as a result of air crash is not redressed under the Warsaw Convention as such parties are not related to the air carrier through contract of air carriage; see Diederiks–Verschoor, p. 63; Matte, at § 71.

Title II, Book III of the 1960 Commercial Code prescribes rules on carriage by air. The rules show huge resemblance (both in form and content)²² to the Warsaw Convention. It must however be noted that the Commercial Code, owing to its relative modernity, benefited from improvements to the 1929 Warsaw Convention.²³ The majority of the provisions of Articles 604-653 of the Commercial Code govern carriage of goods by air. With the advent of the 2008 Civil Aviation Proclamation, the relative importance of the Code's rules on carriage of goods by air would however be nominal, if not nought.²⁴ Similarly, the rules on air carriage of passengers have given way to Ethiopia's private international air law, which now govern the domestic carriage of passengers and goods as well.²⁵

Nevertheless, the Commercial Code's rules on carriage by air – which used to be the sole source of Ethiopian law on domestic carriage by air – may now arguably apply to domestic carriage of baggage.²⁶ Yet, the author suspects that it is not the intention of the legislator to subject domestic carriage of baggage to a different regime than the Warsaw Convention.²⁷

²² The similarity is easily noticeable as some provisions of the former are almost the verbatim copy of the later (compare, e.g., Articles 630-633, Commercial Code with Articles 17-19, Warsaw Convention). Moreover, the Commercial Code's adoption of the form of the Warsaw Convention is apparent from the sequential arrangement of the rules on scope of application, documents of carriage and liability of the carrier.

²³ For instance, two interesting differences exist between the original Warsaw Convention and the Commercial Code rules on documents of carriage. First, the Commercial Code – unlike the Warsaw Convention – expressly recognises the incorporation of the luggage ticket in the passenger's ticket (Article 608(3), Commercial Code *cum* Article 4, Warsaw Convention). Second, the Commercial Code is moderate in sanctioning the carrier's failure to issue ticket and baggage check (compare Articles 607-609, Commercial Code with Articles 3-4, Warsaw Convention).

²⁴ See *supra* notes 11-12.

²⁵ *Ibid.*

²⁶ As seen earlier, this argument is based on the distinction between cargo (which term is used in Article 69, Civil Aviation Proclamation) and baggage; see also Matte, at §§ 95-98 and Philipson, G. & et al., *Carriage by Air*, Butterworths, London, 2000, § 8-6 [hereinafter Philipson et al.], on the distinction between cargo and baggage.

²⁷ See *supra* note 12; also, the application of either the Commercial Code or the Warsaw Convention to domestic carriage of baggage may not necessarily result in varying outcomes except with respect to the limitation cap. Under Warsaw Convention (as amended by the Montreal Protocols), baggage claims are limited to 17 SDRs per kilogram or 332 SDRs per passenger. In contrast, the Commercial Code limits liability for baggage claims to Eth Birr 40.00 per kilogram or Eth Birr 800.00 per passenger (see Article 22, Warsaw Convention *cum* Articles 637-638, Commercial Code). Note also that the Commercial Code, unlike the

Ethiopian Airlines – the only scheduled air carrier serving various domestic routes – issues its domestic passengers baggage check, which contains statements excluding the applicability of the Warsaw Convention.²⁸ Further, the carrier issues passenger tickets containing a notice that “carriage exclusively performed within Ethiopia is subject to the provisions of the Commercial Code.”²⁹ The baggage check which excludes the application of the Warsaw Convention to domestic carriage of baggage may not perhaps offend the provisions of Article 69 of the Civil Aviation Proclamation.³⁰ Nonetheless, the provisions of Article 69 appear to weigh down the validity of the notice that “carriage exclusively performed within Ethiopia is subject to the Commercial Code.”³¹ As argued earlier, the Warsaw Convention generally applies to domestic carriage of passengers, baggage and goods.

2. The Carrier

Suppose you bought a ticket from one of Ethiopian Airlines ticket offices in Addis Ababa and flew to your destination, Bahir Dar, from Bole International Airport on an aircraft staffed and controlled by Ethiopian Airlines. Should you sustain any personal injury during the flight, you may lodge claim against Ethiopian Airlines based on Article 17 of Warsaw Convention.³² If however the whole or part of the carriage was performed by a chartered aircraft controlled and manned by Abyssinian Airways, one would argue that the later airline company – which actually performed the carriage – would be the one claims would be brought against. Such an argument would be upheld in common law countries where liability has traditionally been attached to the so called “actual carrier.”³³ In contrast, one would still

Warsaw Convention, does not sanction carrier’s failure to issue baggage check containing particulars regarding the number of passenger ticket and number and weight of the packages; see Article 4(3), Warsaw Convention *cum* Article 609(2), Commercial Code.

²⁸ See *Conditions of Contract* at <

<http://www.ethiopianairlines.com/en/travel/policies/contract.aspx> >.

²⁹ *Ibid.*

³⁰ See *supra* note 26 and the accompanying text.

³¹ See *supra* notes 11-12 and the accompanying texts.

³² Article 69, Civil Aviation Proclamation *cum* Article 17, Warsaw Convention.

³³ See, e.g., Banino, B., ‘Recent Developments in Air Carrier Liability under the Montreal Convention’, *The Brief*, Vol. 38, No. 3, 2009, p. 26 [hereinafter Banino]; Mankiewicz, R., ‘Charter and Interchange of Aircraft and the Warsaw Convention. A Study of Problems Arising from the National Application of Conventions for the Unification of Private Law’,

maintain that Ethiopian Airlines is the carrier for the purposes of the Warsaw Convention, notwithstanding the fact that it did not actually perform the carriage. The latter interpretation, which distinguishes between actual carrier and contracting carrier, is preferred in civil law jurisdictions.³⁴

In contract of air carriage, the contracting carrier refers to the carrier who maintains direct contractual relationship with the passenger or the shipper.³⁵ Within the context of the hypothetical example above, this would be Ethiopian Airlines. In contrast, the actual carrier is the one who actually undertakes the carriage though it is not the carrier who has contracted with the passenger or shipper (i.e. Abyssinian Airways in the example above). Article I(c) of the 1961 Guadalajara Convention defines the actual carrier:

“...a person, other than the contracting carrier, who, by virtue of authority from the contracting carrier, performs the whole or part of the carriage...but who is not with respect to such part of a successive³⁶ carrier within the meaning of the Warsaw Convention.”

Though it purports to govern the contractual relationship between passengers or consignees on the one hand and the carrier on the other, the Warsaw Convention does not provide any definition of carrier. It appears that the drafters of the Warsaw Convention deliberately avoided any definition of carrier.³⁷ Yet, a definition of carrier has become important with the advent of charter flights or air taxi services after the Second World War.³⁸ And, the beginning of code-share arrangements since 1980s has added another force for

The International and Comparative Law Quarterly, Vol. 10, 1961, p. 711[hereinafter Mankiewicz].

³⁴ See Mankiewicz, *supra* note 33, p. 714; see also Tiwari S. & Chik W., ‘Legal Implications of Airline Cooperation: Some Legal Issues and Consequences Arising from the Rise of Airline Strategic Alliances and Integration in the International Dimension’, *Singapore Academy of Law Journal*, Vol. 13, pp. 302-305[hereinafter Tiwari & Chik].

³⁵ See Article I(b), Guadalajara Convention of 1961; officially known as “Convention, Supplementary to the Warsaw Convention, for the Unification of Certain Rules Relating to International Carriage by Air Performed by a Person Other than the Contracting Carrier, signed at Guadalajara on 18th September 1961” [hereinafter Guadalajara Convention 1961].

³⁶ Though there appears to be disagreement on whether the Warsaw Convention covers actual carriers, it is however clear that the Convention governs the liability of contracting and successive carriers; see Article 30, Warsaw Convention; Philipson *et al*, *supra* note 26, at § 1-15.

³⁷ See, e.g., Matte, *supra* note § 78; Banino, *supra* note 33, pp. 26-27; Tiwari & Chik, *supra* note 34, pp. 303 *et seq.*

³⁸ *Ibid.*

arguments in favour of defining the carrier for the purpose of Warsaw Convention.³⁹

In the absence of any definition of carrier, authorities have thus been divided as to whether the law on air carriage governs the relationship between the actual carrier and the consignee or passenger. Courts in civil law jurisdictions maintain a distinction between the contracting carrier and the actual carrier, the latter of which is not contemplated by the drafters of the Warsaw Convention.⁴⁰ On the other hand, courts in common law jurisdictions maintained, albeit not consistently, the actual carrier is liable under the Warsaw Convention.

In *Block v Air France*,⁴¹ *Mertens v Flying Tiger Line, Inc.*,⁴² *Warren v Flying Tiger Line, Inc.*,⁴³ *Orova v Nw. Airlines*,⁴⁴ and *Shirobokova v CSA Czech Airlines*,⁴⁵ US courts entertained the question whether the Warsaw Convention applies to the actual carrier who did not keep direct contractual relationship with the claimants. In *Block* the Fifth Circuit reached at a conclusion that “the applicability of the Convention undeniably premised upon a contract of particular kind.” In contrast, the *Warren* court reasoned “no direct contract between the parties is required” for the application of the Warsaw Convention.⁴⁶ Furthermore, some courts⁴⁷ held that “a passenger may seek recovery only against the actual carrier, not the contracting carrier.”⁴⁸

Literature⁴⁹ reveals that courts both in the US and other common law jurisdictions struggled to determine the status of the actual carrier vis-à-vis the

³⁹ Tiwari & Chik, *supra* note 34, pp. 303 *et seq.*

⁴⁰ See, e.g., Philipson *et al*, *supra* note 26, at § 1-15; Mankiewicz, *supra* note 33, p. 711 *et seq.*

⁴¹ *Block v. Compagnie Nationale Air France*, 386 F. 2d 323 (5 Cir. 1967).

⁴² *Mertens v Flying Tiger Line, Inc.*, 341 F. 2d 851 (2 Cir. 1965) [hereinafter *Mertens*].

⁴³ *Warren v Flying Tiger Line, Inc.*, 352 F. 2d 494 (9 Cir. 1965).

⁴⁴ *Orova v Nw. Airlines*, No. 03-4296-CIV, 2005 WL 281197 (E.D. Pa. Feb. 2, 2005) [hereinafter *Orova*].

⁴⁵ *Shirobokova CSA Czech Airlines*, 376 F. Supp. 2d 439 (S.D.N.Y. 2005).

⁴⁶ In *Mertens* (*supra* note 43) also, the court applied the Warsaw Convention, notwithstanding the fact that the passengers had no contractual relationship with the carrier.

⁴⁷ *Orova*, *supra* note 45.

⁴⁸ Banino, *supra* note 33, p. 26.

⁴⁹ See, e.g., Conti, C., ‘Code-Sharing and Air Carrier Liability’, *Air & Space Law*, Vol. 26, 2001, p. 15 [hereinafter Conti]; Sun, C., ‘Claims Arising from Air Carriage’, *Singapore Academy of Law Journal*, Vol. 12, 2000, pp. 335-340 [hereinafter Sun]; Lacey, F., ‘Recent Developments in the Warsaw Convention’, *Insurance Counsel Journal*, Vol. 34, 1967, pp. 275-277; Gillies, P. & Moens, G., *International Trade and Business: Law, Policy and*

Warsaw Convention. Despite the pervasiveness of the theory that Warsaw Convention regulates the responsibility of the contracting carrier, the position of the actual carrier under Warsaw Convention has also troubled courts and commentators in civil law jurisdictions as well.⁵⁰ Consequently, the scope of application of the Warsaw Convention practically differed from jurisdiction to jurisdiction, threatening the uniformity of private international air law.

The Guadalajara Convention⁵¹ of 1961 was an attempt to ensure the threatened uniformity through a definition⁵² of carrier. This supplementary convention was adopted with a view to bring the actual carrier, who under the dominant civil law doctrine was not the carrier contemplated by the Warsaw Convention, under the purview of the Warsaw regime. Similarly, the 1999 Montreal Convention⁵³ – a modern Warsaw style uniform regime of private international air law – allows claimants the option to seek recovery from the actual carrier.⁵⁴ Under the 1961 Guadalajara Convention and the 1999 Montreal Convention, the question whether actual carriers are carriers will not thus arise.

Note however that some Warsaw states including Ethiopia are not party to these Conventions. As a result, one is not dissuaded from doubting the applicability of the Warsaw Convention to actual carriers. In the section below, the liability of the actual carrier in Ethiopia – where the Guadalajara or the Montreal Conventions are not applicable – is discussed in light of case law, foreign jurisprudence and recent developments.

3. The Liability of the Actual Carrier Under Ethiopian Law

From the foregoing, it is clear that there is no conclusive answer for the question who is the carrier for the purposes of the Warsaw Convention. Authorities are divided as some common law courts, unlike their civilian counterparts, are ready to hold performing carriers liable under the Warsaw Convention irrespective of the nonexistence of express contract between the

Ethics, Cavendish Publishing, Sydney, 2000, p. 321; Lacey, F., ‘The Warsaw Convention Today’, *ABA Sec. Ins. Negl. & Comp. L. Proc.*, 465, 1968, pp. 473-475.

⁵⁰ See *Negist Mekonnen et al v Ethiopian Airlines, Inc et al.*, *supra* note 9; see also Mankiewicz, *supra* note 33, pp. 27 *et seq.*; Conti, *supra* note 49, pp. 15-16.

⁵¹ See *supra* note 35 for the full title of the Convention.

⁵² See *supra* notes 35-36 and the accompanying texts for definitions of carrier under Article I, Guadalajara Convention 1961.

⁵³ Convention for the Unification of Certain Rules for International Carriage by Air, Montreal, 28 May 1999 [hereinafter Montreal Convention].

⁵⁴ Article 39, Montreal Convention.

passenger and the performing carrier. Nonetheless, no one would doubt the intention of the drafters to limit the applicability of the Warsaw Convention to certain classes of people.

Clearly, the liability of the contracting⁵⁵ and succeeding⁵⁶ carrier is subject to the Warsaw rules. On the other hand, general consensus exists with regard to the non-applicability of the Convention to the relations between a carrier and its servants.⁵⁷ It is however uncertain whether the relations between (1) the owner of an aircraft and lessee in air charterparty, (2) the charterer and passenger in a chartered flight and (3) the actual carrier and the consignee or passenger in code-share and similar arrangements are subject to the Warsaw Convention. Similarly, the extension of the applicability of the Convention to travel agents,⁵⁸ freight forwarders,⁵⁹ operators of code-shared flights,⁶⁰ and servants⁶¹ of the carrier seem fraught with disagreement. For the sake of brevity, the discussions below however focus only on the (in)applicability of Warsaw Convention to charter flights and code-share arrangements.

3.1 Charter Flights

Charter is the hiring of an airplane.⁶² The legal relationship of the charterer and the owner is mainly governed by charterparty, a highly standardised and negotiated contract of lease.⁶³ Disputes between the parties

⁵⁵ Manzkiewicz, *supra* note 33, p. 709 *et seq.*; Conti, *supra* note 49, pp. 14-15; it seems clear that courts in both common law and civil law jurisdictions are clear on the applicability of the Warsaw Convention to contracting carriers. What divides civil law and common law authorities is the question whether actual carriers are within the purview of Warsaw Convention; see discussions in section 2.

⁵⁶ Successive carriers who are “deemed to be one of the contracting parties to the contract of carriage in so far as the contract deals with that part of the carriage which is performed under his supervision,” are subject to the rules of the Warsaw Convention; see Article 30, Warsaw Convention.

⁵⁷ See *supra* note 21.

⁵⁸ Matte, *supra* note 20, §§ 84-85; Sun, *supra* note 49, pp. 340 *et seq.*

⁵⁹ *Ibid*, pp. 335-340.

⁶⁰ Tiwari & Chik, *supra* note 34, pp. 300-307.

⁶¹ Sun, *supra* note 49, pp. 340-342.

⁶² Black’s Law Dictionary, 8th ed., s.v. “Charter”.

⁶³ This has been particularly the case in maritime charterparty (see Force, R., *Admiralty and Maritime Law*, US Federal Judicial Centre, 2004, p.42 [hereinafter Force]); note that the

in a charterparty relationship are primarily resolved according to the terms of the charterparty.⁶⁴ Yet, this has not dissuaded some from raising issues with the applicability or otherwise of Warsaw Convention to charter flights.⁶⁵

The applicability of Warsaw Convention to air charterparty depends on the type of lease involved.⁶⁶ The Convention does not govern the relations between the owner and the charterer in “bare hull” charter, as the former is not the carrier for the purposes of Warsaw Convention.⁶⁷ Similarly, the applicability of Warsaw Convention to time charterparty is doubted.⁶⁸ As regards other types of charters, the Warsaw Convention applies “provided the aircraft is used for the carriage of the lessee himself or his own goods.”⁶⁹

law on air charter is comparable with the law on maritime charter. Crucially, “the principles relating to the charterparty of a ship have generally been accepted and adapted in the case of a charterparty of an aircraft with some exceptions due to the particular features of air navigation;” see *Negist Mekonnen et al v Ethiopian Airlines, Inc et al.*, *supra* note 9.

⁶⁴ Within the context of maritime law – the material source of the law of air charter – charterparties have traditionally been treated differently from contracts of carriage supported by bills of lading. Unlike the law on sea carriage of goods under bills of lading, the law on maritime charterparty is predicated on the assumption that “the contracting parties (the owner and the charterer) are “sophisticated and presumably equal in strength”. As a result, charterparties are excluded from the terms of the law of transport under bills of lading unless the owner of the vessel issues the charterer a bill of lading and that bill of lading is transferred to a third party. In the later case, the charterparty controls the legal relations between the owner and the charterer, and the bill of lading controls the legal relations between the carrier and the consignee; see Articles 126-209, Maritime Code; Force, pp.42-43; Hailegabriel, G., *Maritime Law Teaching Material*, JLSRI, Addis Ababa, 2008, pp. 94 *et seq.*

⁶⁵ See, e.g., Matte, *supra* note 20, § 82; Philipson, *supra* note 26, § 4 –19.

⁶⁶ *Ibid*; three types of air charter are distinguished. The first is “bare-hull” charter where the owner parts with control of the aircraft for the period of the charter. It is known bare hull as the aircraft is leased without its pilot and crew. The second and the third types of charter are similar in that the aircraft is hired with its pilot and/or crew. Yet, they are different with regard to who exercises control and direction vis-à-vis the aircraft and its crew. Note also that the second and third types of air charter may further be classified based on whether the space of the aircraft is let for a particular journey (voyage charter) or for a specified period (time charter).

⁶⁷ *Id.*

⁶⁸ *Id.*

⁶⁹ *Id.*; this is particularly the case in voyage charter where the space of the aircraft (not the aircraft as such) is leased for a particular voyage. The relations between the lessor and the lessee in voyage charter may thus be characterised as contract of carriage which may be subject to the rules of Warsaw Convention.

Aside from the question whether the different types of aircraft lease would be governed by the law on carriage by air, one may wonder whether the charterer may be the carrier vis-à-vis passengers or goods that he carried using the leased aircraft.⁷⁰ This question appears to be more serious and important than the question regarding the applicability of Warsaw Convention to charter agreement.⁷¹ In 1965, an Ethiopian court was called on to rule on this very question in an interesting case⁷² involving the crash of Douglas C-47A No. ET.T. 16 – a belonging of Ethiopian Airlines – which, when the accident occurred, was chartered to Coronado Petroleum Corporation. Ethiopian Airlines, the owner and operator of the aircraft, was sued under the Ethiopian law of carriage by air. The airline argued “it was not liable as, at the time of the accident, the aircraft was not on a normal scheduled flight but had been chartered by Coronado Petroleum Corporation.” In an instructive ruling, the High Court of Addis Ababa tried to distinguish between different forms of air charter so as to establish whether Ethiopian Airlines was a carrier for the purpose of the Commercial Code – which, back then, was the Ethiopian domestic law⁷³ on carriage by air. Accordingly, it identified three main types of air charter: (a) hire of aircraft without pilot or any crew, known as ‘hull’ or ‘bare hull’ charter; (b) hire of aircraft with pilot and/or crew who are to be under the direction and control of the hirer; and (c) hire of aircraft with pilot and crew (or both) who are to remain the servants and under the control of the owner. Subsequently, the court eloquently reasoned:

“The ‘bare hull’ charter corresponds to a charterparty by demise in maritime law; its main characteristic is that the aircraft itself, without crew, is let or hired for a particular journey or a specified period. In the

⁷⁰ Mankiewicz, *supra* note 33, p. 712; Sun, *supra* note 49, pp. 335-340.

⁷¹ Note that the uncertainties relating to the applicability of Warsaw Convention in determining the liability of the actual carrier in chartered and interchanged flights were the reasons behind the adoption of the 1961 Guadalajara Convention; see Conti, 5-7; see also Mankiewicz, *supra* note 33, p. 712, who *en passant* mentions “the question whether the rules of the Warsaw Convention govern the respective rights and obligations of the charterer and the passenger or consignor is more relevant than the question whether the charter agreement is governed by the Convention”.

⁷² *Negist Mekonnen et al v Ethiopian Airlines, Inc et al.*, *supra* note 9.

⁷³ The claimants sought relief under the more favourable Warsaw Convention. Yet, the court rightly rejected their plea as the Addis Ababa - Asmara - Addis Ababa flight cannot be considered international. The flight was domestic as it was undertaken exclusively within the boundaries of Ethiopia. Incidentally, it must be noted that Asmara, the capital of the now independent Eritrea, was an Ethiopian city when the accident occurred.

other two types of charter the whole capacity of the aircraft, rather than the aircraft itself, equipped with crew, is let or hired for a particular voyage(voyage charter) or for voyages to be ordered by the charterer during a specified period(time charter). In the case of a ‘bare hull’ charter it is clear that the charterer would be the carrier as the aircraft is under his control and direction together with the crew supplied by him; the charterer assumes the mantle of the owner for any liability in respect of injuries to passengers and goods... [T]he position is not the same in [the lease of the aircraft with its crew who are under the direct control of the charterer]. The position is not [however] so clear where the [aircraft is leased with crew, who remain under the control and direction of the owner].”

The court, which was well aware of the maritime origin of charterparties,⁷⁴ maintained that the hull charterer assumes the burden of the owner in so far as damage caused to passengers is concerned. The court also seemed to be of the opinion that the question who assumes liability for damages on passengers in non-demise charters situations is determined based on the particular facts of the case and the terms of the charterparty agreement. Crucially, it paid a particular regard for the question “who has control and power over the aircraft?” After interpreting the various terms of the charter, the court finally concluded that Ethiopian Airlines had the control and power over the aircraft and therefore was liable under the Commercial Code.⁷⁵

A more or less similar test is employed elsewhere.⁷⁶ Although some common law courts⁷⁷ may hold the lessor liable notwithstanding the fact that

⁷⁴ The court mentioned: “አብዛኛውን ጊዜ በመርከብ ክፍል የተፈጸመው ቻርተር ፓርቲ ከአንዳንድ ጥቃቅን ነገሮች በስተቀር ለአየር በረራውም ጉዞ የሚውል ደንብ ነው።”

⁷⁵ It would have been more interesting had the court held that Ethiopian Airlines was not the carrier. Crucially, one would wonder what the court could have concluded had the air charter between Ethiopian Airlines and Coronado Petroleum Corporation was either “bare hull” or time charter. Had it been a time charter, the petroleum corporation would have theoretically been the carrier. Yet, this could still pose its own problem as there was hardly any carriage contract between the company and the passengers of the crashed Douglas C-47A plane. Similarly, the law on carriage would not have applied if the charterparty involved had been “bare hull”. In such cases, personal injury claims against Coronado Petroleum Corporation would be based on laws other than the law on carriage by air. Admittedly, the identity of the charterer might affect the outcome. If Coronado was instead an airline company and if the lease agreement it had with Ethiopian Airlines was either time or hull charter, it would have likely been the carrier as regards the injured and dead passengers.

⁷⁶ Matte, *supra* note 20, at §§ 82-85.

⁷⁷ See, e.g., *Mertens supra* note 43.

the aircraft is the responsibility of the lessee, it is generally agreed that “control and direction” is the determining factor in allocating liability to either the lessor or the lessee. According to Nicolas Matte, the charterer may be the carrier depending on “the facts of the case.”⁷⁸ With regard to passengers and consignors, the charterer will be regarded the carrier so long as he retains control and direction over the hired aircraft and its crew.⁷⁹ Otherwise, the lessor in an air charter remains to be the carrier should the crew and pilots remain his servants.⁸⁰

With the advent of the new Civil Aviation Proclamation which extends the scope of application of the Warsaw Convention to carriage performed by “any” carrier, the Ethiopian law on the liability of the actual carrier looks set for another development. It has already been argued that the phrase “any air carrier” under Article 69 refers to both contracting and actual carriers. Apparently, Ethiopian courts would now out rightly reject arguments that actual carriers need not be subject to the rules of Warsaw Convention in the absence of any direct contractual relationship with the passengers and/or consignors. Therefore, it is likely that the lessor of an aircraft will still be liable under the Warsaw Convention whenever it assumes the responsibility of controlling and directing the chartered aircraft.⁸¹

In sum, the application of Warsaw Convention or the Commercial Code to charter flights depends on the types of charterparties involved. The law on carriage by air does not govern the relations between the lessor and lessee in

⁷⁸ Matte, *supra* note 20, at § 82;

⁷⁹ *Id.* Note that there is no problem in characterising a charterer, who “both contracts and performs the carriage by using leased aircraft,” as a carrier for the purpose of the Warsaw Convention. Put in other words, bare hull and time charterers may easily be identified as carriers in their relations with passengers and consignors. Yet, in voyage charters, one would have to carefully identify who, between the owner and charterer, would assume liability as a carrier under the Warsaw Convention.

⁸⁰ This was the case in *Negist Mekonnen et al v Ethiopian Airlines, Inc et al* where the owner of the aircraft in a voyage charter was held liable as a carrier for it maintained control over the aircraft and its crew.

⁸¹ Article 69, Civil Aviation Proclamation, does not guarantee the application of the Ethiopian law on carriage to a lessor (owner of the aircraft) unless it maintains direct contractual relationship with passengers and consignees. It does only allow the application of the law on air carriage to “any carrier” including the actual carrier. Consequently, we have to first establish the lessor [instead of the lessee] is the actual carrier before applying Warsaw Convention. A level of carefulness in establishing whether the lessor or the lessee is the actual carrier is therefore still needed notwithstanding Article 69 of the Civil Aviation Proclamation.

bare hull or time charters. Yet, the law on carriage by air *may* apply as regards the relations between the charterer and the lessor in voyage charterparty situations. In the meantime, liability for passengers, luggage and goods carried is assumed by either the owner of the aircraft or the charterer depending on who exercises control or direction under the charter agreement. Accordingly, the actual carrier may assume liability under the Ethiopian law of air carriage. And, this had practically been the case even before the coming into force of the Civil Aviation Proclamation.

3.2 Code Sharing Arrangements

From the foregoing, it is clear that courts in various jurisdictions have struggled to determine whether Warsaw Convention applies to charterers. After the advent of code-sharing, similar pester has surfaced vis-à-vis operators of code-shared flights.⁸² In this section, the liability problem in code-shared flight is discussed in light of the Ethiopian law on air carriage. Code sharing is the practice of airlines to share designator codes. The practice dates back to the 1980s when travel agents started using Global Distribution Systems, GDSs.⁸³ Code-sharing allows airlines entering into code share agreements to market or operate another carrier's flights reservations.⁸⁴ The incentives for code sharing includes enhancing efficiency (generating additional air traffic with reduced cost), widening customer reach and, of course, establishing a dominant market power in the increasingly competitive and expensive air business.⁸⁵

Within the context of the law of air carriage, code-shared flights involving marketing (contracting) carrier and operating (actual) carrier poses some queries regarding who the carrier would be. Of course, airlines, who maintain code share agreements with other carriers, expressly undertake responsibility "for the entirety of the Code Share journey" notwithstanding the

⁸² On this point see generally Tiwari & Chik, *supra* note 34; Conti, *supra* note 49.

⁸³ Gleave, S., *Competition Impact if Airline Code-share Agreements*, A Report Prepared for European Commission Directorate General for Competition, 2007, at § 3.2 [hereinafter Gleave].

⁸⁴ Tiwari & Chik, *supra* note 34, p. 298; Oum, T. & *et al*, 'The Effects of Airline Codesharing Agreements on Firm Conduct and International Air Fares', *Journal of Transport Economics and Policy*, Vol. 30, 1996, p. 188 [hereinafter Oum].

⁸⁵ Gleave, *supra* note 83, §§ 3.9 – 3.13; Oum, *supra* note 84, p. 188.

code-shared flight is actually operated by another carrier.⁸⁶ Nonetheless, such undertakings cannot satisfy a passenger who wants to know whether he can proceed against the actual carrier. Similarly, the actual carrier may want to know whether he can rely on the law of air carriage when proceeded against by passengers, shippers and consignees.

Operators of code-shared flight are deemed carriers for the purpose of the 1961 Guadalajara Convention and the 1999 Montreal Convention.⁸⁷ In Ethiopia, where code-sharing has been practiced for a while now,⁸⁸ neither the Guadalajara Convention nor the Montreal Convention is applicable. This situation leaves us with two important questions. Would Ethiopian law allow claims against the actual carrier in a code-share arrangement? Conversely, would the operator of code-shared flight rely on the Ethiopian law on carriage by air?

As in the case of air charter, the answer is to be sought from the word “carrier” under Article 17 *et seq.* As seen earlier, Ethiopian and foreign courts have not taken the undefined term lightly.⁸⁹ Though one cannot rule out judicial resolve in denying the application of Warsaw Convention to operators of code-shared flights, authorities from both civil law and common law jurisdictions suggest that “any carrier may be considered a proper defendant under the Convention, even though it is not a party to the contract with the passenger/consignor”.⁹⁰ Even more, Article 69 of the Civil Aviation Proclamation has now settled any uncertainty by subjecting “any carrier” to the Ethiopian law on carriage by air. As the law stands now, claims may therefore be brought against operators of code-shared flights: the corollary of this is that the Warsaw Convention’s liability limitations⁹¹ and defences⁹² extend to operating/actual carriers.

⁸⁶ See, e.g., Conditions of Contract at <http://www.ethiopianairlines.com/en/travel/policies/contract.aspx>.

⁸⁷ Banino, *supra* note 33, p. 26.

⁸⁸ Ethiopian Airlines has code share agreements with 12 international air carriers; and the airline is negotiating additional agreements; see <http://www.ethiopianairlines.com/en/corporate/default.aspx#codeshare>.

⁸⁹ See *supra* notes 42-51 and the accompanying texts.

⁹⁰ One such authority is *Negist Mekonnen et al v Ethiopian Airlines, Inc et al* where the actual carrier is held liable despite that fact that it did not maintain direct contractual relationship with the passengers; see also Conti, *supra* note 49, p. 15.

⁹¹ Article 22, Warsaw Convention.

⁹² See, e.g., *ibid*, Article 20.

Concluding Remarks

In the law of air carriage, the liability of the actual air carrier has traditionally been unclear. Courts in various jurisdictions including Ethiopia have struggled to determine who, between the lessor and the lessee would be the carrier concerning passenger/consignor claims under the law of carriage by air. Similarly, the status of other actual carriers (e.g. operators of code-shared flights) under the Warsaw Convention has caused some trouble. Eventually, the uncertainties have been settled by “embracing both the actual and contracting carrier under the same juridical regime” such as the 1961 Guadalajara Convention.

In Ethiopia, where the Guadalajara Convention is not applicable, Article 69 of the Civil Aviation Proclamation brings “any carrier” (presumably including the contracting and actual carrier) under the scope of the law of carriage by air. Thus, claims under the law of carriage by air can now be had against operators of chartered, code-shared and interchanged flights. Also, actual carriers may rely on the defences and limits to their liability under the law of carriage by air.

Finally, charterers may not claim against owners of aircraft under the law of carriage by air unless the agreement constitutes a voyage charter.

Status and Role of Victims of Crime in the Ethiopian Criminal Justice System

Worku Yaze Wodage*

Abstract

This article explores the place and role of victims of crime in the present Ethiopian criminal justice system. It inquires whether victims, as distinct from mere informants/witnesses, have a legally recognized position and can play significant roles within the criminal process. It examines if there are sufficient legal mechanisms that provide for their treatment and protections. A detour to survey global contemporary issues and emerging trends is also made with a view to bring the issues under consideration in broader perspectives. After a thorough analysis of the existing legal framework in Ethiopia, the article finally concludes that victims currently (1) do not have adequate recognition, (2) have marginal roles, and (3) are without sufficient legal mechanisms which provide for their treatment and protection in the criminal process. Hence, the author recommends for the inclusion into the forthcoming criminal procedure law of provisions that address the special concerns, needs, interests and rights of victims.

“The provisions of the Rome Statute permit victims at the International Criminal Court to choose their legal representatives, who have a right to present their views and make submissions when their interests are likely to be affected. Such views and submissions may be made at all stages of the court proceedings with only the limitation that it would not be prejudicial or inconsistent with the rights of the accused. In an era where globalization and harmonization of criminal procedure seem set to continue indefinitely, it is inevitable that domestic processes and policymakers and criminal justice agencies will be increasingly influenced by such international developments.” (Jonathan Doak)

Introduction

Behind the commission of most crimes there are often individuals that bear the brunt of the criminal acts of perpetrators. On numerous occasions,

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individuals suffer physical, emotional or psychological injuries, incur financial or economic losses and other kinds of harm. In worst instances such as homicide, people miss their dear ones. For a good number of individuals – particularly children, women and other vulnerable – the unfortunate experience may be just a beginning of more serious consequent plights.

Apart from the injury, loss or trauma that individuals often sustain during primary victimization¹ and further exacerbation thereof due to lack of support and assistance, many subsequently encounter a lot other forms of injuries and losses. They may further be stunned by insensitive, indifferent, unsympathetic or humiliating reception and treatment by officials. When testifying before police stations or courts as witnesses, such individuals may experience further confusion, trauma, embarrassment or humiliation.² The various criminal processes may not accommodate their concerns and related interests such as compensation for the harms they sustained. Suspected offenders may be released on bail without their knowledge. Courts may impose punishment on offenders without appreciating the after-effects of crimes or without getting inputs as to the extent of injuries. Offenders may be pardoned or released on parole without their involvement.

In following up “their” cases, individuals may further suffer additional costs, ups and downs and protracted absence from their normal businesses. Some may even encounter harassment, intimidation or revenge/retaliation from suspects, offenders, relatives or friends of suspects/offenders in the course of criminal proceedings. Such individuals that suffer, directly or indirectly, from primary victimization, experience or undergo subsequent

¹ *Primary victimization* refers to injuries of individuals resulting directly from criminal offence; see Spinellis, D., ‘Victims of Crime and the Criminal Process,’ *Israel Law Review* Vol.31, 1997, pp.338-339.

² This and related injuries which arise from institutional response are commonly referred to as *secondary victimization*. It relates to, for example, degrading or offending questions during investigations and trials, aggressive cross-examination, showing lack of interest in cases, failure to communicate about what is happening to cases, delays, unexplained decisions, etc. See *Id*; Doak, J., *Victims’ Rights, Human Rights and Criminal Justice: Reconceiving the Role of Third Parties*, Hart Publishing, Oxford, 2008, pp.38, 51-52 [hereinafter Doak]; *Handbook on Justice for Victims on the Use and Application of the Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power* (1999) available at: www.uncjin.org/Standards/9857854.pdf, p.9 (Last accessed 20 March, 2011) [hereinafter *Handbook on Justice*].

injuries in the aftermath of criminal commission (secondary victimization) are referred to as *victims* of crime.³

Apart from traditional and attitudinal factors that may make the criminal process somehow stressful for victims, certain forms of secondary victimization are partly attributable to the very structuring of criminal procedure systems and the functioning of traditional retributive criminal process. On the other hand, it is a truism that any criminal justice system cannot function successfully without the involvement of victims. To be operational, any criminal justice system requires that victims/witnesses complain or report commissions of crimes or offenders and testify before investigative authorities and courts.

As is the case in many other jurisdictions,⁴ victims in Ethiopia face a lot of sufferings in the aftermath of criminal acts committed against them. Some

³ The term *victim* has various denotations. It may refer to a person to whom harm is done or who suffers physical or emotional injury or incur financial/economic loss as a result of the commission of an offence, and where such person is dead, sick or otherwise incapable, it may include the spouse or relatives of that person. Designating an individual a *victim* may be contentious. See Crawford, A., 'Salient Themes Towards a Victim Perspective and the Limitations of Restorative Justice: Concluding Comments', in Crawford, A., & Goody, J. (eds.), *Integrating A Victim Perspective Within Criminal Justice*, Ashgate, Dartmouth, 2000, p.285; Brienens, M. & Hoegen, E., 'Victims Of Crime' *European Criminal Justice Systems*, Vol. 22, 2000, pp.25-26[hereinafter Brienens & Hoegen]; Doak, *supra* note 2, pp.20-24; *The United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power* (1985), UN General Assembly Resolution 40/34, [hereinafter UN Declaration on Victims] provides:

(1) "*Victims*" means persons who, individually or collectively, have suffered harm including physical or mental injury, emotional suffering, economic loss or substantial impairment of their fundamental rights, through acts or omissions that are in violation of criminal laws operative within Member States, including those laws proscribing criminal abuse of power.
(2) [...] The term *victim* also includes, where appropriate, the immediate family or the dependants of the direct victim and persons who have suffered harm in intervening to assist victims in distress or to prevent victimization.

(Available at: <http://www.unhchr.ch>) [Last accessed on 24 January 2011].

In the Declaration, the term *victims* is used literally to refer to *natural persons who allege sustaining criminal injury*, and, in cases of homicide and physical or mental incapacitation, or in cases of minors and incapable persons, to refer to *the injured person's spouse, close relatives or lawful representatives*. But it must be noted that *juridical persons* that suffer from criminal acts are included. Also, no distinction is made here between *ordinary victims of crime* and *victims of abuse*, i.e., victims of the state or state officials.

⁴ See Handbook on Justice, *supra* note 2, p.1 and Chapter I (pp.4-9) as regards the impact of victimization in general.

research and media reports reveal that victims, particularly women and children, suffer immensely in connection with the processing of their cases. Considering the myriad shortcomings and limitations of the justice institutions in the country⁵ one may imagine many other forms of secondary victimization that victims experience.

Since the beginning of 1990s, there have been series of endeavors to improve the legal and justice system of the country. A new constitution,⁶ entrenching extensive bill of rights⁷ – including principles and rules that protect criminal suspects, accused persons and convicted offenders⁸ – is adopted. A new Criminal Code, enacted in 2004 and entered into force as of 9 May, 2005,⁹ contains some provisions pertaining to victims of crimes. Further, works are still being done to enhance the working conditions of justice institutions and related activities.¹⁰ Given as well the revision of the existing Criminal Procedure Code is underway, it is timely, if not late, to inquire the place and role of victims in the Ethiopian criminal justice system and to question what is being accomplished currently vis-à-vis victims amidst ongoing efforts to improve the criminal justice system and contemporary global developments and emerging trends.¹¹

The purpose of this Article is to explore the status and role of victims in the Ethiopian criminal justice system and to investigate whether there exists sufficient legal mechanism that provide better treatment and protections for

⁵ There are severe problems that relate to accessibility, predictability, competence and efficiency, etc. See መንበረዐጌ ታዲሳየሊትዮጵያ ህግና ፍትህ ገፅታዎች፣ 1999 ዓ.ም. pp.81-111.

⁶ Constitution of the Federal Democratic Republic of Ethiopia Proclamation, 1995, *Federal Negarit Gazeta*, Proclamation No.1/1995, 1st Year No.1 [hereinafter FDRE Constitution]. It entered into force as of 21 August 1995. There are training centers that work towards the improvement of the justice sectors. Efforts are underway to improve institutional competence including infrastructures.

⁷ See Chapter 3, FDRE Constitution.

⁸ *Ibid*, Articles 17- 23. At this juncture one may pause and question whether victims too get some attention in the Constitution and other endeavors of the Ethiopian government.

⁹ The 2005 Criminal Code of the Federal Democratic Republic of Ethiopia, 2004, Proclamation No. 414/2004, *Federal Negarit Gazeta*, Year 10, No. 59 [hereinafter Criminal Code]. This Code is applicable throughout the Ethiopian federation.

¹⁰ Implementation of the recently adopted Criminal Justice Policy of the country is also to be mentioned.

¹¹ The extent to which human rights are respected and protected in Ethiopia within the criminal process is in part to be measured by looking into the accessibility of the criminal justice system to victims, by examining how victims are being treated in the process and by assessing protection mechanisms afforded to them.

victims. What is the position of victims within the context of the current Ethiopian criminal justice system? Does the existing Criminal Procedure Code or any other law in force recognize victims as “parties” to the criminal process or are they merely treated as mere informants and/or witnesses? Is there any law in force that provides norms on how victims should be treated by all concerned during pre-trial, trial and post-trial criminal proceedings? What legally recognized roles do crime victims as *victims* have at the various stages of the criminal process? Does the existing legal framework in Ethiopia grant victims some control or influence on the investigation and/or prosecutorial decision-making of “their” cases or sentencing of offenders? Can victims impart their concerns and bring in inputs to the police, prosecution, courts and prison administration? If so, to what extent can one’s voice be heard? This Article attempts to provide answers for these and related issues.

Accordingly, the Article begins, in Section 1, with some glimpse of the literature regarding the historical position and role of victims. This is followed by a brief overview of the common law and civil law approaches to victims in criminal process. Section 2 proceeds to examine the place and role of victims in the Ethiopian criminal justice system; it also investigates if sufficient legal mechanism that aims at providing better treatment and protection for victims exists. Section 3 surveys global contemporary issues and emerging trends regarding victims. Finally, conclusions along with recommendations which Ethiopia need to incorporate into its upcoming criminal procedure law are provided.¹²

1. The Position and Role of Victims in Criminal Process: An Overview

1.1. Historical Position and Role of Victims: A Synopsis

One wonders to learn one evident historical truth in the history of systems of criminal justice: victims of crimes were not only at the very *center* of ancient and medieval criminal justice systems but also they were the sole persons to determine on the fate of their cases and assailants. In the distant early history of administration of justice, there were no such dichotomies between “criminal” and “civil” cases and there were no such established

¹² Due to space limitations, detailed examination of specific issues related to treatment, protection, reparation and rights of victims within the context of the criminal process are postponed for future studies and discussions.

criminal justice institutions as police, public prosecution, legal counsel, penitentiary and courts as we know them today. Cuomo writes:

“In primitive times, when the struggle for survival regularly pitted one individual against another, there was little to distinguish ‘crime’ from the continuous struggle for existence. The law was the law of the strongest or the most clever [sic]; and the ‘crime victim’ was not just an important player – if he survived, he was probably one of only two players, performing the role of victim, prosecutor, judge, and sometimes executioner. The concepts of punishment, deterrence, and compensation were probably inextricably intertwined and personal. Justice, if any, belonged to the strongest or the most clever[sic].”¹³

In those earlier days, society had a private system of “criminal justice” in which victims of wrongs, or families of victims had decisive powers and responsibilities in the investigation, apprehension, prosecution and execution of offenders.¹⁴ Almost all wrongdoing was perceived as private injury to individual victims as opposed to injury to society. Criminal punishment as we know it today was unknown. The idea of vengeance or retribution was at the center of administration of justice. As Emmanuel Gross notes in relation to historic England, there was privacy between victims and offenders and the wrongs committed against such victims could be settled by paying either monetary or other equitable “damages” or, alternatively, victims or their families could take measures of retribution or vengeance.¹⁵ The early state was not regarded as having interest in such private wrongs.¹⁶

Through time, however, things began to take different shapes. State power began to expand and make substantial inroads into the hitherto private domains. With growing expansion of state power from time to time and the advent of adversarial mode of criminal process (a bipartisan contest between the state and the accused) and the evolution of institutions of the police, prison

¹³ Cuomo, M., ‘The Crime Victim in a System of Criminal Justice’, *St. John’s Journal of Legal Comment*, 1992-1993, p.2.

¹⁴ See Doak, *supra* note 2, p.2-4; Kirchengast, T., *The Victim in Criminal Law and Justice*, Palgrave Macmillan, Basingstoke, 2006, p.4-6; McDonald, W., ‘Toward a Bicentennial Revolution in Criminal Justice: The Return of the Victim’, *American Law Review*, Vol.13, 1975-1976, pp. 649-650[hereinafter McDonald].

¹⁵ Gross, E., ‘Shifting the Balance between the Rights of Victims and the Rights of Defendants in Criminal Proceedings: A Comparative Study of Israeli and American Law’, *Tel Aviv Universities Studies in Law*, Vol.15, 2000, pp.201-202.

¹⁶ Doak, *supra* note 2, p.2.

and public prosecution systems, victims began to lose their historic position and roles.¹⁷

From the mid-eighteenth century until the nineteenth century – when the social contract theory of government and Cesare Beccaria’s theory of crime and punishment gained prominence in the socio-political life of western societies, a major shift occurred in the conception of crime and in the approach to hitherto private wrongs and victims thereto.¹⁸ Private wrongs against individuals began to be treated as wrongs against the state and society. Specific forms of behaviors started to be defined by the state as crimes. The state took responsibility for investigating crimes, apprehending and prosecuting suspected/accused persons and enforcing sanctions against offenders.¹⁹ Punishment became the realm of the state. Public prosecutors gradually replaced private prosecutors; arguably the “golden age” of victims became past history and victims became *third parties* to their own cases.²⁰ Acknowledging the changes, Edna Erez and Julian Roberts note:

“The role of victims in a criminal prosecution has changed drastically over the centuries in common law countries – from an eye-for-an eye system in which victims were expected to deal with their offenders directly, through a system in which the monarch assumed the duty of imposing punishment, to the present system in which the state prosecutes a defendant on behalf of the surrogate victim who is relegated to a role of (at best) lead witness.”²¹

¹⁷ *Id.*, pp.2-4.

¹⁸ *Id.*, p.5; Gross, *supra* note 15, p.203.

¹⁹ See *Handbook on Justice*, *supra* note 2, p. 1.

²⁰ Doak, *supra* note 2, p.3; Young, A., ‘*The Role of the Victim in the Criminal Process: A Literature Review-1989 to 1999*’, (August 2001), p.5, available at: www.justice.gc.ca/eng/pi/rs/rep-rap/2000/rr00_vic20.pdf [accessed 22 February 2011]. Read also Tobolowsky, P., ‘Victim Participation in the Criminal Justice Process: Fifteen Years after the President’s Task force on Victims of Crime’, *New England Journal on Crime & Civil Confinement*, Vol.25, 1999, pp. 21-24; Sanders, A., ‘Victim Participation in an Exclusionary Criminal Justice System’, in Hoyle, C. & Young, R.(eds.), *New Visions of Crime Victims*, Hart Publishing, Portland, 2002, p.199 (expressing that it might not be taken as the ‘golden age’ of the victim as the victim now bears all the burdens and costs of bringing the offender to justice).

²¹ Erez, E., & Roberts, J., ‘Victim Participation in the Criminal Justice System’, in Davis, R., Lurigio, A. & Herman, S., (eds.), *Victims of Crime*, Sage Publications, Inc., Los Angeles, 3rd ed., 2007, p.279 [hereinafter Erez & Roberts].

With the passage of time, victims were forced to be *outsiders* to criminal processes and permitted to play only minimal roles; hence, they were further relegated and marginalized. Yet it should be borne in mind that all criminal justice systems did not follow an identical path of development. The position and role of victims varied, and still varies, as between the civil and common jurisdictions. Even there were, and still are, some variations among jurisdictions that share similar traditions. Yet, the experience of victims in many jurisdictions, particularly in common law adversarial systems, makes clear that they were increasingly becoming *invisible* and *voiceless* within criminal processes.

By the middle of the 20th century, victims in many jurisdictions actually became the “forgotten” or “missing” or “lost” party in criminal proceedings.²² Their needs and interests were relegated to a subservient position to those of the state and the public. They were viewed as *objects* of evidence, as opposed to subjects of the criminal process.²³ This entailed victims’ alienation from and dissatisfaction with the criminal process as well as its outcomes. This in turn engendered feelings of injustice, exclusion and distrust of the justice systems on the part of victims.²⁴

Of course, qualifications must be had so as not to imply that the criminal justice system as a whole is antithetical to victims and their interests. Unquestionably, victims are beneficiaries of the public nature of the criminal proceedings. They are relieved of many burdens and costs; most activities and burdens in criminal proceedings are shouldered and accomplished by governmental institutions – the police and public prosecution. Almost all things relating to the criminal process – starting from investigation and apprehension of offenders all through execution of punishment – fall under the responsibility of the state.

²² *Handbook on Justice*, *supra* note 2, p.1.

²³ McDonald, *supra* note 14, p.650; see also Wemmers, J., ‘Where Do They Belong? Giving Victims a Place in the Criminal Justice Process’, pp.1-4 (Paper presented at the National Victims of Crime Conference, Adelaide, Australia, 23-24 September 2008), available at: www.cicc.umontreal.ca/recherche/victimologie/adelaide_paper.pdf, [accessed on 2 March 2011]. In 2002, Andrew Sanders wrote that criminologists, policy makers and practitioners in England and Wales agree that “the criminal justice system neglected victims and, in many respects, treated them badly” during the last two decades of the 20th century: see Sanders, *supra* note 20, p.197.

²⁴ Garkawe, S., ‘The Role of the Victim during Criminal Court Proceedings’, *University of New South Wales Law Journal*, Vol. 17, 1994, p.596.

1.2. Victims in Common Law and Civil Law Systems

The status and role of victims as well as the treatment, protection and rights that victims enjoy in criminal justice systems vary significantly from one legal tradition to another and to some extent from one jurisdiction to another within same family of legal systems.²⁵ Bearing such differences in mind and using a broad painting-brush, we shall, under the risk of generality, survey the place, role and treatment of victims in common law and civil law systems. Since the purpose of this Article is not to make detailed and specific surveys of the issues that relate to treatment, protection and rights of victims in criminal process, the discussion here is limited to the presentation of general overview on major issues and themes. Also, analysis of specific rights that victims may have in criminal processes, and discussion of tensions that may surface between rights and interests of victims and those of the criminal defendant, and of the public also fall beyond the scope of this work.

1.2.1. Victims in Common Law Jurisdictions

In the common law adversarial system, the two combating parties in criminal proceedings – the state (prosecution) and the defendant – bear all the procedural as well as evidentiary burdens and battle before a passive and neutral judge. At the pre-trial stage investigative police officers of the state and defense counsels of suspects do conduct partisan, non-neutral investigations and collections of respective incriminatory and exculpatory evidence. Victims have no formal position in these proceedings and do rely on police investigation.

Of course, victims may report the commission of crimes to the police or to other law enforcement agencies and participate as informants or as initiators of proceedings. Once the criminal justice system is set in motion and

²⁵ For more details read: Brienens & Hoegen, *supra* note 3; Pizzi W. & Perron, W., 'Crime Victims in German Courtrooms: A Comparative Perspective on American Problems', *Stanford Journal of International Law*, Vol.32, 1996 pp.41 *et seq.*[hereinafter Pizzi & Perron]; Joutsen, M., 'Listening to the Victim: The Victim's Role in European Criminal Justice Systems', *Wayne Law Review*, Vol.34, 1987- 1988, pp.97 *et seq.*; Jouet, M., 'Reconciling the Conflicting Rights of Victims and Defendants at the International Criminal Court', *St. Louis University Public Law Review*, Vol.26, 2007, pp.253-257[hereinafter Jouet]; McGonigle, B., 'Bridging the Divides in International Criminal Proceedings: An Examination into the Victim Participation Endeavor of the International Criminal Court', *Florida Journal of International Law*, Vol.21, 2009, pp.105-106; Erez & Roberts, *supra* note 21, p.279.

investigation is started, it is the responsibility of the police and the prosecution to define what course of action to follow and what to accomplish. Victims serve only as sources of information and as witnesses;²⁶ they do not have the right to demand the dropping out of their cases if they later happen to change their minds.

In the course of the criminal process, bail hearings may be held and victims have no say in such proceedings. Victims may not have information concerning their related civil rights, the progress of their cases, whether defendants are under detention or released on bail, etc. Following the completion of investigation, prosecutors may, invoking the principle of discretionary prosecution, decide not to prosecute if they believe that such serves public interests – despite sufficient evidence against suspected persons. In respect of certain common law jurisdictions, it is observed that victims do not have procedural mechanisms to challenge such decisions.²⁷

A system of plea bargaining gives public prosecutors the power to bargain with suspected persons. Based on the outcome of plea negotiations, prosecutors may charge defendants with lesser gravity offences or less counts or may prosecute such accused persons undertaking that the extent of punishment would be extenuated. Victims have had no voice or any say on such proceedings.

Throughout the criminal process victims have no standing or any other recognized position and role except serving as informants and witnesses. They serve as witnesses – as instrumental weapons – only when parties require them. As Erez and Roberts note:

“The victim of crime serves as the principal witness for the prosecution, and having served this function, has no further role to play. The victim is essentially a passive participant; she or he appears when called to testify and responds to examination in chief and cross-examination, if necessary.”²⁸

If victims are not called as witnesses, they do not get the chance to provide their inputs or to tell about the injury one sustained, about alleged crimes and/or defendants. If called as witnesses, they do get an opportunity to express their side of the story. Yet they, in the latter case, would be examined in a manner that suits the parties. Examiners frame questions as they found appropriate to win their sides. In answering questions, witnesses are coached

²⁶ Brienens & Hoegen, *supra* note 3, p.39.

²⁷ Jouet, *supra* note 25, p.255; Brienens & Hoegen, *supra* note 3, pp.270 and 490.

²⁸ Erez & Roberts, *supra* note 21, p.277.

and shaped by parties; witnesses are confined to answer questions as framed and posed.²⁹ They may not be able to narrate as they feel proper and often they are interrupted now and then before finishing or telling courts regarding their cases including the nature, extent and related aspects of the harm one might have sustained and other related circumstances.³⁰

Above all, victims/witnesses are subjected to *cross-examination*. Defendants or defense counsels can legally pose questions with a view to challenge and test veracity and accuracy of testimony, to discredit, or to spread doubt into their testimony or to dilute such with contradictions and inconsistencies. Cross-examination may expose victim-witnesses for ambushing and attacking, for vexation and bewilderment.³¹ The confrontational showdowns at trial, before a passive adjudicator, may engender fear, anxiety, pain, shame, confusion or bewilderment on the part of victim-witnesses, especially when that involves children and women witnesses suffering sexual violence or abuse.³² Further, certain victim-witnesses may suffer from publicity of their cases.

Victims in adversarial justice systems often experience harassment, intimidation and retaliation from defendants and relatives/friends of defendants before and after court trials (sometimes in court yards as well). Lack of protection mechanisms exposes many victims for various forms of secondary victimization. Some incur additional costs in following up their cases and in trying to avert reactions from defendants' side following the reporting/complaining or testimony. Unlike criminal defendants who enjoy due process rights such as access to legal counsel and speedy trial, victims do not have social, psychological and medical supports or legal aid/services.

Except in limited situations, victims have generally been invisible and voiceless in common law pre-trial, trial and sentencing proceedings until very recently, i.e., the mid 1980s and 1990s. The victim's main role in almost all common law systems has been confined to serving as a source of evidence for the prosecution. Victims lacked the procedural right to challenge or seek review of decisions of investigative police officers who decline to investigate reported cases. That has also been true in plea bargaining and decisions

²⁹ For a contrast, see the Continental German system as described by Pizzi & Perron, *supra* note 25, pp.42-43.

³⁰ *Id.*

³¹ *Id.*, pp.45-48.

³² *Id.*

thereof. Victims had no say in public prosecutor's decision regarding the institution or withdrawal of criminal charges and identification of witnesses. Also, victims have been doubly victimized by poor, insensitive or humiliating institutional responses and operations of adversarial proceedings as well as the publicity of their cases; they have been provided with little protection mechanisms. As the principal focus has been more on the public nature of criminal wrongs and protection of defendants, little attention has been paid to victims. Further, issues of reparations to victims have had no or little place in criminal proceedings since such have been perceived as issues of private individuals that could be entertained in civil proceedings.³³

1.2.2. Victims in Continental Law Jurisdictions

The picture has always been different in continental inquisitorial jurisdictions where victims have retained, to some degree, their historical position. In France, Germany, Austria, the Netherlands, Norway, Spain, Finland and many other European and Latin American countries, victims have, save some variations amongst jurisdictions, a well known and legally recognized status as a *civil party*.³⁴ In most of the inquisitorial jurisdictions, investigation and gathering of evidence is made by judicial police officers or by investigative judges or prosecutors. The investigation is accomplished in a neutral and non-partisan fashion using state resources. Investigative officers/judges act in the best interests of both the state and suspected persons in gathering incriminatory and exculpatory evidence at the same time. The role of defense counsel, if any, is minimal in pre-trial (and trial) proceedings. Though they are not decision-makers, victims are entitled to share or present their concerns and views; hence they do not suffer that much from inequality of arms or exclusion from the process at this earlier stage.

Apart from initiating criminal proceedings through reporting or complaining and serving as witnesses, victims follow up the progress of investigations and all the subsequent proceedings. At the pre-trial stage, they do participate in the enquiry. They can consult investigation files (dossiers) and can request that investigative judges/officers carry out particular

³³ Jouet, *supra* note 25, p.256.

³⁴ *Id.*, p.254; Brienens & Hoegen, *supra* note 3, p.39; Joutsen, *supra* note 25, pp.102-108.

investigations.³⁵ In some minor offences – referred to as complainant offences, victims may legally request that ongoing proceedings be dropped out; hence, that they have the veto.³⁶

Upon completion of investigation, if there is sufficient evidence, criminal charge shall be prepared by the public prosecution. Unlike the common law jurisdictions, most continental countries subscribe to the principle of legality or mandatory prosecution.³⁷ There is also no system of plea bargaining, despite certain changes in some countries recently. Also some jurisdictions allow, in some identified minor offences, victims to prosecute directly. In all other cases, public prosecutors are expected to institute charges before courts. In cases where public prosecutors decide not to prosecute on grounds of lack of sufficient evidence, aggrieved or disagreeing victims may have options to challenge such decisions. There are different avenues for this:³⁸ (a) victims may request that the decision-maker review its decision (internal review); (b) victims may appeal to the next superior body or to an independent board of complaints (administrative review); (c) victims may appeal to court (judicial review); (d) victims may personally prosecute (private prosecution) some or any offences against any or with the exception of some defendants.

In some jurisdictions investigative and prosecutorial authorities are required to inform victims of crime specific issues related to, for example, their roles, their rights (e.g. of filing private claims for compensation), and the possibility of presenting civil claims jointly with criminal proceedings.³⁹

In cases where public prosecutors institute criminal charges before courts of law, victims can join their civil claim against defendants and act as civil parties throughout the criminal proceeding; pursuant to the *adhesion procedure*, they are granted standing to participate in the proceedings in the form of *partie civile* (civil party).⁴⁰ In some jurisdictions, they may even

³⁵ See Hodgson, J., ‘Suspects, Defendants and Victims in the French Criminal Process: The Context of Recent Reform’, *International & Comparative Law Quarterly*, Vol.51, 2002, p. 792.

³⁶ Joutsen, *supra* note 25, p.98.

³⁷ *Ibid.*

³⁸ *Id.*, pp.109-114.

³⁹ *Id.*, p.104.

⁴⁰ *Id.*, pp.115-118; Jouet, *supra* note 25, pp.253-255; *Handbook on Justice*, *supra* note 2, p.1. Note that continental systems are categorized (with attendant distinctions on victims’

participate as subsidiary/auxiliary prosecutors and play corresponding roles where they have no civil claim.⁴¹

Trial proceedings in inquisitorial systems are very much different from that of the adversarial systems. As more emphasis is given to pre-trial investigations, trial proceedings are less rigorous. Pronounced battling and confrontations between public prosecutors and defendants –which characterize the common law adversarial system – do not exist in inquisitorial ones. There are no prosecution witnesses and defendant witnesses and other kinds of evidence known to Anglo-American systems. The idea and workings of burdens of proof in adversarial proceedings do not have that much place in inquisitorial systems. Of course, there are court witnesses and other kinds of evidence which judges would examine with little intervention of litigating parties. Yet, there is no strict examinations-in-chief, cross-examinations and re-examinations as is known in the adversarial systems.⁴² Judges examine victims/witnesses in sympathetic manner posing questions relating to cases. After informing victims/witnesses their obligation to testify truthfully and recording background pieces of information from witnesses, judges let witnesses to explain fully and completely what they know about the crimes under inquiry and surrounding circumstances. In testifying, victims/witnesses are not interrupted now and then – they are asked almost after finishing what they started to tell in a narrative fashion; they are not coached and shaped by litigants.⁴³ Thus, victim-witnesses will not experience the harsh confrontation, challenge and trick; hence, no or reduced attendant confusion, anxiety, shame and humiliation on the part of victims.⁴⁴

From pre-trial through trial proceedings, victims can express their concerns and needs. Should they stand as civil claimants or as private or subsidiary/auxiliary prosecutors, they are nevertheless allowed to participate actively in all the proceedings. They can argue their sides; can express their views and concerns. Also, in some inquisitorial set ups, they may examine witnesses to some extent.⁴⁵

participation in criminal process) as Germanic, Nordic, Romanic or mixed; see Brien & Hoegen, *supra* note 3, pp.38 and 49.

⁴¹ Pizzi & Perron, *supra* note 25, pp.47-49.

⁴² *Id.*, p.55.

⁴³ *Id.*, p.42.

⁴⁴ *Id.*, p.48.

⁴⁵ Joutsen, *supra* note 25, pp.113-114.

From the perspective of the continental inquisitorial approach, the participation of victims throughout the criminal process has a lot to contribute: it ensures that investigators, prosecutors and judges properly perform their duties; it makes the process as transparent as possible; it enables victims to contribute to the establishment of truth. Furthermore, victims have the advantage of simultaneously getting court decisions on their civil claim, if defendants are found guilty.⁴⁶ If however defendants are acquitted, victims may, depending on the type of standing they took (as private prosecutor or subsidiary/auxiliary prosecutor) and the remedies recognized under criminal procedure laws of the concerned jurisdiction, either have recourse to appeal or may institute separate civil claims before civil courts.⁴⁷

Notwithstanding the better position and roles victims enjoy in civil law traditions, call for the enhancement of the degree of involvement of and attention to victims concern the inquisitorial criminal processes as well. Issues regarding, for example, provision of better treatment, support and assistance, and establishment of mechanisms of protection to victims as well as entitling victims more rights in criminal process have thus become shared agendas across the globe.⁴⁸

⁴⁶ *Id*, p.115.

⁴⁷ Jouet, *supra* note 25, p.254.

⁴⁸ In this regard, the adoption in 1985 of the *UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power* and the Council of Europe's *The Position of the Victim in the Framework of Criminal Law and Procedure, Recommendation No. R (85)11* and similar other measures recently taken at the international, regional and national levels could be mentioned.

1.3. The Ascendance of Victims⁴⁹ in Contemporary Criminal Justice Systems

In view of the foregoing, it is clear that there used to be cognizable differences inhering in common law and civil law criminal justice systems regarding accommodation of victims and their interests, and overall approaches toward victims. Despite differing approaches, there has emerged widespread world-wide consensus that victims did not get sufficient attention, their plights remained unnoticed and their concerns, interests and rights remained unaddressed within national and international criminal justice systems.⁵⁰ Hence, the appellation the “forgotten person” has become a commonplace expression referring to the crime victim.

In the conventional retributive criminal process, especially in adversarial systems, much weight had been given to the *breach* of the (criminal) law, to the *handling* of defendants and to the *conviction* and subsequent *imposition of punishment* against convicted offenders. *Victims*, victims’ *personal harms* and consequent *grieve* as well as other *specific needs* and *interests* of victims were not within the spotlights of traditional criminal justice systems. Issues pertaining to treatment, protection and participation of victims in criminal process were not that much the concerns of national and international criminal processes until fairly recently.⁵¹

On the other hand, due process rights of criminal defendants have gained currency in the framework of domestic and international human rights schemes since the end of World War II.⁵² The Universal Declaration of

⁴⁹ Doak writes about the *ascendance* and *rebirth* of victims in contemporary criminal justice policy (Doak, *supra* note 2, pp.vi, 1, 7, etc). Similarly, the *return* or *rediscovery* of the “forgotten man” in the criminal justice system is discussed, e.g., in McDonald’s, *supra* note 14, p.649; Spencer, J., ‘Improving the Position of the Victim in English Criminal Procedure’, *Israel Law Review*, Vol.31, 1997, p.286; Sanders, *supra* note 22, p.201. After briefly outlining the historical *marginalization* and *elimination* of victims from the criminal process in common law countries, Moolman mentions the current upgraded status of victims in some common law countries; see Moolman, C., ‘Victim Rights in Anglo-American and Continental European Countries: What Can South Africa Learn?’ *South African Journal Criminal Justice*, Vol.10, 1997, pp.273-274.

⁵⁰ See the Preamble, UN Declaration on Victims; Sanders, *supra* note 23, p.197.

⁵¹ *Ibid*; Erez & Roberts, *supra* note 25, pp.277-280.

⁵² As of the 18th and 19th centuries, and especially since the end of World War II and until the 1980s, the emphases both in the domestic and international spheres had been solely on the criminal suspect/defendant. The priority had been to entitle criminal suspects, accused

Human Rights (1948), the International Convention on Civil and Political Rights (1966) and other international and regional human rights instruments pay attention to due process rights of criminal defendants. In contrast to this proper and commendable proliferation of rights and safeguards in favor of criminal suspects/accused persons and offenders from time to time, victims, who historically occupied central position and had pivotal roles in criminal justice, were increasingly becoming outsiders to criminal processes. As seen earlier, victims – particularly in the common law jurisdictions – were pushed aside to the periphery of criminal process. As a result, they suffered immensely from exclusion, unresponsive or insensitive institutional behavior, from lack of information, poor or offensive treatment, no or little assistance and service, and from lack of sufficient protection mechanisms.

As of the end of 1960s and beginning of 1970s, various victims' groups and advocates of victims' in USA and other common law jurisdictions started to challenge the relegated position of victims in the criminal justice systems.⁵³ The impetus of these movements spread to other national jurisdictions and by the 1980s it reached and attracted the attention of the international community. The movements and a consequent understanding of negative consequences of victims' exclusion from criminal process⁵⁴ triggered, for the first time in history, the adoption of an international declaration pertaining to victims of crime and abuse of power. Adopted on 29 November 1985 by consensus, the *UN Declaration of Basic Principles of Justice for Victims of*

persons and convicted offenders more substantive and procedural rights and protections against the daunting powers of states. As Doak notes, victims rarely featured within human rights instruments. See Doak, *supra* note, pp.28-30.

⁵³ The various victims' movements that took place, at different times, in the USA, UK, Canada, Australia and many other countries are known to have been triggered by the plights of victims. The adoption of the 1985 UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power and ensuing developments thereof in the 1990s has made the position of victims of crimes, their role and participation, their treatment, protection and support as well as their rights in criminal proceedings a common and shared agenda on international and national levels. See Doak, J., 'The Victim and the Criminal Process: An Analysis of Recent Trends in Regional and International Tribunals', *Legal Studies*, Vol.23, 2003, pp.6-10.

⁵⁴ Researches conducted in some jurisdictions reveal victims have become reluctant to report crimes, to appear in court when called upon as prosecution witnesses, have lost confidence in the administration of criminal justice.

Crime and Abuse of Power,⁵⁵ – referred to as the *Magna Carta* of crime victims⁵⁶ – requires, *inter alia*, that:

- victims be treated with compassion and respect for their dignity;⁵⁷
- victims be entitled to access to the mechanisms of justice and to prompt redress, as provided for by national legislation, for the harm that they have suffered;⁵⁸
- victims should be informed of their rights in seeking redress through judicial and administrative mechanisms;⁵⁹
- victims' views and concerns be presented at appropriate stages of the criminal justice process;⁶⁰
- victims should be kept informed of progress of their cases and their roles within the criminal justice system;⁶¹

The Declaration also provides that victims be provided with proper assistance throughout the legal process.⁶² Article 14 of the Declaration stipulates that victims should be provided with the necessary *material, medical, psychological and social assistance* through programs run by the State or by non-governmental organizations. The Declaration recommends measures to be taken to improve victims' access to justice and fair treatment, restitution, compensation and assistance. It further stipulates under Article 6(d) that states should take protective measures “to minimize inconvenience to victims, protect their privacy, when necessary, and ensure their safety, as well as that of their families and witnesses on their behalf, from intimidation and retaliation.”

Following the adoption of this Declaration, many nations have thus moved to accomplish so many victim-centered/oriented initiatives and have embarked upon criminal justice reform activities partly with a clear motive to accommodate the concerns, needs and interests as well as some rights of

⁵⁵ For the full title of the Declaration, see *supra* note 3.

⁵⁶ *Handbook on Justice*, *Supra* note 2, p. 104; See also Aldana-Pindell, R., ‘In Vindication of Justiciable Victims’ Rights to Truth and Justice for State-Sponsored Crimes’, *Vanderbilt Journal of Transnational Law*, Vol.35, 2002, p.1425.

⁵⁷ Article 4, UN Declaration on Victims, *supra* note 3.

⁵⁸ *Ibid.*

⁵⁹ *Id.*, Article 5.

⁶⁰ *Id.*, Article 6 (b).

⁶¹ *Id.*, Article 6 (a).

⁶² *Id.*, Article 6 (c).

victims in their criminal justice policies, and in their substantive and procedure laws.⁶³ A closer scrutiny of the changes and reform measures undertaken by individual countries shows the differing approaches followed in addressing victims' plights as well as their concerns, needs, interests and rights. Moolman notes:

"The problem regarding *the elimination of the victim* from the criminal justice was a priority on the agenda in the United States, Britain and Australia. In Continental Europe the criminal justice system concentrated on *enabling* the victim to play *an active role* in the criminal justice process."⁶⁴ (Emphasis added).

One may also observe that common law jurisdictions have emphasized more on *welfare issues* such as provision of information, treatment, assistance and compensation and to some extent on granting victims some participatory role during sentencing. Many continental law countries have, on the other hand, focused on *expanding* victims' roles and enhancing their rights (including their right of reparation) within the criminal process.⁶⁵

⁶³ Spinellis identifies the *needs of victims* in criminal process as including: i) prevention of victimization, ii) a kind of "first aid" immediately after suffering criminal injury, iii) reparation of material loss or damage – consisting in payment of compensation or in various services, iv) needs that are related to secondary victimization such as treatment by officials with sympathy and understanding, receiving of information about the criminal process and its developments, participation in the criminal process as subject as distinct from serving as mere object of evidence, protection from the accused, his friends and relatives. Also, moral recognition of the injustice the victim suffered, the just punishment of the offender, protection of privacy and the need for justice can be included. See Spinellis, *supra* note 1, p.337; Spencer, *supra* note 49, p.286; Doak, *supra* note 53, pp.1-2; Maguire, M., 'The Needs and Rights of Victims of Crime', *Crime & Justice*, Vol.14, 1991, p.363; Hodgson, *supra* note 35, p.792; Pizzi & Perron, *supra* note 25, pp.37, 56-59; Joutsen, *supra* note 25, p.95; Muller, K. & Van Der Merwe, A., 'Recognizing the Victim in the Sentencing Phase: The Use of Victim Impact Statements in Court', *South African Journal for Human Rights*, Vol.22, 2006, p.647.

⁶⁴ Moolman, *supra* note 49, pp.273-274.

⁶⁵ Victims in most European and Latin American countries such as France, Germany, the Netherlands, Sweden, Argentina and Colombia do now not only enjoy a "party" status in the form of *partie civile* (civil party) but also play key roles throughout the criminal process. See generally Hodgson, *supra* note 35; Maria, E., 'Protection of the Victims of Crime in the Austrian Criminal Proceeding', *Studia Iuridica Auctoritate Universitatis Pecs Publicata*, Vol.139, 2006, p.125 *et seq.*; Wergens, A., 'The Role and Standing of the Victim in the Face of Criminal Procedure Sweden', *Revue internationale de droit pénal*, Vol.73,

Significant progresses in favor of victims are also taking place at the international and EU levels.⁶⁶ It is noted that the 1998 Rome Statute of the International Criminal Court (ICC) has set a groundbreaking path by granting enhanced status for victims.⁶⁷ The Statute recognizes victims' participatory right in criminal proceedings. Victims are given the opportunity to be heard and to claim reparations; they are entitled to a *legal standing* to be represented by counsel and to formally participate throughout trial and other related court proceedings.

In nutshell, new ideas and approaches that improve victims' status and pay attention to their concerns, needs, interests and rights are increasingly evolving. Restorative justice approaches are more and more penetrating conventional criminal justice systems.⁶⁸

2002, p.259-300 (available at: www.cairn.info/revue-internationale-de-droit-penal-2002-1-page-259.htm) [accessed 25 May 2011].

⁶⁶ See Waller, I., 'International Standards for Victims: What Norms? What Achievements? What Next?', in Aromaa, K. & Viljanen, T. (eds.), *International Key Issues In Crime Prevention And Criminal Justice*, (Papers in celebration of 25 years of HEUNI, Helsinki 2006), p.148; Available at: http://www.heuni.fi_Satellite_blobtable [accessed 2 March 2011]. The Council of Europe has adopted a declaration in 1985 that sets standards for the improvement of the position and treatment of victims (see *supra* note 48) and other instruments pertaining to victims. For details see Brienens & Hoegen, *supra* note 3; Doak, *supra* note, pp.28-33.

⁶⁷ Articles 68(3) *cum* 75, UN General Assembly, Rome Statute of the International Criminal Court (last amended January 2002), 17 July 1998 [hereinafter Rome Statute] (entered into force July 1, 2002); see also Jouet, *supra* note 25, p.249; McGonigle, *supra* note 25, p.94; Gonzalez, P., 'The Role of Victims in International Criminal Court Proceedings: Their Rights and the First rulings of the Court', *Sur-International Journal on Human Rights*, Vol.5, 2006, pp.19 *et seq.* Issues relating to treatment, protection and compensation of victims are addressed. Despite arguments against their participation in criminal proceedings, now it has become patently clear that victim's participation in criminal process has pervaded national and international criminal proceedings. For arguments *for* and *against* read Spinellis, *supra* note 1, pp.350-359; Doak, *supra* note 53, p.2 *et seq.*; Doak, J., 'Victims' Rights in Criminal Trials: Prospects for Participation', *Journal of Law & Society*, Vol.32, 2005, pp.294 *et seq.*

⁶⁸ Goodey, *supra* note 3, p.21.

2. The Place and Role of Victims in the Ethiopian Criminal Justice System

2.1. Introductory Remarks

In light of the above-mentioned changes and ensuing paradigm shifts, examining the status and role of victims of crime under the Ethiopian criminal process today appears to be a timely venture, if not late.⁶⁹ As a state that did participate in the adoption of the UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power (and other subsequent international instruments), Ethiopia is expected to incorporate into its national law and to implement major principles and rules embedded in the Declaration and other recent international instruments. Settling down with the *status quo* in the face of glaring developments across the globe would not be a wise choice to be heeded as such. “In an era where globalization and harmonization of criminal procedure seem set to continue indefinitely”, Doak observes, “it is inevitable that domestic processes and policy makers and criminal justice agencies will be increasingly influenced by international developments.”⁷⁰ It is unlikely that

⁶⁹ The utter paucity of literature and research on the subject matter of victims in Ethiopian criminal justice system is worrying. The only work (other than the mid-1970s writings of professor Stanley Z. Fisher) on the existing legal lacunas and insufficient legal framework relating to *victims' compensation* is written by an Indian professor; see Vibhute, K., ‘Adjudicating and Compensating Civil Claims of Victims of Crime in Criminal Proceedings in Ethiopia,’ *Ethiopian Human Rights Law Series*, Vol. III, 2010, pp.175 *et seq.* To the best knowledge of the author, research on the place, role and participation of victims, on the treatment, protection, assistance and service that victims are or should be entitled in the context of Ethiopian criminal process is lacking. Perhaps, some may have the impression that such matters are or should be the concerns of the civil justice system. However, it must be known that victims, the persons that are most affected by the acts of perpetrators, have legitimate concerns, interests and rights that the criminal justice process should accommodate. As shown above, the conventional attitude that relegates and restricts victims to civil proceedings and excludes from the criminal process has lost its support since 1980s. Read further: Spinellis, *supra* note 1, p.350-359; Doak, *supra* note 67, p.294 *et seq.*

⁷⁰ *Id.*, p.302; on the growing globalization and harmonization of criminal procedure, see generally Bradley, C., ‘The Emerging International Consensus as to Criminal Procedure Rules’, *Michigan Journal of International Law*, Vol.14, 1993, p.171 *et seq.*; Bradley, C., ‘The Convergence of the Continental and the Common Law Model of Criminal Procedure’, *Criminal Law Forum*, Vol.7, 1996, p.471; Amann, D., ‘Harmonic Convergence? Constitutional Criminal Procedure in an International Context’, *Indian Law Journal*, Vol.75, 2000, p.809 *et seq.*

Ethiopia would remain outside the globalised change in favor of victims. Furthermore, some reported cases and research, though limited, suggest that we pay attention to the victims' situation in Ethiopian criminal process.

For instance, some media and research reports indicate that some of the plights of victims, especially in cases of violence against girls and women, do arise, in part, from the operation of the country's system of criminal justice and the criminal process.⁷¹ The widely reported case of *Hermela Wosenyeleh* stands to testify this assertion.⁷² This author also knows from his limited judicial and research experience that many victims suffer in connection with the processing of "their" cases.⁷³ Poor reception and treatment of justice personnel, insensitivity to criminal offences such as sexual and domestic violence, delayed reactions to criminal complaints/reports, poor investigation of crimes, unavailability of psycho-social, medical and legal supports and services, little provision of timely information regarding pending cases, etc., are prevalent. In some instances victims or their families suffer additional

⁷¹ See, e.g., Original Wolde Giorgis, *et al.*, 'Violence Against Women in Addis Ababa', *BERCHI* (The Annual Journal of Ethiopian Women Lawyers Association), Vol.5, 2004, pp.161-250, 253-257; Sara Tadiwos, 'Rape in Ethiopia', in *Reflections Documentation of the Forum on Gender*, No.5, 2001, p.6.

Available at: www.preventgbv africa.org/system/files/panosreflect5.excerpts.pdf [accessed on 18 April 2011].

⁷² Hermela's case gained wide media attention for it involved an infamous offender (who was allegedly in love with the victim) that inflicted repeated attacks on the victim. After being released on bail, it was reported that the man finally shot and wounded Hermela, as well as seriously harmed two of her sisters with a machete. The case triggered public demonstration organized by the Ethiopian Women Lawyers Association, in February 2001. See

<www.awf.or.gp/pdf/h0017.pdf>;

<http://reliefweb.int/sites/reliefweb.int/files/reliefweb_pdf/breifingkit>.

Another *Hayat Abdurazak* was reported to have repeated victimization after she took her case to justice (See, e.g., *Addis Admass*, 9th Miazia 2002).

⁷³ See, e.g., Dessie Seyoum & Worku Yaze, *Crime of Perjury in the Criminal Justice Administration of The Amhara Regional State: Prevalence, Causes, Adverse Effects and Remedies*, (Unpublished, November 2002 E.C /2009, in Amharic). The researchers identify intimidation by criminal defendants or their relatives have been one of the major causes for witnesses and victim-witnesses to testify falsely before courts of the Regional State. Another research conducted by Molla Ababu, Worku Yaze & Yonas Tesfa, *Protection of Human Rights of Women In Ethiopia: Assessment of problems in enforcing International Human Rights Instruments and Domestic Laws in the Amhara National Regional State* (Unpublished, March 2009) hint that some victim-witnesses fail to appear before courts due to fear of reprisals from defendants or relatives of defendants.

harms from criminal suspects or their close relatives/friends following primary victimization. There could be some suspects that continue their misdeeds directly or indirectly through their relatives and friends, either to complete what has been started, or to exacerbate the already inflicted injuries or to deter their victims and their relatives from complaining to and testifying about the matters before the police or courts. Sometimes one hears worst scenarios of victim-witness eliminations through the direct or indirect acts of criminal defendants or their relatives.

As the revision and drafting of the criminal procedure law of the country is still underway it is the right moment to worry about victims concerns, needs, interests and rights and to ask if there are pertinent norms that provide about or regulate matters such as the place, treatment, protection, role and rights of victims in our criminal process. It is time to evaluate whether our criminal justice system accommodates victims needs and interests: it is time to survey the ways in which victims can influence, if they are or ought to be entitled, the course of criminal cases starting from investigation and arrest of suspects all through charging, trial, sentencing, probation, parole, amnesty and pardon.

We hope that this Article will do some contributions in multiple ways. The very undertaking of this survey will, undoubtedly, produce some results concerning the status and role of victims- it will show us where we are in these regards. On the other hand, the mere opening of such a victim's agenda from a different perspective in the criminal justice system may probably impinge on the minds of many and may nag them to be very considerate of victims: victims, entities that work on victim advocacy, legal professionals, academics, draftspersons, legislatures, police officers, public prosecutors and judges are likely to be aroused to see other dimensions in the criminal process. The invocation of specific issues pertaining to victims here and there may also serve to provoke further discussions, debates and researches in this totally neglected area of the Ethiopian criminal justice system.

In this Section, therefore, I shall examine the place and role of victims in the current Ethiopian criminal justice system. However, before directly moving to the examination of the current criminal process, it is apposite to say a few points about the place and role of victims in Ethiopia before the promulgation of the 1961 Criminal Procedure Code.⁷⁴

⁷⁴ Criminal Procedure Code of the Empire of Ethiopia, 1961, *Negarit Gazeta*, Proclamation No. 185/1961, Extraordinary Issue No. 1 of 1961 [hereinafter Criminal Procedure Code].

2.2 The Place and Role of Victims Before 1961

As is the case in most other jurisdictions, ancient Ethiopian traditional legal system was essentially based on vengeance or retribution. In historic Ethiopia there were no classifications of wrongs into private (civil) wrongs and public (criminal) wrongs: there were no such divisions before the enactment of the 1930 Penal Code. Even then, there was no such division despite the name of the Code as “Penal”. Professor Krzeczunowicz wrote:

“As in ancient European societies, so in the Ethiopian society before 1930 G.C the neat modern division of legal wrongs into “penal” (public) and “civil” (private) ones was unknown. With few exceptions, as those of religious sacrilege or acts injuring the Emperor and his realm, wrongs now known as “penal” (e.g., homicide, rape or robbery) were private in the sense that they were not prosecuted by the organs of the Empire, but redressed at the instance of the victim or his blood-relatives, who were free to sue, not to sue, or compromise the issues.”⁷⁵

Direct victims or blood-relatives had all the discretionary power to take either revengeful measures against their wrongdoers or their close relatives, or to pursue other traditional remedial procedures. Victims or families (in cases of homicide) could exact justice from perpetrators or families of the latter by revenge or they could demand blood-feud (in cases of homicide), restitution or other forms of reparation. If victims were not able to identify their wrongdoers, they could have availed traditional mechanisms such as *leba shai*, *offersata* to identify their “enemies”.⁷⁶ These and many other traditional mechanisms that involved the *active participation* of victims were in place since earlier times and still seem to prevail in practice in different rural local communities outside of the regular justice system.⁷⁷

Until the dawn of the 20th century, there were no institutions of the police and public prosecution as we now know. The “criminal” justice system was essentially victim-driven. Victims could take revenge or could seek compensation and/or enter into compromise and resolve their disputes. Such

⁷⁵ Krzeczunowicz, G, *The Ethiopian Law of Extra-Contractual Liability*, Haile Selassie I University, Addis Ababa, 1970, p.6.

⁷⁶ Fisher, S., ‘Traditional Criminal Procedure in Ethiopia’, *American Journal of Comparative Law*, Vol.19, 1971, pp.716-726.

⁷⁷ For some details, see generally Pankhurst A. & Getachew A.(eds.), *Grass-Root Justice in Ethiopia: The Contribution of Customary Dispute Resolution*, French Center of Ethiopian Studies, Addis Ababa, 2008.

were supported by traditional state functionaries, different social institutions and religions and the *Fiteha Negast*. In the great bulk of offences considered “criminal” by modern laws, the injured party used to initiate and prosecute accused persons and to execute sentences against offenders.⁷⁸ In nutshell, victims of crimes assumed central position and played decisive roles in traditional criminal process until the 1940s.

Changes began to take place following the introduction of the institution of Public Prosecutors by Public Prosecutors Proclamation No.29 of 1942.⁷⁹ By virtue of this Proclamation, public prosecutors were authorized to take over and institute criminal cases which were previously handled by victims or their advocates. Victims were allowed to take actions before courts (personally or through their advocates) only where the public prosecutors fail to prosecute or private complaint offences are involved.⁸⁰

Where however public prosecutors instituted charges against accused persons, victims continued to actually play substantial roles. They closely followed up their cases from initiation to execution. Moreover, reported cases show that prosecution proceedings could be interrupted or dropped at any stage if victims inform courts that they settled the dispute through compromise or reconciliation. Also, victims could take appeal to next court(s) if they were aggrieved with decisions of lower courts which public prosecutors did not contest.⁸¹ In sum, that had been the general picture regarding the position and role of victims in the period between 1943 and 1961.

2.3 The Position and Role of Victims since 1961 to the Present

Ethiopia had undertaken a legal revolution between 1955 and 1965. Successive efforts to modernize the legal system of the country brought, *inter alia*, about the promulgation of six codes in ten years time. While the codes on substantive laws were largely inspired by material sources from the

⁷⁸ Fisher, *supra* note 76, p.742.

⁷⁹ See the observation of the Supreme Imperial Court of Ethiopia in *Tayetch v. Stella Giuseppe* case (1953) cited and discussed in Fisher, S., *Ethiopian Criminal Procedure: A Sourcebook*, Central Printing Press, Addis Ababa, 1969, p.343.

⁸⁰ *Ibid.*

⁸¹ Read the various cases cited in the above-mentioned book by Fisher, pp. 331-352. Also, observe that the earlier practice somehow continued even after the coming into force of the 1961 Criminal Procedure Code.

continental, especially the Romano-Germanic, legal tradition, the two procedure codes mainly fit in to the common law terrain.

The 1961 Criminal Procedure Code, a code still in force nationwide, is a product of the codification endeavor of mid-20th century. The preparation of this Code was somewhat unique in that it was subject to successive draftsmanship. The initial drafts, originally prepared by the Swiss professor Jean Graven – a continental comparative law scholar with more of inquisitorial flavor – were handed over to another common-law trained legal expert, Sir Charles Mathew of England, for further refinement in 1958. For different reasons, the Ethiopian Parliament failed to adequately deliberate on the refined draft prepared by Mathew. Eventually, Mathew's draft code – with an overall adversarial flavor inspired by the Malayan Criminal Procedure Code, save however some fragments of inquisitorial elements – was promulgated the Criminal Procedure Code of the country.⁸²

One cannot tell the approach Ethiopia followed regarding victims without closely scrutinizing the provisions of the Criminal Procedure Code. The change of draftsmen amidst the preparation of the Code as well as the fact that the parliament did not aptly deliberate the final draft bar any automatic speculation regarding the approach adopted in respect of victims. Thus one must raise the following questions: What approach –whether continental, common law or “mixed” – is followed in the Code in respect of victims? Are there specific provisions that pertain to the treatment and protection of victims where the latter come in contact with criminal justice authorities following primary victimization? What is the place of victims? What recognized roles do they play in the criminal justice system?

Some amendments were made to the Criminal Procedure Code during the Transitional Period (1991- 1995) in 1993.⁸³ Aspects of the amendments, still remaining valid, pertain to victims of crimes. How far these amendments might have affected the legal position and role of victims needs, again, closer scrutiny. It is also important to examine what the new Criminal Code provides

⁸² *Id.*, pp. ix-xii. However, a myriad of shortcomings, gaps and defects were discovered in the aftermath of its entry into force.

⁸³ See in particular Articles 9, 19, 20 and 24, the Office of the Central Attorney General of the Transitional Government of Ethiopia Establishment Proclamation, 1993, *Negarit Gazeta*, Proclamation No.39/1993, 52nd Year, No.24 [hereinafter Central Attorney General Proclamation].

in respect of victims of crimes. The following discussion addresses the above questions and related issues.

i. General Observation

The Criminal Procedure Code contains some specific provisions that expressly deal with victims. There are two chapters in Book IV, Title I of the Code that solely deal with victims: Chapter 5, titled “Private Prosecution” and Chapter 6, titled “Injured Party in Criminal Proceedings”. In addition, there are some articles in other parts of the Code that pertain to victims. Also, the *Office of the Central Attorney General of the Transitional Government of Ethiopia Establishment Proclamation* contains rules regarding crime victims. Finally, the new Criminal Code includes some provisions that deal with certain substantive and procedural issues regarding victims in criminal proceedings. We shall see these closely as follows.

ii. Initiation of and Participation in Criminal Investigation

Article 11(1) of the Criminal Procedure Code provides that any person has the right to report any offence with a view to criminal proceedings being instituted. By virtue of this provision victims of crimes, like any other individuals, have the statutory right to report the commission of offences against them with a view to set in motion the machinery of government toward criminal investigation. Apart from this right to report the commission of crimes (and/or about suspected persons), victims are entitled to lodge complaints in cases of crimes that are punishable only upon complaint.⁸⁴

Under Article 16, accusations or complaints may be made to the police or the public prosecutor.⁸⁵ Accusations may be made anonymously.⁸⁶ This is very much useful to reduce the risk or possible attacks by suspects and/or their relatives/friends. Whether a private complainant can also keep ones identity secret is questionable as Article 12 explicitly and only deals with accusations, not complaints.⁸⁷

⁸⁴ Article 13, Criminal Procedure Code, *supra* note 74. Note that this article refers to “the injured party or those deriving rights [powers] from him”. This fits with the usage of the term ‘victim(s)’ in this Article.

⁸⁵ Note that there is a *duty*, as regards some serious offences, to make report to law enforcement agencies; see, e.g., Article 443, Criminal Code.

⁸⁶ Article 12, Criminal Procedure Code.

⁸⁷ “Accusation” here refers to reporting of the commission of non-complaint offences by any person, including victims. Whereas, “complaint” refers to lodging/ filing of suit or

Once an accusation or complaint has reached the police (or the public prosecutor, in which case the public prosecutor has to forward to the relevant police office), an investigating police officer *is duty bound to commence and conduct investigation*.⁸⁸ On the other hand, Article 212 of the Criminal Code, titled as “Crimes Punishable upon a Formal Complaint,” provides:

“Where the law in the Special Part of this Code or in any other legislation that complements criminal law provides that a crime is punishable upon complaint, no charge shall be instituted against the criminal unless the injured party or his legal representative institutes a complaint.”

Here, it is clear that victims of crime determine whether criminal investigation starts as regards offences punishable upon complaint. It is up to the particular victim to lodge a complaint or not. If s/he lodges a complaint, the police must conduct investigation; if the victim refrains from complaining, the police cannot start investigation even if it learns the commission of such an offence from other sources.⁸⁹ Hence, victims have decisive say in the commencement of investigation regarding complaint offences.

In case of accusation offences, on the other hand, reporting by victims is a sufficient, but not a necessary, condition for the police to commence investigations. Even without the reporting of victims, the police have the responsibility to carry out investigations where knowledge or reasonable suspicion of the commission of offences exists.⁹⁰

From the foregoing, it is obvious victims have clearly defined legal place and role vis-à-vis initiation of criminal process and investigation. They have a statutory right to report and complain, not only as ordinary persons but

grievance by victims of complaint offences. Article 212, Criminal Code provides a rule based on which distinction can be made between offences punishable upon complaint and offenses punishable without the need to receive complaint from victims or their legal representatives.

⁸⁸ Articles 14 *cum* 23, Criminal Procedure Code. Legally speaking, investigative police officers in Ethiopia lack the power to close files even when they learn from the collected evidence that no crime is committed or the committed crime is too trivial.

⁸⁹ Victims are thus granted with a ‘veto’ power in some offences. The justifications for such a legal approach in Ethiopia may include: some crimes are trivial or not that much serious to affect the public interest, or prosecuting such crimes without the active involvement of victims may be impractical, or prosecuting in such cases would further spoil the familial and social relationships and bondages of victims and offenders, or the protection to the right of privacy of victims is more important than prosecuting such offences.

⁹⁰ Articles, 22 *cum* 23, Criminal Procedure Code.

also as *victims*. They do have a recognized place as *injured parties* or *victims*. On the other hand, investigating police officers are under duty to seize the matter and to conduct investigation once they have received an accusation or complaint.⁹¹

Another point that should be raised at this juncture is whether there exist norms or guidelines that govern the reception and treatment of victims during the lodging of complaint before governmental (e.g. police and public prosecutor) or non-governmental bodies. To our dismay, no such norms or guidelines exist until this time. However, some positive developments seem to be evolving following reforms pertaining to, for example, business process re-engineering (BPR) of justice institutions. As the reforms aim, among other things, at the creation of customer-friendly institutions, it is hoped victims/witnesses would benefit. Still, there is no established system of psycho-social, legal and medical assistance and support mechanism which victims may avail to revive from their trauma or to prevent further exacerbation or deterioration of injuries. There is no established shelter service that victims may resort to avoid further attacks or to wait until they find somewhere to go.⁹²

The next sets of questions that must be answered are: What is the place of victims and what role do they play during the course of the investigative works of the police? How are police officers expected to treat them during the pretrial phase of the criminal process? What protections and assistance, if any, accrue to victims?

In contrast to victims' role in the initiation phase, the place and role of victims *during the course of investigation* is not provided for in the Criminal Procedure Code. Victims' right to participate in the process as *victim party* and be acknowledged as a party or a quasi-party with some *vested interest* is not recognized under the Code. Neither the Criminal Procedure Code nor any other law in force entitles victims to legally request or "advise" investigative officers to carry out particular investigation or to follow certain courses of actions. Also, there is no provision that requires instigative officers to receive

⁹¹ Should a police officer decline to conduct investigation following the report or complaint of a victim, it appears that the latter can seek administrative remedies within the police institution and/ or public prosecution.

⁹² Incidentally, it must be mentioned that the Ethiopian Women Lawyers Association and some other civic organizations that work on women and children rights and interests are giving some limited support and services to victims of crime.

the inputs of victims other than the ones which the latter may provide as witnesses.

While the constitutional⁹³ and procedural laws of Ethiopia have always entrenched major principles and rules on the treatment, protection and participation of arrested persons which investigative officers should recognize and realize, entitlements favoring victims have been absent. For example, arrested persons have constitutionally protected rights to be treated with respect and dignity, to be informed of the reason of arrest and the charge brought against them, to have speedy trial (which includes the timely accomplishment of investigatory tasks), etc.⁹⁴ In contrast, there are no similar norms that provide about the treatment of victims before the police or public prosecutor. Victims are not apparently entitled to inspect or consult investigation file of the police. It appears that victims are not entitled to be present and examine suspected persons during interrogation⁹⁵ and examination of witnesses,⁹⁶ etc.

Though there is no provision in the Criminal Procedure Code or any other law that obliges police officers to consult with victims or to provide them with information related to investigation, police officers may in fact discuss with victims matters related to, for example, suspected persons and the injury or harm the latter inflicted on the victim. Notwithstanding this, it is not clear whether police officers should behave cooperatively if a given victim wants to know whether suspects are to be arrested or not, or if arrested, whether they are to be released on bail or not, whether search and seizure is conducted or not, whether sufficient evidence is gathered or not, etc. Also, it is not clear whether victims can bring forward their views and concerns in “their” case and whether police officers should listen if victims want to say something about suspects or the matter under investigation.⁹⁷ In cases of

⁹³ See Articles 51-61, the 1955 Revised Constitution of the Empire of Ethiopia, Articles 44-45, the 1987 Constitution of the People’s Democratic Republic of Ethiopia, and Articles 18-23, FDRE Constitution which provide for norms favorable to suspected, accused and convicted persons.

⁹⁴ Arts 19 *cum* 21, FDRE Constitution.

⁹⁵ Article 27, Criminal Procedure Code.

⁹⁶ *Ibid*, Article 30.

⁹⁷ It appears that police officers would be duty bound to listen victims if the latter’s voice has to do with withdrawal of complaints vis-à-vis offences punishable upon complaint. Under Article 221 of the 1957 Penal Code, it was clearly enacted that victims have the right to withdraw any time prior to pronouncement of judgment by court. Pending the expected

applications of arrested persons to be released on bail, police officers or public prosecutors may most probably hear the voices of victims before they submit their opinions on such applications.⁹⁸ Yet, this is not an obligation that police officers or public prosecutors should carry out under pain of any sanction or which victims may invoke for administrative or judicial review.

Investigative police officers are expected to complete investigation without unnecessary delay. Article 37 Criminal Procedure Code enacts: "Every police investigation under this Chapter [Chapter 2, from Art 22-26] shall be completed without unnecessary delay." What this article provides is, if properly implemented, in the interest of suspected persons, public prosecutors, individual victims and the society at large as well. But, does this provision entitle victims, like suspects, to assert a right to speedy trial? Suspects, particularly if they are on bail, may actually try to stultify or prolong the investigation process. Can victims then intervene to solidify or speed up the investigation process? As the law stands now, it appears that the answer is "no". There is no law that expressly or implicitly enacts the right to speedy trial of victims.

iii. Victims and Decision-making in Criminal Prosecution

As the law stands now, investigative police officers do not have the discretionary power to close files, save where victims request dropping of cases involving offences punishable upon complaint. Files cannot be closed by the police notwithstanding investigations confirm there is no *prima facie* evidence establishing reported crime(s). The law merely requires the police officer to send to the public prosecutor the reports of investigation as soon as completed.⁹⁹

Upon receiving the reports, the public prosecutor decides, based on what is contained in the report, to either take the actions stipulated under Article 38¹⁰⁰ or close the file under Article 39.¹⁰¹ In cases where a public prosecutor

incorporation of this right in the upcoming revised criminal procedure code, the earlier practice set by the 1957 Penal Code still persists.

⁹⁸ Victims may give information which may help predict the behavior of arrested persons; see Article 67, Criminal Procedure Code.

⁹⁹ Article 37(2), Criminal Procedure Code. Though there is no law compelling police officers to inform victims, they do in practice inform victims the completion of investigation and the consequent dispatch of a report to the public prosecutor.

¹⁰⁰ The public prosecutor may: (a) prosecute the accused in accordance with Articles 109-122; or (b) order that preliminary inquiry be conducted (Articles 80-93); or (c) order further

closes an investigation file under the latter article, sub (3) provides that “the public prosecutor shall *send a copy of his decision* to the Advocate General, *the private complainant*, if any, and the investigating police officer.” If implemented, this *victim notification* satisfies the information need of victims to some extent for the procedure allows victims to receive up-to-date information about one's case without any wastage of time, energy and money in search of what happened to one's case. Yet, as sub (2) clearly indicates, the decision of the public prosecutor to close file is final and no victim has any alternative course of action in the criminal proceeding.¹⁰²

Whether victims will have a recognized position and role as a *victim party* in, for example, subsequent investigation (where the public prosecutor orders it) or preliminary inquiry is not stipulated. The Criminal Procedure Code however provides what must be done in respect of victims in cases where public prosecutors decide to prosecute or not to prosecute as shown below.

Public prosecutors are obligated under Articles 40(1) *cum* 109 to prepare formal criminal charge against suspects where the investigation files suggest there are sufficient grounds for prosecution. Here, the Code embraces the principle of mandatory prosecution. Prosecutors are required to institute charges within fifteen days¹⁰³ of the receipt of the investigation files of the police or the records¹⁰⁴ of preliminary inquiry of the committal

investigation to be carried out; or (d) refuse to institute proceedings (decide not to prosecute) as provided under Article 42, Criminal Procedure Code.

¹⁰¹ Under Article 39 files are closed where the accused (a) is died; (b) under 9 years of age; or (c) cannot be prosecuted under special law or international law or enjoys diplomatic immunity. Similarly, Article 214, Criminal Code also provides that “[a] prosecution may neither be instituted nor continued where an accused person dies before the institution of a charge in a court or before the pronouncement of judgment.”

¹⁰² However, victims may institute civil claim under the law of extra-contractual liability; the discharge of a wrongdoer in the criminal case can't be invoked as a bar. See Articles 2149 *cum* 2028-2035, Civil Code of Ethiopia, 1960, *Negarit Gazeta*, Proclamation No. 165/1960, 19th Year, No.2 [hereinafter Civil Code].

¹⁰³ Article 109 (1), Criminal Procedure Code; If obeyed, this provision not only guarantees the right to speedy trial of criminal defendants but also incidentally meets both the interest of victims and the public as well.

¹⁰⁴ While Article 91(3), Criminal Procedure Code, provides that the copies of the record of the committal court be sent to the public prosecutor and the accused (by the registrar), it does not prescribe the same as regards victims.

court.¹⁰⁵ The determination of particulars that should be included in the charge including the type(s) of offence and number of counts is left to the determination of the public prosecutor. In this regard, victims are neither entitled to be consulted nor have a say, at least in the formal sense. At the moment, this may not be taken as a serious gap in our law since there is no system of plea bargaining. Yet, if such a system is to be introduced – and there are apparently some moves to introduce such a system in the upcoming criminal procedure code, it would be vital to pay good attention to victims' concerns and interests.

On the other hand, the position and role of victims in cases where public prosecutors have instituted criminal charges before courts of law appears to be clearly regulated. This matter gets attention both in the substantive and procedure codes.¹⁰⁶ The Criminal Code enacts:

“Where a crime has caused considerable damage to the injured person or to those having rights from him, the injured person or the persons having rights from him shall be entitled to claim that the criminal be ordered to make good the damage or to make restitution or to pay damages by way of compensation. To this end they may join their civil claim with the criminal suit.”¹⁰⁷

Also, Articles 154 *et seq.* provide for joinder of civil claims with criminal proceedings. Persons injured by a criminal offence or their representatives, “may at the opening of the hearing apply to the court trying the case for an order that compensation be awarded for the injury caused.”¹⁰⁸ This procedure resembles the *adhesion procedure* of continental inquisitorial jurisdictions.

Pending further discussions below, let us now observe the options available for victims in instances where public prosecutors decide not to institute criminal prosecution.

¹⁰⁵ *Ibid*, Article 42(2); unless justified by grounds provided under Article 42(1), public prosecutor cannot refuse to institute proceedings. But see, Article 9(7), Central Attorney General Proclamation, *supra* note 83.

¹⁰⁶ Yet, it is not clear how victims come to know whether public prosecutors instituted criminal charges or that “their” cases are still pending before the police or committal court or the office of the public prosecution, hence a critical gap in the law.

¹⁰⁷ Article 101, Criminal Code.

¹⁰⁸ *Ibid*, Article 154(1).

Aside from the grounds under Article 39,¹⁰⁹ the public prosecutor has the power to decide not to prosecute and thus to close files based on Article 42, Criminal Procedure Code. Accordingly, there shall not be criminal prosecution where:

- (a) The public prosecutor is of opinion that there is not sufficient evidence to justify a conviction; or
- (b) There is no possibility of finding the accused and the case is one which may not be tried in his absence;¹¹⁰ or
- (c) The prosecution is barred by limitation or the offence is made the subject of a pardon or amnesty; or
- (d) The public prosecutor is formally instructed not to institute proceedings in the public interest by the Minister or Head [of Ministry of Justice or Regional State Justice Bureaus].¹¹¹

Victims do not participate in this decision-making. The public prosecutor is not required by law to consult or hear victims before any decision not to prosecute. In refusing to institute criminal prosecution for any of the grounds listed above, the prosecutor is however required to *state its reasons clearly in written decision*. Furthermore, *a copy of the decision not to prosecute* must be sent¹¹² to the victims or their representatives listed under Article 47.¹¹³ The *victim notification* requirement entails that victims are not forgotten in the course of the criminal process. If implemented, this has immense advantages to victims.

If aggrieved, a victim of crime who is provided with this notification of “not to prosecute” may have, depending on the ground invoked by the prosecutor, some options to follow. The first option, available in any situation, is to take ones grievance to the next administrative hierarchy for review. This is

¹⁰⁹ See *supra* note 101.

¹¹⁰ See Articles 160-163, Criminal Procedure Code. It is only where offences that entail a punishment of twelve years or more rigorous imprisonment are involved that trial *in absentia* can be conducted (Article 161 (2) (a)). Note however that the applicability of sub (2) (b) of Art 161 is qualified by the principles/rules of the FDRE Constitution and the Criminal Code.

¹¹¹ It must however be noted that this sub-article is repealed by the Central Attorney General Proclamation which, *inter alia*, empowers the Central Attorney General to dismiss criminal cases. Whether this is still in force is debatable; see Articles 24 *cum* 9(7), Central Attorney General Proclamation, *supra* note 83.

¹¹² Article 43(2), Criminal Procedure Code.

¹¹³ This includes the spouse of the victim, aside from the legal representative of the victim.

always open for victims that are not satisfied with decisions of prosecutors.¹¹⁴ If the ground of the decision not to prosecute is for lack of sufficient evidence, there is another avenue to follow, albeit not always. Under Article 44(1), Criminal Procedure Code, the victim has the right to conduct *private prosecution* provided that the type of offence involved is punishable upon complaint. To realize this, the victim must first be authorized in writing to conduct private prosecution. As the law stands now, the authorization by the public prosecutor is not subject to conditions.¹¹⁵

Upon authorization, victims have to prepare a criminal charge within fifteen days and file the same before a court having jurisdiction.¹¹⁶ The victim may join with the criminal private prosecution a civil claim that he may have against the defendant.¹¹⁷

With regard to accusation offences, victims of crime used to have the right to challenge the decision of the public prosecutor not to prosecute for lack of sufficient evidence. It was proclaimed under Article 44 (2), Criminal Procedure Code that:

“Where the public prosecutor refuses to institute proceedings under Art 42 (1) (a) in relation to an offence which is not punishable on complaint, the appropriate person mentioned in Art 47 may, within thirty days from having received the decision of the public prosecutor, apply for an order that the public prosecutor institute proceedings.”

Also, Article 45 was made with a view to enable victims to exercise their right to have recourse to pertinent courts that could render judicial review. Nevertheless, Article 44(2) and Art 45, Criminal Procedure Code, are repealed by Central Attorney General Proclamation.¹¹⁸ Hence, this option is not anymore available to victims; thus, only administrative review is possible.

¹¹⁴ See Article 19, Central Attorney General Proclamation, which states: “Where any person or organization is dissatisfied with any decision of a subordinate Attorney, such person or organization has the right to submit a petition to a superior Attorney.”

¹¹⁵ In practice, there is no private prosecution by victims or their representatives. The author has not come across cases which attest the practical implementation of the procedure under Article 44(1), Criminal Procedure Code. Also, to the best knowledge of the author, the provision has not either been repealed.

¹¹⁶ Article 150 (1), Criminal Procedure Code.

¹¹⁷ *Ibid*, Art 154 (1) - (4).

¹¹⁸ Article 24, Central Attorney General Proclamation, *supra* note 83.

iv. Victims at Criminal Trials

This section examines the position and role of victims during court proceedings. As seen earlier, criminal proceedings may be instituted by either the public prosecutor or the victim or his/her representative as private prosecutor.

Where private prosecution is instituted as per Articles 44(1) *cum* 150-153, Criminal Procedure Code, victims of crimes have full standing as private prosecuting party and hence will be treated as one of the litigating parties for all intents and purposes. They assume and play key roles, burdens and responsibilities in the same manner as the public prosecutors would do in other cases. Nevertheless, courts are required to seek an amicable settlement of the disputes between victims and accused persons. Article 151(2) runs: “Before reading out the charge to the accused the court shall attempt to reconcile the parties. Where [...] reconciliation is effected, it shall be recorded by the court and shall have the effect of a judgment.”

Failing reconciliation, the criminal proceeding will go on in accordance with the normal course of court proceedings as provided under Article 153.¹¹⁹ If the victim intends to institute a civil claim that originates from the alleged crime, s/he may prepare a written memorandum stating the nature and amount of compensation and apply at the opening of the hearing so that the same court may decide on both the criminal and civil matters.¹²⁰ Unless the court dismisses such an application on one or another ground provided under Article 155, the victim’s criminal and civil suits are entertained and decided by same court at the same time.

Where however the public prosecutor decides to prosecute and thus institutes criminal charge against the accused person(s), the victim is not recognized as a party to the proceeding unless a civil claim is instituted vis-à-vis the accused. Otherwise, there is no law in force that gives some place and role for victims in such public proceedings.

Apart from the normally routine proceedings on the substantive matters, criminal proceedings in Ethiopia primarily involve bail hearings. Suspects and

¹¹⁹ As provided under Article 152, Criminal Procedure Code, the victim may be required to give security for costs before the case proceeds. During the proceeding, both the private prosecutor and the accused will have the same rights and duties as in public proceedings; see Article 153(3), Criminal Procedure Code.

¹²⁰ See Art 154 (1) and (3), Criminal Procedure Code.

accused persons have the constitutional right to be released on bail,¹²¹ save in exceptional cases prescribed by law. The nature of the offense – some offenses are non-bailable¹²² – or the defendant's alleged or assumed behavior¹²³ determines the denial of bail. A victim who reasonably fears that s/he will be attacked or threatened by accused released on bail cannot express her/his fear and sense of insecurity to the court granting bail. It is only the public prosecutor (and the police during investigation) who may invoke one of the grounds under Article 67 and request the court to deny the accused his right to bail. The victim's only chance would be to communicate her/his reasonable fear and sense of insecurity to the police or to the public prosecutor and see that the latter objects the accused before the court. Still, the victim must have the prosecutor or the police sufficiently convince the court of law to deny accused's right to bail.

Save in the exceptional scenario of *in camera* hearings as stipulated under Article 20(1) of the FDRE Constitution,¹²⁴ there are no clear provisions, guidelines or rules prescribing the treatment and protections of victims called by the court or parties to stand as a witness. As presentation and examination of witnesses is essentially accomplished by the litigating parties, victim-witnesses would be subject to inconvenience and adversity. They can be confronted, examined-in-chief and cross-examined by the public prosecutor or the accused or his counsel, depending on who called the witness.¹²⁵ Though there is a possibility in such instances for victims to express and inform (to the court) the degree of harm they suffered and its effect, they may however

¹²¹ Article 19(6), FDRE Constitution; also, suspects and accused persons enjoy the *right to be presumed innocent until proven guilty* (Article 20(3), FDRE Constitution).

¹²² Non-bailable offences are those which the legislature identified as such based on (1) the seriousness of the criminal act committed, (2) the gravity of the penalty that is likely to be imposed against the accused or (3) the danger that some crimes may pose on society. See Articles 63(1) Criminal Procedure Code; Article 6(3), Vagrancy Control Proclamation, 2004, *Federal Negarit Gazeta*, Proclamation No. 384/2004, 10th Year, No.19; Article 4(1), the Revised Anti-Corruption Special Procedure and Rules of Evidence Proclamation, 2005, *Federal Negarit Gazeta*, Proclamation No. 434/2005, 11th Year, No.19.

¹²³ Article 67 (a)-(c), Criminal Procedure Code.

¹²⁴ Of course, a recently enacted law provides for different protective measures for witnesses (hence, victim-witnesses); see Articles 2(2) *cum* 3-4, Protection of Witnesses and Whistleblowers of Criminal Offences Proclamation, 2010, *Federal Negarit Gazeta*, Proclamation No. 699/2010, 17th Year, No.16.

¹²⁵ See Articles 136-143, Criminal Procedure Code; Article 20 (4), FDRE Constitution.

simultaneously experience secondary victimization in different forms.¹²⁶ From experience, this author may tell that victim-witnesses often experience mental anguish, humiliation and anxiety during cross-examination by, in particular, the accused or the defense counsel.

Some victims also suffer from lack of information: there are some that do not know the date of adjournment or the order given by judges, or what is going on, etc. There is no law that obliges judges and court personnel to provide information for victims.

Since there is no jury system, judges in Ethiopia decide both on factual and law matters. They accomplish everything in relation to a case. After the presentation of evidence is concluded, the judge(s) listen and record the final addresses of the public prosecutor and the accused. Both parties can forward their opinions on questions of law and fact.¹²⁷ The forum is not however open for victims, if any, to express their opinion. Also, the same unitary tribunal imposes punishment if the accused is convicted upon proof of guilt.

Before imposing punishment, the court hears the submissions of the public prosecutor and the offender on sentence.¹²⁸ The public prosecutor may submit aggravating or mitigating circumstances; the offender may submit mitigating circumstances. The victim has no room to express or share her/his opinion on the sentence that should be imposed. There is no law or practice that gives forum for victims to express/make statement regarding the impact of crimes on their lives. Of course, the court takes into account the general factors provided for under Articles 87-89, Criminal Code and the general and special aggravating and mitigating circumstances, one of which is the gravity of the crime.

The Special Part of the Criminal Code prescribes aggravated penalties where offenses affect vulnerable victims or where some extended results

¹²⁶ The victimization may take place in the court yards while victims are waiting for the calling of their case; it may even take place inside court rooms during the hearing and trial proceedings. The lack of facilities, e.g., segregated waiting areas, may expose victims for re-victimization. Undue delays and repeated adjournments of cases may bring further ups and downs. Despite this, mention must be had that some changes – some of which relate to victims particularly child witnesses and women sexual outrage victims – are taking place in courts following the implementation of the justice reform and business process re-engineering..

¹²⁷ Article 148, Criminal Procedure Code.

¹²⁸ *Ibid*, Articles 149 (3)-(4).

ensued from the criminal acts of offenders.¹²⁹ If, for example, the offender takes some positive restorative measures such as redressing the victim or exhibiting sense of repentance, it will be taken into account.¹³⁰ In addition, the court may order the offender to make a public apology to the victim.¹³¹ An undertaking by the offender to repair the harm s/he caused to the victim may be taken as a precondition for suspending the enforcement of the sentence for a specified period of probation.¹³²

The judgment of the first instance court on the subject matter is appealable to the next court in hierarchy. It is possible to lodge an appeal on grounds of fact or law or both; it is possible for the convicted person to appeal on the judgment of conviction and sentence, and for the public prosecutor on the judgment or order of acquittal, discharge or inadequacy of the sentence or on the conviction (in cases where the prosecutor is of the opinion that the court based its decision on a wrong provision of law) and sentence.¹³³ The victim has no recognized status and role in this regard, albeit an aggrieved victim may perhaps use the administrative channel to press the public prosecutor to take appeal.

As seen above, victims are entitled to join their civil claims in the criminal proceedings. Both the Criminal Code and the Criminal Procedure Code clearly establish avenues for victims to seek civil redress and reparations.¹³⁴ Accordingly, victims may present their written application

¹²⁹ See, e.g., Articles 589 (2)-(3); 590; 596(3); 620(2), (3)-(4); 623-628; 630(2); 631; 636, Criminal Code.

¹³⁰ See Articles 82(1) (e) and 181, Criminal Code.

¹³¹ Article 122, Criminal Code.

¹³² *Ibid*, Article 197.

¹³³ Article 185, Criminal Procedure Code. If convicted on his/her own plea of guilty, the accused may appeal only over the extent or the legality of the sentence.

¹³⁴ See, e.g., Articles 101, 102-610, Criminal Code; Article 154, Criminal Procedure Code. (The previous Penal Code, Articles 100-101, had comparable provisions) Nevertheless, the rules remain hollow promises to victims. In all my experience as judge in Amhara National Regional State and academic lawyer, I have hardly come across with cases wherein a victim joined his/her civil claim into the criminal proceeding. Similarly, the author's former senior student, Mesafint Demeke, who conducted a research on joinder of civil and criminal cases, failed to find any case to illustrate the law in practice despite relentless efforts; see Mesafint Demeke, *Joinder of Civil and Criminal Cases in the Amhara Regional State of Ethiopia*, 2010, Undergraduate Senior Thesis, Bahir Dar University (Unpublished). Compilations of reported cases originating from both regional state and federal courts add force to the assertion that the law is hardly practiced.

stating the nature of the injury sustained and the amount of compensation requested at the time of the opening of the hearing.¹³⁵ As provided in Article 145 (1) Criminal Procedure Code, the victim is not required to pay court fees when filing such an application. The moment the victim or the victim's representative filed such an application, s/he shall be shown the list of the witnesses to be called by the public prosecutor and the accused; then s/he shall be asked whether s/he wishes additional witnesses to be called.¹³⁶ Subsequently, the court decides whether the victim's claim for compensation or restitution¹³⁷ of property can be entertained jointly or not. The grounds for dismissal of such an application are listed under Article 155, Criminal Procedure Code.¹³⁸ If the application is dismissed, the victim may initiate a civil proceeding in a court having jurisdiction. Otherwise, the victim will not have any place and role in the proceeding once the application is dismissed, albeit he may be called as a witness to give testimony.

If the application for joinder is accepted by the court, the victim participates in the proceeding holding a party status and having the rights and responsibilities of any ordinary party in respect of the civil claim. Article 156, Criminal Procedure Code runs:

- 1) Where the application is allowed the injured party shall be entitled to take part in the proceedings and shall have with regard to evidence all the rights of an ordinary party.
- 2) The court shall at the close of the case for the defense permit the injured party or his representative to address the court in person or by advocate on the question of the amount of compensation to be awarded. The accused or his advocate shall have the right to reply.

¹³⁵ The amount of the claim should be within the material jurisdiction of the court, Article 155 (5), Criminal Procedure Code.

¹³⁶ *Ibid*, Article 145 (2); should additional witnesses be called, the victim covers the expenses of issuing witness summonses.

¹³⁷ Under Article 101, Criminal Code, the victim may apply for the restitution of properties.

¹³⁸ The court may refuse the application where:

- (a) A young person is the accused; or
- (b) The accused is being tried *in absentia*; or
- (c) The victim is found to have instituted the same claim in another court; or
- (d) The person making the application is not qualified for suing; or
- (e) The claim can't be determined without calling numerous additional witnesses; or
- (f) The claim is likely to confuse, complicate or delay the criminal proceeding.

Note that, the ruling of the court on this matter is final and not appealable (Article, 155 (3), Criminal Procedure Code).

A reading of sub-(2) seems to limit the participation of the victim to only the civil claim. It appears that the victim does not play a role in the criminal aspect of the proceeding. Surprisingly, Article 158 provides that the court shall not entertain and adjudicate on the question of compensation once it discharged or acquitted the accused on the criminal charge. In such cases, the victim is rather informed that s/he may institute the claim before a civil court.

In sum, the Criminal Procedure Code or any other law does not contain rules on the treatment of victims who attend “their” cases or appear as witnesses before courts of law. No special recognition is given to them. There are no specific norms that pertain to victim protections during the course of criminal hearings and trials except where *in camera* session is allowed when the victim’s interest is believed to be at stake.

v. Victims and post-trial criminal process

Victims’ issues often transcend the pretrial and trial proceedings. Their legitimate concerns, interests and rights may permeate post-trial criminal processes including probation, parole and pardon and amnesty. So now the questions are: what is the status and role of victims in post trial Ethiopian criminal proceedings? How are victims treated in such proceedings?

There is no single provision in the Criminal Procedure Code that deals with matters of probation, parole, pardon and amnesty. Such matters –which were previously governed by the 1957 Penal Code – are now dealt within the Criminal Code.¹³⁹ An examination of the relevant provisions of the Criminal Code reveal that crime victims have no recognized position and role vis-à-vis probation, conditional release (parole), pardon and amnesty proceedings. Obtaining victims’ consent, opinion or feed-back, if any, is not provided as a precondition to grant or order any of those post trial measures, though it can reasonably be assumed that their opinion would be taken note of by concerned authorities. There is no rule or guideline pertaining to victim notification and treatment (in case they appear to have opinions). What is clearly provided in

¹³⁹ See Articles 190-200 (on probation), Articles 201-210 (on conditional release), and Articles 229-231 (on pardon and amnesty), Criminal Code. With regard to pardon, see also Procedure of Pardon Proclamation, 2004, *Federal Negarit Gazeta*, Proclamation No. 395/2004, 10th Year, No.35.

all these provisions is that any of such measures would not affect the civil claim of victims, which of course goes without saying.

To conclude, victims of crimes in traditional Ethiopia had played decisive roles throughout the various phases of the criminal process. Victims used to play significant roles even after the establishment of modern police and public prosecution institutions in the 1940s. Since the introduction of the Criminal Procedure Code 1961, some changes have been brought. Despite the overall common-law adversarial flavor, the Criminal Procedure Code retains some strands of the continental inquisitorial elements put in by the original drafter, Jean Graven. This latter point holds particularly true in respect of the place and role of victims.

As seen above, victims are entitled to play decisive roles in respect of offences that are punishable upon complaint. However, it appears that victims do not have a legally recognized position as regards accusation offenses. Except when serving as witnesses, victims do not participate or play any other role in criminal proceedings involving accusation offenses. When aggrieved with the activities and decisions of the police and the public prosecution, they may petition for an administrative review. But they do not have any say or voice in the judicial proceedings unless they lodge private prosecution – a procedure which is hardly practical.

Victims have recognized place and roles when they institute civil claims within the criminal proceedings. In this regard as well, there are some obstacles and bottlenecks. More importantly, there are no provisions in the Criminal Procedure Code or any other laws in force that regulate and govern the treatment and protection of victims. There are no legal frameworks for support and service mechanisms.

Victim notification rules are too sparse and are only limited to the sending of copies of public prosecution decisions to victims. There are no provisions that entitle victims to share or impart – at the appropriate stages of the criminal process – their views and concerns to all the appropriate justice authorities including judges.

3. Contemporary Issues and Emerging trends regarding Victims in Criminal Process: Lessons for Ethiopia

From the foregoing, it is clear that the Ethiopian law pertaining to crime victims is essentially contained in the 1961 Criminal Procedure Code. The changes introduced in 1993¹⁴⁰ cannot be taken to favor victims.

On the other hand, since the adoption of the 1985 UN Declaration on victims, many states all over the world have embarked on victim-centered or victim-oriented initiative and accomplished notable criminal justice reforms that accommodate the concerns, needs and interests as well as rights of victims into the criminal justice system.¹⁴¹ As part of the international community, Ethiopia has a lot to learn from the internationally evolving trends as well as the experiences of other nations that accomplished reforms as regards crime victims.

It is evident today that earlier perceptions portraying crimes as merely public wrongs or wrongs committed against society and the state *per se*, and consequent retributive criminal justice doctrines that exclude and marginalize victims are increasingly giving way to new thoughts and measures that accommodate victims and their rights and interests. Marc Groenhuijsen notes:

“Up until some years ago, the criminal justice system used to be depicted as a battle between a suspected criminal on the one hand and the government-representing respectable society- on the other. It is now accepted that criminal law and criminal procedure could never really lead to justice being administered unless and until the system pays respect to the interests of victims of crime. This means that the victim should not just be viewed as an instrument enabling the prosecutor to procure convictions. Rather than dealing with the victim as a tool, which can be used in the process of reporting the crime and later on as a witness, he or she should be considered as the injured party, as a human being with rights of their own that should be structurally taken into account at all stages of the criminal investigation and eventual trial. The general direction of victims’ reforms

¹⁴⁰ See *supra* note 83.

¹⁴¹ Rauschenbach, M. & Scalia, D., ‘Victims and international criminal justice: a vexed question?’, *International Review of the Red Cross*, Vol.90, No.870, 2008, p.444 (Available at: <http://www.icrc.org/eng/assets/files/other/irrc-870-rauschenbach.pdf>.) [accessed 2 March, 2011]; Groenhuijsen, M., *Conflicts of Victims’ Interests and Offenders’ Rights in the Criminal Justice System – a European Perspective*, p.163 (Available at www.aic.gov.au/en/publications/previous%20series/proceedings/1-27) [accessed 24 May, 2011].

means that the victim has a right to be treated fairly, respectfully, and will have to be paid compensation or restitution for the damages incurred by the criminal offence.”¹⁴²

Explication of criminal proceedings focusing merely on offences and criminal defendants, construction of criminal justice models solely on and around the criminal defendant and the state, as has been the case in Herbert Packer’s *Crime Control and Due Process*¹⁴³ and Griffiths’ *Parental and Arm’s length*¹⁴⁴ models (and their modified versions), are increasingly changing as they paid no or little attention to the special concerns, needs, interests and rights of victims.¹⁴⁵

Especially since 1990s, victims have regained some of their lost historical position and started to have meaningful roles in various national, regional and international criminal justice systems. The reform activities undertaken and the various measures adopted in favor of victims in many national jurisdictions (as well as internationally, e.g. by criminal tribunals including the ICC) demonstrate that victims are somehow being moved from the periphery to the center of interest of criminal law and criminal justice

¹⁴² Groenhuijsen, *supra* note 140, p.163.

¹⁴³ See Herbert Packer, ‘Two Models of the Criminal Process’, *University of Pennsylvania Law Review*, Vol.113, 1964, pp.1 *et seq.*

¹⁴⁴ Griffiths, J., ‘Ideology in Criminal Procedure or a Third ‘Model’ of the Criminal Process’, *Yale Law Journal*, Vol.79, 1970, pp.367 *et seq.*

¹⁴⁵ See, e.g., Arenella, P., ‘Rethinking the Functions of Criminal Procedure: The Warren and Burger Courts’ Competing Ideologies’, *Georgetown Law Journal*, Vol.72, 1983, p.213; Damaska, M., ‘Evidentiary Barriers to Conviction and Two Models of Criminal Procedure: A Comparative Study’, *University of Pennsylvania Law Review*, Vol.121, 1973, pp.574-577; Sebba, L., ‘The Victim’s Role in the Penal Process: A Theoretical Orientation’, *American Journal of Comparative Law*, Vol.30, 1982, pp.231-238, (expressing that the traditional models “deal exclusively with the nature of the relationship between state and defendant but ignore the victim”, p.238); Beloof, D., ‘The Third Model of Criminal Process: The Victim Participation Model’, *Utah Law Review*, Vol.1999, 1999, pp.290-292 (maintaining that Packer’s “two models do not include a conceptual framework in which victim participation in the criminal process can be understood” p. 291); Roach, K., ‘Four Models of the Criminal Process’, *Journal of Criminal Law & Criminology*, Vol.89, 1998-1999, pp.671-699 (writing that “Packer’s model seem outdated today because they ignore crime victims” p.689; Read also, Stickels, J., *Victim Satisfaction- A Model of the Criminal Justice System*, A PhD Dissertation submitted to the Faculty of the Graduate School of the University of Texas at Austin, 2003, (Unpublished), pp.35-44. Available at: <http://repositories.lib.utexas.edu/bitstream/handle/2152/979/stickelsjw039.pdf?sequence=2>, [accessed on 27 February, 2011].

policy.¹⁴⁶ Concerns for the welfare and rights of victims have now become dominant themes, in both Anglo-American and continental European countries.¹⁴⁷ Writing in 1991, Mike Maguire has thus observed:

“Over the past twenty years, but especially during the last decade, the rhetoric of North America and European criminal justice has been increasingly permeated with concern for the rights and welfare of the “the victim.” In their everyday decision-making, police officers, prosecutors, judges, probation officers, and parole boards are frequently enjoined-and, increasingly, compelled-to pay heed to victims’ interests as well as to those of the community and the offender. Legislation has granted new rights to victims to participate in court processes and to claim compensation. National and local government agencies have funded programs of victim and witness assistance. Voluntary organizations are providing services on a significant scale. Research projects and academic books on victims have become a growth industry. And, hardly mentioned in university courses even ten years ago, the needs and rights of victims have become regular topics of discussion in undergraduate classes in criminology.”¹⁴⁸

Victims issues – such as enhancement of their status and participatory roles within criminal process, provision of better treatment and protections, provision of information, socio-legal supports and services (medical, psychological and legal aid) and facilitation of conditions for compensation and reparations – are shared contemporary themes across the globe. And, no doubt Ethiopia has a lot to learn from these positive developments.

The trend now seems to swing between a *rights-based* approach and the *needs-based/welfare approach*. There are some countries that incorporated (some are on the way to incorporate) and committed themselves to the rights-based approach recognizing procedural rights of victims in juxtaposition to the due process rights of criminal defendants. A great majority of states in the USA, for instance, have amended their respective constitutions to include civil rights of victims. Also, there are attempts to get the U.S Federal Constitution amended to include civil rights of victims in juxtaposition to the due process rights of the criminal defendant.¹⁴⁹

Many other countries have taken measures to improve the status and role of victims, apart from provision of better assistance and support,

¹⁴⁶ Spinellis, *supra* note 1, p.337.

¹⁴⁷ Moolman, *supra* note 49, p.273.

¹⁴⁸ Maguire, *supra* note 63, pp.363-364.

¹⁴⁹ See Aaronson, D., ‘New Rights and Remedies: The Federal Crime Victims’ Rights Act of 2004’, *Pace Law Review*, Vol.28, 2008, p.625 *et seq.*; Beloof, *supra* note 145, p.289 *et seq.*

treatment, and protections. Countries such as South Korea, Thailand and Mexico are reported to have modified their respective constitutions to include a set of rights for victims.¹⁵⁰ Accommodating victims in sentencing process through the use of victim impact statements is becoming a common feature of many common law countries. Good examples are the US, Canada, England and Wales, Australia and New Zealand. To varying degrees, enhancing the involvement and participation of victims in criminal process has become common focal issue of reform measures in Africa (e.g. the Republic of South Africa and Uganda) as well.

As mentioned before, significant progresses in favor of victims have taken place at the international level. The 1998 Rome Statute of the International Criminal Court (ICC) has set a groundbreaking path by granting enhanced status for victims. The Statute recognizes victims' participatory right in criminal proceedings. Victims are given the opportunity to be heard and to claim reparations; they are entitled to a legal standing to be represented by counsel and to formally participate throughout trial and other related court proceedings. The Statute deals with matters of victims' treatment, protection and compensation in an unprecedented manner.¹⁵¹

There are also some other recently adopted international instruments that pay good attention to general and specific issues relating to victims in criminal process.¹⁵² Furthermore, a draft convention on victims' rights is being studied by the United Nations¹⁵³ consolidating claims that an idea of *human rights of victims* appears to be emerging.¹⁵⁴

¹⁵⁰ Waller, *supra* note 66, p.148.

¹⁵¹ Articles 68(3) *cum* 75, Rome Statute; see also Jouet, *supra* note 25, p.249; McGonigle, *supra* note 25, p.94; Gonzalez, *supra* note, p.19 *et seq.* The current debate is not on the propriety of victims' participation within the criminal process but on the *degree of their participation*. Despite arguments against victim participation in criminal proceedings, victim participation pervades national and international criminal proceedings. For arguments *for* and *against*, see Spinellis, *supra* note 1, pp.350-359; Doak, *supra* note 53, p.2; Doak, *supra* note 67, pp.294 *et seq.*

¹⁵² See generally Waller, *supra* note 66.

¹⁵³ Rauschenbach & Scalia, *supra* note 141.

¹⁵⁴ See Doak, *supra* note 67, pp.301-302; Doak, J., Henham R. & Mitchell, B., 'Victims and the Sentencing Process: Developing Participatory Rights?', *Legal Studies*, Vol.29, 2009, pp.658-660; Garkawe, S., 'Victims' Rights are Human Rights', Presentation to the 20th Anniversary Celebration of the 1985 UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power, held in Canberra on 16 November 2005, available

Amidst glaring victim plights, it is very unlikely that Ethiopia would remain inert to national, regional and international developments discussed above. Yet, mention must also be made that there are still some contentious issues that need further deliberation, debating and studies in respect of degrees of involvement and rights of victims within criminal proceedings.¹⁵⁵

Conclusions and Recommendations

As demonstrated in the adoption of the 1985 UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power and related international instruments, there is now a world-wide consensus and conviction to treat victims with compassion and respect for their dignity, to ensure that they are kept informed of the progresses of their cases, and to allow them play meaningful roles in the criminal process. That victims of crime should be entitled to prompt redress for the harms they may suffer due to primary victimizations is another subject which gained momentum internationally since at least 1985. Also, the protection of victims from secondary victimizations has become a universal agenda for national criminal justice systems worldwide.

On the other hand, the foregoing analysis of the legal framework in Ethiopia reveals victims of crime are not adequately recognized as injured party. They do not have meaningful involvement in the criminal process. The existing provisions, that in the main grant victims a party status to conduct private prosecution in complaint offence proceedings, are not seen put in practice. The provisions that deal with victim notification are too sparse and are limited to sending of copies of public prosecution decisions to victims. There is no legal framework for victims to share or impart their views and concerns to the appropriate justice authorities (including judges) at the appropriate stages of the criminal process.

There are no rules and standards within the present Ethiopian criminal justice system that guide and control treatment of crime victims; there are no provisions that direct police officers, public prosecutors, defense lawyers, and

at: <<http://www.victimsupport.act.gov.au/res/file/garkawe%20speech.pdf>>, [accessed on 27 February 2011].

¹⁵⁵ There are still ongoing debates over victims' procedural rights, modes and scope of victims' participation and the balancing of the rights and interests of criminal defendants, victims and prosecutions; the debate over the last issue appear to be the most controversial one.

judges on how they ought to treat victims. There are no sufficient legal mechanisms that ensure the protection of victims. Also, there is no law that addresses the social, medical and legal needs and interests of victims of crimes.

In the face of such legal lacunas at present, it is patently clear that Ethiopia needs to take some positive measures to address the various concerns, needs, interests and rights of victims in its criminal justice system. Without prejudice to the rights and interests of suspected, accused and convicted persons, it is necessary to undertake measures that aim at accommodating victims and their concerns, needs, interests and rights within the criminal process. It is timely to take measures that aim at preventing secondary victimization. The physical, emotional, financial, information and other related needs of victims should be addressed. It is timely to include provisions, in the upcoming criminal procedure code, pertaining to the treatment and protection of victims. Also, the place of victims within the criminal process needs to be improved. Victims should be allowed to play meaningful roles within the criminal process.

This author specifically submits the following recommendations:

- The upcoming criminal procedure law should acknowledge that victims have *special* and *distinct* concerns, needs, interests and rights which may differ from the needs and interests of the police, the public prosecution, the general public and other ordinary witnesses. Hence, provisions entitling victims to *present their views* and *concerns* at all appropriate stages of the criminal process must be included in the Code. Care should however be taken not to prejudice the rights and interests of suspects and accused persons;
- It is necessary to include some detailed provisions that guide and govern the *reception* and *treatment* of victims when they come to the criminal justice institutions (police, prosecution, courts and prison administrations) to complain or report, to testify, even to attend and follow up their cases.
- Without prejudice to the defendant's right to a fair trial, it is also necessary to include some detailed provisions that aim at ensuring *protection* of victims from secondary victimization. Apart from expressly proclaiming for physical escorting and provision of *facilities* that ensure the safety, physical and psychological well-being of victims, the new criminal procedure code should come up with some

protective measures for victims which *in very exceptional situations wherein real danger threatens vulnerable victims*, may include, *inter alia*,:

- Non-disclosure or delayed disclosure of victims' identity;
 - assignment of pseudonyms;
 - *In camera* hearings;
 - Giving of testimony through image or voice altering devices or via closed-circuit television;
- The existing provisions in the Criminal Procedure Code that pertain to *victim notification* need not only be retained but also further broadened so as to enable victims obtain relevant and up-to-date information including developments relating to their cases, about their rights, etc., at any appropriate stages of the criminal process;
- Those provisions in the Criminal Code that provide for the participation of victims in criminal proceedings as *civil party* should be revitalized in light of recent national, regional and international developments and evolving trends. The adhesion procedure which exists theoretically in the present Criminal Procedure Code should be reinforced and put in practice.

The Scope of Article 2081 of the Civil Code: A Comment on *Negist Makonnen et al v. Ethiopian Airlines, Inc.**

Hailegabriel G. Feyissa**

1. Synopsis of the Case

On September 5, 1961, an Ethiopian Airlines Douglas C-47A aircraft crashed during a chartered flight from Addis Ababa to Asmara. As a result, some people were killed; some others were injured. Relatives of passengers who were killed in the accident and those persons who sustained injuries brought action, under the law of air carriage, against Ethiopian Airlines, the owner and operator of the aircraft. The defendant denied liability as a carrier¹ for the aircraft was, when the accident occurred, chartered to Coronado Petroleum Corporation. The High Court of Addis Ababa however held that Ethiopian Airlines was the carrier for the purpose of the Ethiopian law of carriage by air.² Interestingly, the court also maintained that the airlines would not anyway escape liability under Article 2081 of the Civil Code as owner of the thing which caused the damage. The later dictum is the cause for this comment.

2. Comment

Article 2081 of the Ethiopian Civil Code lays down the rule regarding strict liability of owners of machines and motor vehicles. Its first paragraph reads: “the owner of a machine or motor vehicle is liable for any damage caused by the machine or vehicle, notwithstanding that the damage was caused by a person who was not authorised to operate, handle or drive the machine or vehicle.” Article 2081 belongs to Section 2 of Chapter I, Title XIII, Book IV of the Code which is titled “liability in the absence of [fault]”.³ Accordingly,

* *Negist Makonnen et al. v Ethiopian Airlines et al.*, Addis Ababa High Court Civil Case No. 701/55 E.C.

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¹ The airlines did not maintain direct contractual relationship with the claimants. As such, it thought it would not be liable as a carrier. Yet, the court reasoned it was carrier (rather actual carrier) irrespective of the absence of direct contractual relationship with the claimants. For an air law perspective of the problem in defining the carrier, see Hailegabriel, F., A Legal Appraisal of the Liability of the Actual Carrier under Ethiopian Law, in this issue of *Bahir Dar University Law Journal*, Section 2.

² See *ibid*, Section 3.1 for more on this point.

³ The authentic English version of Section 2 of Title XII of the Civil Code reads: “Liability in the absence of an offense.” Yet, there are authorities that the English version is not in line

liability for damage caused by machine or motor vehicles falls on their owner irrespective of fault.

As they are exceptions to the principle of fault based liability, Civil Code rules on liability by reason of ownership must be construed strictly.⁴ In the absence of any express rule that warrants strict liability, owners of things cannot thus be held liable extra-contractually.⁵ Applying this supposition, one would prefer to give literal meaning to the terms “machines and motor vehicles” or their Amharic equivalents “መኪኖችና ሞተር ተሽከርካሪዎች” under Articles 2081 *et seq.* And, a literal interpretation of Article 2081 of the Civil Code would most likely restrict liability to owners of motor vehicles or “ሞተር ተሽከርካሪዎች” that move on roads.⁶ A leading commentator of Ethiopian tort law posits that “motor vehicle” stands for what in Amharic is commonly known as “መኪና”.⁷ It thus appears owners of aircrafts and watercrafts (including seagoing vessels) are not subject to Article 2081.

On the other hand, one would argue such an interpretation of Article 2081 is flawed. The two important rationales behind strict liability of owners of ordinary motor vehicles remain valid vis-à-vis owners of aircrafts and vessels as well.⁸ First, aircrafts and vessels are at least as dangerous as ordinary motor vehicles. Second, owners of aircraft and vessels, like owners of buses and trucks, are relatively “better situated” to cope with strict tort

with the original French version of the draft Civil Code. According to George Krzeczunowicz an appropriate translation of Section 2 must read “liability irrespective of fault;” see Krzeczunowicz, G, *The Ethiopian Law of Extra-Contractual Liability*, Haile Selassie I University, Addis Ababa, 1970, p. 166 [hereinafter Krzeczunowicz].

⁴ See, e.g., ንጋቱ ተስፋዬ፣ *ከወል ውጭ ኃላፊነትና አላግባብ መበልፀግ ሕግ*፣ አርቲስቲክ ማተሚያ ድርጅት፣ ኦዲስ አበባ፣ 1996 ዓ.ም., pp. 107-108 [hereinafter ንጋቱ].

⁵ Article 2087, Civil Code of Ethiopia, 1960, *Negarit Gazeta*, Proclamation No. 165/1960, 19th Year, No.2 [hereinafter Civil Code].

⁶ See, e.g., Longman Advanced American Dictionary, s.v. “motor vehicle.” The dictionary equates motor vehicle to car and similar road vehicles. Moreover, motor vehicles are generally distinguished from, for example, aircrafts for the purpose of tort law; see e.g., Stone, F., Liability for Damage Caused by Things, in Tunc, A. et al. (eds.) *The International Encyclopedia of Comparative Law*, Martinus Nijhoff Publishers, The Hague, 1970, Vol. XI, Chapter 5, at §§170 and 191 [hereinafter Stone].

⁷ ንጋቱ, *supra* note 4, p. 115.

⁸ For more on the rationale behind strict liability see, e.g., Krzeczunowicz, *supra* note 3, p. 38.

liability. Besides, a broader definition of vehicle may include not only automobiles, buses and trucks but also spacecrafts.⁹

In his commentary on the Ethiopian tort law, George Krzeczunowicz argues the rules of Articles 2081-2084 are different from their Continental counterparts in being neither “too sweeping” nor “too vague.”¹⁰ Put in other words, the Ethiopian law on strict liability applies in a more restrictive and definite manner than the French or Egyptian law does. Notwithstanding this, Krzeczunowicz is of the opinion that the rules on strict liability of owners of machines and motor vehicles are capable of extended application. He mentions the possibility of extending the rules of Article 2084 to, for example, collusion between animals or animals and motor cars.¹¹ He even maintains that Articles 2081 *et seq.* concern motor vehicles that move on land, air, and even sea.¹² Yet, he denies the applicability of Article 2084 to vessels which, according to him, are “motor vehicles that move on the sea.”¹³

In *Negist Mekonnen et al v Ethiopian Airlines, Inc et al.*, the High Court of Addis Ababa appeared to agree with the extended applicability of Articles 2081 *et seq.* As briefly noted in the synopsis of the case, the court expressly stated the relevance of Article 2081 of the Civil Code in determining the liability of aircraft owners for damages on third parties. Of course, the court applied the law on carriage by air as it was satisfied by the existence of contractual relationship between the air carrier and the claimants. But, it was ready to apply the provisions of Articles 2081 *et seq.* had the parties been contractually unrelated.

Even though it appears to offend the literal interpretation of machines and motor vehicles, efforts to extend the scope of applicability of Articles 2081 *et seq.* of the Civil Code are commendable. From a theoretical perspective, the extended application of Article 2081 to aircraft and vessel fosters the continued viability of the rationale for strict liability rules of

⁹ A legal definition of vehicle includes “any conveyance used in transporting passengers or things by land, water, or air.” See Black’s Law Dictionary, 8th ed., s.v. “vehicle”

¹⁰ Krzeczunowicz, *supra* note 3, p. 41.

¹¹ *Ibid*, p. 46.

¹² See Krzeczunowicz, G., *The Ethiopian Law of Compensation for Damage*, Commercial Printing Enterprise, Addis Ababa, 1977, pp. 170 and 238[hereinafter Krzeczunowicz on Compensation].

¹³ *Id.*,p.238; Note that the Maritime Code contains provisions governing collusion between sea going vessels; see Articles 229-238, Maritime Code of Ethiopia, 1960, *Negarit Gazeta*, Proclamation No. 164/1960, 19th Year, No.1 [hereinafter Maritime Code].

Section 2 of Chapter I, Title XIII, Book IV of the Code. Limiting the scope of Article 2081 to only ordinary motor vehicles that move on land would make the “dangerousness of the thing” and “the relative financial capacity of the owners” justifications indescribable. Put in other words, the justifications for strict liability of owners of ordinary vehicles would not remain forceful unless aircraft and vessels are subject to Article 2081 in the same manner as automobiles and Bajaj – which are usually less dangerous than their maritime and aerial equivalents.

From a practical point of view as well, a liberal interpretation of Article 2081 affords individuals who sustain damage caused by aircrafts and vessels the protection of the Civil Code. This is very important since one would not get similar redress based on other laws. The Maritime Code regulates collision between vessels at sea.¹⁴ Yet, it does not expressly provide for strict liability of ship owners.¹⁵ Even if it does, it will not apply as regards vessels operating in land waterways.¹⁶ Similarly, there are no legislations that regulate surface damage¹⁷ and collisions involving aircrafts. Therefore, the interpretation of

¹⁴ See Chapter 1, Title V of Maritime Code.

¹⁵ Instances resulting in the liability of shipowner are mainly governed by Articles 78 *et seq.* of Maritime Code. Yet, the Code does not expressly provide for strict liability of shipowner. Of course, Article 81 entitles the shipowner to limit liability by reason of ownership, possession, etc. One would however hardly find a Maritime Code provision that strictly makes the owner liable. Since it is generally agreed that no one would be held strictly liable unless there is an express statutory provision, one cannot hold the shipowner strictly liable under the Maritime Code unless Article 81 is taken as an implicit recognition of strict shipowner liability (e.g. Krzeczunowicz appears to agree with this, see Krzeczunowicz on Compensation, *supra* note 12, p. 238). But, strict liability of the shipowner has traditionally been alien to maritime tort law; see, e.g. Selvig, E., Towards Strict Shipowner Liability: Recent Trends in Norwegian Law on Maritime Torts, *Journal of Maritime Law & Commerce*, Vol. 33, 1970-1971, p. 384 *et seq.* [hereinafter Selvig].

¹⁶ The scope of the Maritime Code is limited to seawater only; see Hailegabriel, F., *Maritime Law Teaching Material*, JLSRI, Addis Ababa, 2008, pp. 4-5.

¹⁷ See, e.g., Krzeczunowicz on Compensation, *supra* note 12, p. 170; special regulation of “air-to-ground” damages has been in place since at least the Civil Aviation Proclamation, 2008, *Federal Negarit Gazeta*, Proclamation No. 616, Year 15, No. 23 [hereinafter Civil Aviation Proclamation]. Article 70(1), Civil Aviation Proclamation reads: “Any aircraft operator, while the aircraft is in flight, shall be liable for damage caused by the aircraft or the operation thereof, or caused by the fall of any person or object aboard the aircraft or attached to the aircraft, which results in the death, personal injury or damage to property of a third party on the ground.” For the purpose of this proclamation, an aircraft is considered to be in flight “from the moment when the external doors of an aircraft are closed following embarkation until the moment when any such door is opened for disembarkation.” In the

Article 2081 as a general strict liability rule on the realisation of danger from various instruments of transport is realistic.

Also, recent developments in aviation and maritime law underline the appropriateness of the approach to carefully broaden the scope of Article 2081 of the Civil Code. There have been calls for strict or unlimited liability of aircraft owners and ship owners.¹⁸ In view of that, the French Civil Code's Article 1384 – the equivalent of Article 2081 of Ethiopian Civil Code – has been “reinterpreted” with a view to extend the scope of strict liability for damage caused by the action of things.¹⁹

All in all, owners of motor vehicles assume strict tortious liability for damages on third parties. Though the meaning of motor vehicles may be divisive, there are judicial and academic authorities that the provisions of Articles 2081 *et seq.* apply in wider instances than a literal interpretation would permit. Therefore, liability for damages caused to third parties falls on owners of car, aircraft and vessels, provided however they move by motor.²⁰

case of forced landing, the aircraft is considered to be in flight “until the competent authorities take over the responsibility for the aircraft and for the persons and property aboard;” see Article 2(29). Apart from damages caused by the fall of the aircraft, damages resulting from the fall of any person or object aboard the aircraft or attached to the aircraft are covered. The liability is attached to the aircraft operator, who may not necessarily be the owner (see Article 2(7)). Obviously, the Proclamation's rule on liability of aircraft operator applies in a defined context. It is thus submitted that the provisions of the Civil Code on extra-contractual liability apply vis-à-vis issues not clearly or adequately governed by the Proclamation. For instance, the Civil Code becomes handy in clarifying (1) whether the liability of the operator under Article 70 of the Civil Aviation Proclamation is unlimited and (2) whether the operator would be escape liability up on proof of “fault of the person who suffers damage.”

¹⁸ See, e.g., Popp, A.H.E., Limitation of Liability in Maritime Law –An Assessment of its Viability from a Canadian Perspective, *Journal of Maritime Law & Commerce*, Vol. 24, 1993, pp. 335 *et seq.*; Selvig, *supra* note 18, pp. 383 *et seq.*; Abeyrante, R., Liability for third party damage caused by aircraft –some recent developments and issues, *Journal of Transport Security*, Vol. 2, 2009, pp. 91 *et seq.*

¹⁹ See, e.g., Selvig, *supra* note 18, p. 387; Esmein, P., Liability in French Law for Damages Caused by Motor Vehicle Accidents, *The American Journal of Comparative Law*, Vol. 2, No. 2, 1953, pp. 157-158.

²⁰ Unless propelled by motor, one must not bring every conveyance used in transporting passengers or things under the definition of vehicles; Krzeczunowicz agrees with the inclusion of ships under Article 2081 of the Civil Code “if moved by a motor.” (Krzeczunowicz on Compensation, *supra* note 12, p. 238, footnote 17). Incidentally, note that the strict liability of shipowners, unlike that of owners of aircraft and ordinary motor vehicles, is limited to the amount set in Article 86 of the Maritime Code (Article 81 *cum* 86,

Meanwhile, Article 2084 of the Civil Code, which adopts the proportionate fault principle regarding collision liability in land context, could *mutatis mutandis* be applied to collisions that occur on the air and in inland waterways.

Conclusion

The Addis Ababa High Court's decision to extend the application of Article 2081 to owners of aircraft is sound and far reaching in the sense that it plays down the uncertainty generated by literal interpretation of Article 2081 of the Civil Code. Most importantly, it serves as an official reminder that Article 2081 could be applied far and wide without, of course, seriously compromising the legislative intent to restrict the application of Section 2 of Chapter I, Title XIII, Book IV of the Code to instances expressly provided for in the law.

Maritime Code). Krzeczunowicz has in the 1970s mentioned the benefits of introducing comparable limitation cap as regards aircraft owners' non-fault liability; see Krzeczunowicz on Compensation, *supra* note 12, p. 171.

Case Reports

Note

The following reports are cases decided by the Cassation Division of the Federal Supreme Court of Ethiopia. The purpose of publishing the cases is to make them known to the members of the legal profession. The case reports in a single issue of the *Journal* bring together interesting decisions on a give area of law. For this issue judgments on the subject matter of Family Law are chosen.

In selecting a particular judgment for publication the Editorial Committee do not want to imply that the judgment is definitive on any proposition or that it contains erroneous propositions. The cases are chosen for the interesting issue(s) of law they raise.

- ዳኞች፡- 1. አቶ መንበረፀሐይ ታደሰ
2. አቶ አብዱልቃድር መሐመድ
3. አቶ ሐጎስ ወልዱ
4. ወ/ት ሒሩት መለሠ
5. አቶ ታፈሰ ይርጋ

አመልካች፡- አቶ ሰይፍ ይመር - ጠበቃ ማስረጃ በላይ

ተጠሪ፡- የአማራ ክልል ሥነ-ምግባርና ፀረ ሙስና ኮሚሽን አልቀረበም፡፡

መዝገቡ ተመርምሮ ቀጥሎ የተመለከተው ፍርድ ተሰጥቷል፡፡

ፍ ር ድ

ይህ ጉዳይ የተጀመረው በደቡብ ወሎ ዞን ከፍተኛ ፍ/ቤት ሲሆን ተጠሪ በአመልካች ላይ በጊዜው ሥራ ላይ በነበረውና በአዋጅ ቁጥር 214/74 ተሻሽሎ በወጣው የልዩ ወንጀለኛ መቅጫ ሕግ በቁጥር 23/1/ /ሀ/ እና /ለ/ ላይ የተመለከቱትን ድንጋጌዎች በመጥቀስ 3 /ሶስት/ የወንጀል ክሶችን አቅርቧል፡፡

የተጠሪ ክስ ለአመልካች ደርሶም ባቀረበው የመቃወሚያ ክርክር ተከሣሽ የተጠቀሰውን የወንጀል ድርጊት ፈጸመ ከተባለ በኋላ አዲስ የወንጀል ሕግ የወጣ እንደመሆኑ መጠን ይህም አዲስ የወንጀል ሕግ ተከሣሽን የሚጠቅም ስለሆነ መከሰስ የሚገባኝ በአዲሱ የወንጀል ሕግ እንጂ በቀድሞው ሊሆን ስለማይችል ክሱ ተሻሽሎ ሊቀርብ ይገባል በማለት ተከራክሯል፡፡

ተጠሪም በበኩሉ ከአዲሱ የወንጀል ሕግ አንቀጽ 5/1 አኳያ ክርክሩ መቀጠል የሚገባው በተሻረው ሕግ መሠረት ስለሆነ ክሱ ሊሻሻል ስለማይገባ መቃወሚያው ውድቅ ሊደረግ ይገባል በማለት ተከራክሯል፡፡

የግራ ቀኙ ክርክር በዚህ መልኩ የቀረበለትም የዞኑ ከፍተኛ ፍ/ቤት ጉዳዩን መርምሮ ተከሣሽ ድርጊቱን ፈጸመ በተባለበት ጊዜ የነበረው ሕግ ተሸሮ አዲስ የወንጀል ሕግ የወጣ ሲሆን በተሻረው ልዩ የወንጀለኛ መቅጫ ሕግ የሙስና ወንጀል ተብሎ የተቀመጠው ድርጊት ተሸሮ በአዲሱ የወንጀል ሕግ የሙስና ወንጀል ተብሎ ከአንቀጽ 407 ጀምሮ የተደነገገ ከመሆኑም በላይ በአዲሱ የወንጀል ሕግ ላይ የተደነገገው ቅጣት ከተሻረው ሕግ ቅጣት ያነሰና ተከሳሽን የሚጠቅም እንደሆነ በብይኑ ላይ አስፍሮ አዲሱ የወንጀል ሕግ ተከሳሽን የሚጠቅም እስከሆነ ድረስ ወደ ኋላ ተመልሶ ሊሰራ ስለሚችል ከላኝ በአዲሱ የወንጀል ሕግ አንቀጽ 407/1/ ላይ የተመለከተውን በመጥቀስ ክሱን አሻሽሎ እንዲያቀርብ ይህ ድንጋጌም የዋስትና መብት ስለማይከለክል ተከሣሽ የብር 5000/አምስት ሺህ/ ዋስትና ሲያሟላ በዋስ ሆኖ ክርክሩን እንዲቀጥል በማለት ብይን ሠጥቷል፡፡

የሥር ከሣሽ የአሁን ተጠሪ በዚሁ ብይን ቅሬታ አድርጎት የይግባኝ ቅሬታውን ለአማራ ክልል ጠቅላይ ፍ/ቤት አቅርቦ ጠቅላላ ፍ/ቤቱም በበኩሉ ግራ ቀኙን አከራክሮ የወንጀል ሕግ ተከሳሹን የሚጠቅም ከሆነ ወደ ኋላ ተመልሶ የሚሰራ መሆኑ አከራካሪ ባይሆንም ነገር ግን ተፈፃሚነት የሚኖረው በጥፋተኝነትና በቅጣት ጊዜ ስለመሆኑ በአዲሱ የወንጀል ሕግ በቁጥር 6 ላይ የተመለከተ በመሆኑ የሥር ፍ/ቤት የክርክሩ ሂደት ሳይጠናቀቅ ክሱ እንዲሻሻል በማዘዝ ዋስትና መፍቀዱ በአግባቡ አይደለም በማለት የሥር

ፍ/ቤትን ብይን በመሻር መ/ሰጭው /የአሁን አመልካች/ ጉዳዩን በማረሚያ ቤት ሆኖ ሊቀጥል ይገባል በማለት ውሳኔ ሰጥቷል።

የሰበር አቤቱታውም የቀረበው ይህንኑ በመቃወም ሲሆን ይህ ችሎት አቤቱታውን መርምሮ የአማራ ክልል ጠቅላይ ፍ/ቤት ለወንጀል ሕግ ቁጥር 6 የሰጠው ትርጉም ተጠሪ ባለበት ተጣርቶ ሊወሰን የሚገባው መሆኑን በማመኑ ተጠሪን በመጥራት ግራ ቀኙን አከራክሯል።

ምላሽ ማግኘት የሚገባውም የጉዳዩ ጭብጥ አመልካች የዋስትና መብት ሊፈቀድለት ይገባል? ወይንስ አይገባም? የሚለው በመሆኑ ይህንኑ ጭብጥ በመያዝ አቤቱታው እንደሚከተለው ተመርምሯል።

አመልካች ለክሱ ምክንያት የሆነውን ወንጀል ፈጽሟል የተባለው አዲሱ የወንጀል ሕግ ሥራ ላይ ከመዋሉ በፊት መሆኑ ግራ ቀኙን አላከራከረም።

ወንጀሉ የተፈጸመው አዲሱ የወንጀል ሕግ ሥራ ላይ ከመዋሉ በፊት ከሆነ ተከሣሹ መከሰስ የሚገባው በአዲሱ የወንጀል ሕግ አንቀጽ 5 መሠረት በአዲሱ ሕግ ሳይሆን ወንጀሉ በተፈጸመበት ጊዜ ሥራ ላይ በነበረው ሕግ መሠረት ነው።

በሌላ በኩልም ተከሣሽ የሚከሰሰው በቀድሞው ሕግ መሠረት ቢሆንም የቀድሞው የልዩ ወንጀለኛ መቅጫ ሕግ በአዲሱ የወንጀል ሕግ ተሽሮ የመሰና ወንጀሎችንም በተመለከተ በአዲሱ የወንጀል ሕግ በቁጥር 407 እና ተከታዮቹ ድንጋጌዎች ሥር ተደንግጎ ይገኛል።

በተሻሻለው የጸረ መሰና ልዩ የሥነ ሥርዓትና የማስረጃ ሕግ አዋጅ ቁጥር 437/97 መሠረትም በተከሣሹ ላይ ሊወሰን የሚችለው ቅጣት ከ10 ዓመት በታች ከሆነ የዋስትና መብት ሊፈቀድለት እንደሚችል ተደንግጓል።

አመልካች የወንጀሉን ድርጊት ፈጽሟል በተባለ ጊዜ የነበረው ሕግ የተሻረ ቢሆንም መከሰስ የሚገባው ድርጊቱ በተፈጸመ ጊዜ ሥራ ላይ በነበረውና አመልካችም በሚያውቀው ሕግ መሠረት መሆን እንደሚገባው ከሕግ መርህ /Rule of legality/ አኳያ መገንዘብ ይቻላል። በመርህ ደረጃ የተሻረ ሕግ ተፈጻሚነት ባይኖረውም ወንጀሉ ተፈጸመ በተባለ ጊዜ ተከሣሹ የሚያውቀው ይህንኑ የተሻረ ሕግ ስለሆነ ክስ መቅረብም የሚገባው ይሄው የተሻረ ሕግ ተጠቅሶ ነው። ይህም የአጠቃላይ መርሁ ልዩ ሁኔታ /exception to the general rule/ እንደሆነ መገንዘብ ይቻላል። በአዲሱ የወንጀል ሕግ አንቀጽ 5 ላይም የተንጸባረቀው ይህንኑ መሠረት አድርጎ ነው።

አመልካች መከሰስ የሚገባው በቀድሞው ሕግ መሠረት ከሆነ ጥፋተኛም የሚሆነው በዚሁ የቀድሞ ሕግ መሠረት መሆኑ የማይቀር ነው። በሌላ በኩልም የወንጀል ሕግ በመርህ ደረጃ ወደ ኋላ ተመልሶ እንደማይሰራ ነገር ግን ተከሣሹን የሚጠቅም እስከሆነ ድረስ ወደ ኋላ ተመልሶ ሊሰራ እንደሚችል በአዲሱ የወንጀል ሕግ አንቀጽ 6 ላይ እና በህገመንግስታችን አንቀጽ 22 ላይ ተመልክቷል።

የአማራ ክልል ጠቅላይ ፍ/ቤት በወንጀል ሕግ ቁጥር 6 ላይ የተመለከተውና የወንጀል ሕግ ተከሣሹን የሚጠቅም በሆነ ጊዜ ወደ ኋላ ተመልሶ ይሰራል ተብሎ የተደነገገው ተፈጻሚነቱ በቅጣት ጊዜ እንጂ ክርክሩ በተጀመረበት ደረጃ ተፈጻሚነት ስለማይኖረው የዋስትናው ጉዳይ መታየት ያለበት ከተከሰሰበት ድንጋጌ አኳያ በመሆኑ የተከሰሰበትም ድንጋጌ የዋስትና መብት ስለማይፈቅድ አመልካቹ በእሥር ሆኖ ሊከራከር ይገባል ብሏል።

በመርህ ደረጃ የተሻረ ሕር ተፈፃሚነት የሌለው ሲሆን በተሻረ ሕግ ክስ ማቅረብ ደግሞ የመርሁ ልዩ ሁኔታ ነው። የተሻረውም ሕግ ተጠቅሶ በተከሳሹ ላይ ክስ የሚቀርበው ወንጀሉ ተሰርቷል በተባለ ጊዜ ሕጉ ሥራ ላይ ስለነበርና ተከሳሹም ያውቀዋል ተብሎ ስለሚገመትና በሚያውቀው ሕግ መሠረት መከራከር እንዳለበት የሕግ መርህ /Rule of legality/ ስለሚያስገድድ ነው። ከዚህም መገንዘብ የሚቻለው የተሻረው ሕግ የሚጠቀሰው ተከሳሹ ክርክሩን በአግባቡ ለመምራት እንዲያስችለው እንጂ ከዚህ ያለፈ ውጤት የሌለውና መጨረሻም ላይ ቅጣት የሚወሰነው ሥራ ላይ ባለ ሕግ ላይ ተመስርቶ መሆኑን ነው።

ከዚህም ሌላ የዋስትና ጉዳይ በዋናነት የሚታየው ቅጣትን መሠረት አድርጎ ነው። አመልካች የተከሰሰው የዋስትና መብት በሚከለክል ድንጋጌ ቢሆንም ድንጋጌው የሚጠቀሰው ክርክሩን በአግባቡ ለመምራት ታስቦ እንደሆነ ሕጉ ይዞት የተነሳውን ዓላማ መገንዘብ ከተቻለ የዋስትናው ጉዳይ መታየት የሚገባው ሊወሰንበት ከሚችለው ቅጣት አኳያ መሆን እንዳለበት ይታመናል።

ክርክሩ እልባት ካገኘ በኋላ አመልካች የሚቀጣው በአዲሱ ሕግ መሠረት እንደሆነ ከወዲሁ በግልጽ መገንዘብ እየተቻለ ክርክሩ እስከሚጠናቀቅ ድረስ በእሥር ይቆይ ማለት ሕግ አውጭው የዋስትና መብት ሊከለከላቸው ያልፈለገውን ተከሳሾች የዋስትና መብት እንደመከልከል የሚቆጠርና ሕጉም የታለመለትን ዓላማና ግብ እንዳይመታ የሚያደርግ ነው።

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ስለሆነም በአመልካች ላይ ቅጣት ሊወሰንበት የሚችለው በአዲሱ የወንጀል ሕግ በቁጥር 407/1/ ሥር ስለሚሆንና በተሻሻለው የጸረ ሙስና ልዩ የሥነ-ሥርዓትና የማስረጃ ሕግ አዋጅ ቁጥር 437/97 መሠረት ከ10 ዓመት በታች በሚያስቀጡ የሙስና ወንጀሎች የዋስትና መብት የተፈቀደ ስለሆነ አመልካችም ሊቀጣ የሚችለው ከ10 ዓመት በታች ስለሆነ የደቡብ ወሎ ዞን ከፍተኛ ፍ/ቤት ከሱ እንዲሻሻል ትዕዛዝ መስጠቱ አግባብነት ባይኖረውም የዋስትና መብት መፍቀዱ ግን ተገቢነት ያለው ሆኖ ሳለ የክልሉ ጠቅላይ ፍ/ቤት ብይን በመሻር ለአመልካች የዋስትና መብት ሊፈቀድለት አይገባም በማለት የሰጠው ፍርድ ከላይ ከተመለከተው አኳያ የሕግ ስህተት የተፈጸመበት ሆኖ ተገኝቷል።

ው ሣ ኔ

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2. የደቡብ ወሎ ዞን ከፍተኛ ፍ/ቤት በመ/ቁ. 14168 በ9/6/99 ዓ.ም. ለአመልካች የዋስትና መብት በመፍቀድ የሰጠው ብይን በአግባቡ ስለሆነ አጽንተኝነቱ። ስለሆነም የዞኑ ከፍተኛ ፍ/ቤት ለአመልካች ዋስትና በፈቀደው መሠረት ዋስትናውን እንዲያሟላ በማድረግ አመልካች በዋስ እንዲከራከር ታዟል።
3. መዝገቡ ተዘግቶ ወደ መ/ቤት ተመልሷል።

የማይነበብ የአምስት ዳኞች ፊርማ
አለበት።

- ዳኞች፡- 1. ሒሩት መለሠ
2. ተሻገር ገ/ሰላሴ
3. ታፈሰ ይርጋ
4. አልማው ወሌ
5. ዓሊ መሐመድ

አመልካች፡- 1ኛ. አቶ ፍሰሐ ዓባይ
2ኛ. ወ/ሪት ህይወት የስራው } ጠበቃ አቶ ሰለሞን ደምሴ

ተጠሪ፡- የገቢዎችና ጉምሩክ ዓ/ሕግ አቶ ገ/እግዛብሔር ሙናቸው ቀረቡ።
መዝገቡ የተቀጠረው ለምርመራ ሲሆን፤ መርምረን ፍርድ ሰጥረናል።

ፍ ር ድ

ይህ የሰበር መዝገብ ሊቀርብ የቻለው በአመልካቾች ላይ በቀረበው የወንጀል ክስ ጉዳይ በየደረጃው ባሉት ፍ/ቤቶች ጉዳዩ ሲታይ ቆይቶ የፌዴራል ጠቅላይ ፍርድ ቤት በይግባኝ ተመልክቶ በሰጠው የመጨረሻ ውሳኔ ላይ አመልካቾች ቅር ተሰኝተው የሰበር አቤቱታ በማቅረባቸው ነው።

የጉዳዩም አመጣጥ ባጭሩ እንደሚከተለው ነው። የገቢዎችና ጉምሩክ አቃቤ ሕግ በአመልካቾች ላይ ያቀረበው ክስ አመልካቾች የተጨማሪ እሴት ታክስ አዋጅ ቁጥር 285/94 አንቀጽ 56/1/ እና እንደተሻሻለው አንቀጽ 22/1/ እና መ/ለ/1/ ላይ የተመለከተውን በመተላቁ ያለተጨማሪ እሴት ታክስ ግብይት ፈጽመዋል የሚል ሲሆን፤ አመልካቾች ይህንኑ የወንጀል ድርጊት አልፈፀምንም በማለት ከደው በመከራከራቸው ክርክር ቀጥሎ ሁለቱም ወገኖች በየፊናቸው ማስረጃ አቅርበው አሰምተዋል።

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በቅጣት ረገድም የግራ ቀኙ የቅጣት አስተያየት ካገናዘበ በኋላ 1ኛ ተከላሽ በብር 20,000.00 (ሃያ ሺ ብር) እና በ1 (አንድ) ዓመት እስራት ሁለተኛ አመልካች በብር 10,000.00 (መቶ ሺ) ብር እና በ1 (አንድ) ዓመት እስራት እንዲቀጡ ወስኗል።

በዚህ የጥፋተኝነትና የቅጣት ውሳኔ አመልካቾች ለፌ/ከፍተኛ ፍ/ቤት የይግባኝ አቤቱታ ማቅረባቸው ፍ/ቤቱም ጉዳዩን ተመልክቶ የአሁን አንደኛ አመልካች በተፈፀመው ድርጊት ቀጥተኛ ተሳትፎ የነበረው ስለመሆኑ በማስረጃ ስላልተረጋገጠ በነፃ ይሰናበታል በማለት ሲወስን፤ ከጠቅላይ ፍ/ቤት የውሳኔ ግልባጭ ላይ መረጃት እንደሚቻለው የሥር የመጀመሪያ ደረጃ ፍ/ቤት በአመልካቾች ላይ የተሰጠው የእስራት ቅጣት አንሷል በማለት አቅርቦት የነበረው የይግባኝ አቤቱታ ተቀባይነት ሳያገኝ ቀርቷል።

የከፍተኛው ፍ/ቤት በይግባኝ ደረጃ በጥፋተኝነትም ሆነ በቅጣት ረገድ በሰጠው ውሳኔ የገቢዎችና ጉምሩክ ዓቃቤ ሕግ ሁለተኛ የይግባኝ አቤቱታ ለፌ/ጠቅላይ ፍ/ቤት በማቅርቡ፤ የጠቅላይ ፍ/ቤቱ ሁለቱም ወገኖች ክርክር ካዳመጠ በኋላ በወ/ይ/መ/ቁ. 51336 የካቲት 05 ቀን 2002 ዓ.ም. በዋለው ችሎት በጥፋተኝነት ውሳኔ አሰጣጥ በኩል የመጀመሪያ ደረጃ ፍ/ቤት በአንደኛ አመልካች ላይ የሰጠውን የጥፋተኝነት ውሳኔ ከፀና በኋላ በቅጣት አጣጣል ረገድ አመልካቾች ጥፋተኛ በተባሉበት ድንጋጌ ሥር ከተመለከተው ዝቅተኛ የቅጣት መነሻ ቦታች ለመውረድ የሚያበቃ ህጋዊ ምክንያት አልተገኘም በማለት የገንዘብ መቀጮውን ሳይነካ ሁለቱም አመልካቾች እያንዳንዳቸው በሁለት ዓመት እስራት እንዲቀጡ በማሻሻል ወስኗል፡፡

የሰበር አቤቱታ የቀረበውም ከዚህ በላይ በተመለከተው አኳኋን የፌ/ጠቅላይ ፍ/ቤት የሰጠው የጥፋተኝነት እና የቅጣት ውሳኔ መሰረታዊ የሕግ ስህተት የተፈፀመበት በመሆኑ ሊታረም ይገባል በማለት ዝርዝር ቅሬታ በማቅረባቸው ነው፡፡

ለዚህም የሰበር ቅሬታ ተጠሪ የገቢዎችና ጉምሩክ አቃቤ ሕግ መልስ እንዲሰጥበት ተደረገው በሰበር ደረጃ ግራ ቀኙ የጽሑፍ ክርክራቸውን አቅርበዋል፡፡

እኛም ጉዳዩን መርምረናል፡፡

1ኛ. አመልካች ያለተጨማሪ እሴት ታክስ ግብይት ተፈጽሟል በተባለበት ጊዜ በተፈፀመው አድራጎት ተሳትፎ የነበረው ስለመሆኑ በማስረጃ የተረጋገጠ ጉዳይ አይደለም፡፡ የአንደኛ አመልካች የጥፋተኝነት መሰረት ሆኖ የተያዘው በአድራጎቱ የተነሣ የተፈፀመው ጥፋት ሳይሆን በአዋጅ ቁጥር 285/94 አንቀጽ 56/1/ እንደተመለከተው ድርጅቱ አዋጁን በመተላፉ ስለፈፀመው ጥፋት ተተክቶ ተጠያቂ ሊሆን በመቻሉ ነው በዚህ መሰረት ከተጠያቂነት ለመዳን የሚቻለው በአዋጅ ቁጥር 285/94 አንቀጽ 56/3/ የተመለከቱትን ሁኔታዎችን ለማስረዳት የተቻለ እንደሆነ ብቻ ነው፡፡ በዚህ ረገድ በመጀመሪያ ደረጃ ፍ/ቤትም ሆነ በጠቅላይ ፍ/ቤት የውሳኔ ሐተታ እንደተመለከተው ይህ ስለመሆኑ አንደኛ አመልካች ሕጉ የጣለበትን ግምት ለማስተባበል የሚያስችል የመከላከያ ማስረጃ አልቀረበም፡፡ በአዋጁ አንቀጽ 56/1/ "...አንድ ድርጅት..." የሚለውን አባባል ከአንቀጽ 56/4/ ድንጋጌ ሥራ አስኪያጅ የሚለው አባባል ለየትኞቹ ድርጅት የሚለውን ጥያቄ ሊያስነሳ እንደሚችል የተረዳን ቢሆንም በአዋጁ መግቢያ "ትርጓሜ" ለሚለው አንቀጽ 2/5/ እና 2/11/ ጋር አገናዝቦን ስንመለከተው ድርጅት ማለት በሽርክና ማህበር በኩባንያ እና በሰዎች ህብረት ላይ ብቻ ተወስኖ የሚቀር ሆኖ አይታይም፡፡

ሁለተኛ አመልካችንም ቢሆን ድርጊቱ በተፈፀመበት ጊዜ ቦታ ተገኝታ ከፈፀመችው ካደረገችው እና ከተናገረችው አድራጎት አንፃር በድርጊቱ አፈፃፀም ቀጥተኛ ተሳትፎ ስለመሆኑ በበቂ ማስረጃ የተረጋገጠ ሆኖ አግኝተነዋል፡፡

በዚህ ሁሉ ምክንያት በሥር ጠቅላይ ፍ/ቤት የጥፋተኝነት ውሳኔን አስመልክቶ የተሰጠው ዳኝነት መሰረታዊ የሕግ ስህተት የተፈፀመበት ሆኖ አላገኘነውም፡፡

በሌላ በኩል የጠቅላይ ፍ/ቤት በተጠሪ ይባኝ መነሻ በአመልካቾች ላይ ተጥሎ የነበረውን የአንድ ዓመት እስራት ወደ ሁለት ዓመት እስራት ለውጦ በማሻሻል ሊወስን የቻለው በወንጀል ሕግ አንቀጽ 82/1/ሀ/ ከተመለከተው ዝርዝር የቅጣት ማቅለያ ምክንያቶች አንዱ የሆነው የጥፋተኛው የዘወትር ጠባይ መልካም መሆን ብቻውን እንደ ቅጣት ማቅለያ ሊወሰድ አይችልም፡፡ የዘወትር ጠባዩ መልካም መሆን ብቻ ሳይሆን ያጠፋውም በእውቀት ማነስ፣ ባለማወቅ፣ በየዋህነት ወይም ባልታሰበና ድንገተኛ አጋጣሚ

እንደሆነ ጭምር መሆን ይገባል፡፡ በዚሁ ድንጋጌ የዘወትር ጠባይኑና የአፈፃፀሙን ሁኔታም “እና” በሚለው ምህፃረ ቃል መያያዙ ሁለቱም ሁኔታዎች ድርብ የቅጣት ማቅለያ ማሟያ ምክንያቶች መሆናቸውን አመልካች ነው የሚለውን በመያዝ እንደሆነ ከመዝገቡ ግልባጭ ተረድተናል፡፡

ይሁን እንጂ ቅጣትን የማቅለልና ከቅጣት ነፃ የማድረግ ደንብን አስመልክቶ በተመለከተው የሕግ ክፍል በወ/ሕ/ቁ. 179 ላይ “ፍርድ ቤቱ በዚህ አንቀጽ መሰረት ቅጣትን ማለቅለል እንደሚችል በሕግ በተደነገገ ጊዜ ሁሉ.....” ለሚለው አነጋገር “በሕግ በተደነገገ ጊዜ ሁሉ...” የሚለው ሐረግ ስለቅጣት ማቅለል በወ/ሕ/ቁ. 82/1/ሀ/ የተመለከተው ድንጋጌ ብቻ ሳይሆን ከቅጣት አወሳሰን ጋር ተያያዥነት ያላቸውን ስለቅጣት አጣጣል አግባብነት ካላቸው ድንጋጌዎች ጋር አጣቅሶ ማየት እንደሚያስፈልግ አመለካች ነው፡፡

ከዚህም አኳያ በወ/ሕግ ቁጥር 88/2/ ቅጣት ሊወሰን የሚገባው የወንጀል አድራጊውን ያለፈ የሕይወት ታሪክ ከግምት ውስጥ በማስገባት እንደሆነ መደንገጉ አንድ አጥፊ ወንጀሉን እስካደረገበት ጊዜ ድረስ የዘወትር ጠባዩ መልካም የነበረ መሆኑ እስከተረጋገጠ ድረስ ለቅጣት ማቅለያነት የማይወሰድበት ምክንያት አይኖርም፡፡ ይህም ሁሉ ታልፎ በወንጀል ሕግ ቁጥር 82/1/ሀ/ የተመለከተው የቅጣት ማቅለያ ወጥነት ያለው የተጣመረ ምክንያት ነው እንኳ ቢባል በሥር ፍ/ቤቶች የቅጣትን አስተያየት አስመልክቶ በግራ ቀጥ በየደረጃው ከተደረጉት ክርክሮች፣ ከድርጊቱ አፈፃፀም ወንጀሉን ላቋቋመው ድንጋጌ ወይም ሕግ ጋር ሁሉ ተገናዝቦ ሲታይ በዚህ አከራካሪ በሆነው ድንጋጌ “እና” ከሚለው ቀጥሎ ካሉት ወይም በሚል ምሕጻረ ቃል ከተያያዙት አንዱን ምክንያት ቢሆን እንኳ አመልካቾች አላሟሉም ማለት የሚቻል ሆኖ አልተገኘም፡፡ በዚህም የተነሣ ቅጣቱ በመደበኛ የቅጣት ማቅለያ ደንብ መሰረት ማውረድ አይገባም የሚለውን ታሳቢ በማድረግ አመልካቾች ጥፋተኛ በተባሉት ድንጋጌ ሥር የተመለከተውን መነሻ የሁለት ዓመት እስራት የፌዴራል ጠቅላይ ፍ/ቤት መጣሉ/መወሰኑ የቅጣት አጣጣል ሥርአትን የተከተለ ሆኖ አላገኘውም፡፡

ው ሣ ኔ

1. በቅጣት አወሳሰን ረገድ ላይ ብቻ የፌ/ጠቅላይ ፍ/ቤት በወ/ይ/መ/ቁ. 51336 የካቲት 05 ቀን 2002 ዓ.ም. የሰጠው ውሳኔ ተሻሽሏል፡፡ በዚህ ረገድ የመጀመሪያ ደረጃ ፍ/ቤት በኮ/መ/ቁ. 144285 ግንቦት 18 ቀን 2001 ዓ.ም. የጣለው ቅጣት ፀንቷል፡፡
2. አመልካቾች የመጀመሪያ ደረጃ ፍ/ቤት ውሳኔ እንደተገለፀው አንደኛ አመልካች በብር 20,000.00 (ሃያ ሺህ ብር) እና በአንድ ዓመት፣ ሁለተኛ አመልካች በብር 10,000.00 (አስር ሺህ ብር) እና በአንድ ዓመት እስራት ይቀጣሉ በማለት በወ/መ/ሕ/ሥ/ሥ/ቁ. 195/2/ለ/2/ መሰረት አሻሽለን ወስነናል፡፡ ለፌዴራል ማ/ቤቶች ይፃፍ፡፡

የማይነበብ የአምስት ዳኞች ፊርማ አለበት፡፡

- ዳኞች፡- 1. ዓብዱልቃድር መሐመድ
2. ሒሩት መለሠ
3. ታፈሰ ይርጋ
4. አሊ መሐመድ
5. ሱልጣን አባተማሞ

አመልካች፡- የአማራ ክልል ፍትህ ቢሮ - ዓቃቤ ሕግ አውግቸው መኮንን ቀረበ፡፡

ተጠሪ፡- ከበደ ወርቅነህ - አልቀረቡም፡፡

መዝገቡ የተቀጠረው ለምርመራ ነበር፡፡ መዝገቡን መርምረን የሚከተለውን ፍርድ ሰጥተናል፡፡

ፍ ር ድ

ጉዳዩ የቀረበው አመልካች የክልሉ ጠቅላይ ፍርድ ቤት በመዝገብ ቁጥር 13840 ኅዳር 30 ቀን 2000 ዓ.ም. የሰጠው ውሳኔ መሠረታዊ የሕግ ስህተት ያለበት ስለሆነ በሰበር ታይቶ እንዲታረምልን በማለት ታህሣሥ 29 ቀን 2000 ዓ.ም. በተፃፈ የሰበር አቤቱታ በመጠየቁ ነው፡፡ የክርክሩ መነሻ የምዕራብ ጎጃም ዞን ዓቃቤ ሕግ በከሣሽነት ተጠሪ በተከሰሽነት ተከራክረዋል፡፡ በየዞኑ ዓቃቤ ሕግ በተጠሪ ላይ፤ መጋቢት 28 ቀን 1998 ዓ.ም. ከምሽቱ በግምት አራት ሰዓት ሲሆን የግል ተበዳይ የመኩሪያው ተጋፋውን ቤት በማቃጠል በመኖሪያ ቤቱ ውስጥ ተኝተው የነበሩት ይታይሽ አለማየሁ፤ አለባቸው መኩሪያውና ፋሲካ መኩሪያው በእሳት ተቃጥለው እንዲሞቱ ያደረገ በመሆኑና ድርጊቱን የፈፀመው በእሳት ቃጠሎ ምክንያት በውስጥ ያሉ ሰዎች ሊሞቱ እንደሚችሉ እያወቀ በ1996 ዓ.ም. የወጣውን የኢ.ፌ.ዲ.ሪ የወንጀል ሕግ 539/1/ሀ/ በመተላለፍ የሆነው ይሁን በሚል ተነሳሰቶ በመሆኑ ከባድ የሰው መግደል ወንጀል ፈጽሟል፤ ይህ የሚታለፍ ቢሆን በአማራጭ በወንጀል ሕጉ አንቀጽ 543/2/ የተመለከተውን በመተላለፍ በቸልተኝነት የሰው መግደል ወንጀል ፈጽሟል፤ እንደዚሁም በወንጀል ሕጉ አንቀጽ 494 ንዑስ አንቀጽ 2 የተመለከተውን በመተላለፍ ግምቱ ከብር 20000.00/ሃያ ሺህ ብር/ በላይ የሆነ ንብረት ሙሉ በሙሉ እንዲወድም አድርጓል የሚሉ ክስቶችን አቅርቦበታል፡፡

ተጠሪ ዓቃቤ ሕግ ባቀረበው ክስ የገለፃቸውን የወንጀል ድርጊቶች አልፈፀምኩም በማለት ክዶ በመከራከሩ ዓቃቤ ሕግ ሁለት ምስክሮች አሰምቷል፡፡ ተጠሪ ለወረዳ ፍርድ ቤት በወንጀለኛ መቆጫ ሥነ ሥርዓት ሕግ ቁጥር 35 መሠረት የሰጠውን የዕምነት ቃል በሰነድ ማስረጃነት አቅርቧል፡፡ የዓቃቤ ሕግ ምስክሮች ቤቱ ከውጭ እንደተቆለፈ በእሳት የተቀጣጠለ መሆኑንና በክሱ ስማቸው የተገለፀው ሰዎች በእሳት ተቃጥለው መሞታቸው ልዩነት በሌለው ሁኔታ የመሰከሩ መሆኑንና ሁለተኛው የዓቃቤ ህግ ምስክር በእሳት ተቃጥላ የሞተቸው ሴት ተከሣሽ መኩሪያው ተጋፋውን ከነቤተሰቦቹ ቆልፌ በእሳት አቃጥላለሁ እያለ ይዝት እንደነበር ከዚያ ቀን በፊት ነግራናለች በማለት የመሰከረ መሆኑን የሥር ፍርድ ቤት ውሳኔ ያሳያል፡፡

ሌላው በዓቃቤ ሕግ በኩል የቀረበው ማስረጃ ተጠሪ በወንጀለኛ መቆጫ ሥነ ሥርዓት ሕግ ቁጥር 35 መሠረት የሰጠው የዕምነት ቃል ሲሆን መጋቢት 29 ቀን 1998 ሌሊት 4 ሰዓት ሲሆን የመኩሪያው ተጋፋውን ቤት አቃጥየዋለሁ፤ ያቃጠልኩት መጋቢት መባቻ ላይ በዱላ ስለመታኝ ነው፤ ቤቱ ከውጭ ተቆልፎ የነበረ በመሆኑና

የቤቱ ባለቤት ወደ ማህበር ሲሄድ ስላየሁት ቤተሰቦቹም ሄደዋል ብዬ ነው ያቃጠልኩት፤ ቤቱም ከውጪ ተቆልፎ ነበር የሚል ይዘት የለው ነው። የዞኑ ከፍተኛ ፍርድ ቤት ተጠሪ መከላከያ ማስረጃ እንዲያቀርብ ትዕዛዝ ሰጥቶ ተጠሪ በወቅቱ በአካባቢው ያልነበረ መሆኑን ሁለት የመከላከያ ምስክሮች አቅርቦ አስምቷል። የዞኑ ከፍተኛ ፍርድ ቤት የግራ ቀኙን ማስረጃ ከሰማ በኋላ ተጠሪ በወንጀል ሕጉ አንቀጽ 543/3/ የተመለከተውን በመተላለፍ በቸልተኝነት ሶስት ሰዎችን የገደለ ጥፋተኛ ነው፤ እንደዚሁም በወንጀል ሕጉ 691 የተመለከተውን በመተላለፍ ወንጀል የፈፀመ ጥፋተኛ ነው በማለት ፍርድ ሰጥቷል።

ቅጣቱን በተመለከተ ለመጀመሪያው ጥፋት በሰባት ዓመት ጽኑ እስራትና በአንድ ሺህ አምስት መቶ ብር መቀጮ፤ በሁለተኛው ጥፋት በሁለት ዓመት ጽኑ እስራትና በአምስት መቶ ብር መቀጮ በጥቅሉ በዘጠኝ ዓመት ጽኑ እስራትና በሁለት ሺህ ብር የገንዘብ መቀጮ እንዲቀጣ በማለት ወስኗል። ተጠሪ በዚህ ፍርድ ቅር በመሰኘት ይግባኝ ለክልሉ ጠቅላይ ፍርድ ቤት አቅርቦ ጠቅላይ ፍርድ ቤቱ በእሳት ተቃጥለው የሞቱትን ሰዎች በተመለከተ ተጠሪ ሊያደርገው የሚችለው ጥንቃቄ አልነበረም፤ የሀሳብ ሁኔታው አልተሟላም በማለት ሙሉ በሙሉ በነፃ እንዲለቀቅ የወሰነ ሲሆን የሁለት ዓመት ጽኑ እስራትና አምስ መቶ ብር ቅጣት በማጽናት ወስኗል።

አመልካች ይህ የክልሉ ጠቅላይ ፍርድ ቤት የሰጠው የሕግ ትርጉምና ውሳኔ መሠረታዊ ስህተት አለበት፤ ተጠሪ ቤቱን በማቃጠል የግል ተበዳይ ያደረሰበትን ጉዳት ለመበቀል አስቦ ያደረገው መሆኑ በሰው ምስክርም ሆነ በጽሁፍ ማስረጃ ተረጋግጧል፤ ተጠሪ ከምሽቱ አራት ሰዓት በመሄድ ቤት ያቃጠለው ንብረት ለማውደም ብቻ ሳይሆን ሰዎች የሚተኙበት በእንቅልፍ ሰዓት በመሆኑ የግል ተበዳይን ከነቤተሰቡ በእሳት ለማቃጠል በነበረው ሀሳብ እንደሆነ በማስረጃ አስረድተናል፤ ሆኖም የከፍተኛው ፍርድ ቤት በአማራጭ የቀረበውን በቸልተኝነት የሰው መግደል ወንጀል ተጠሪን ጥፋተኛ ሲል ዓቃቤ ሕግ ይግባኝ ያልጠየቀ በመሆኑ በከባድ ሰው መግደል ተጠሪ መጠየቅ አለበት ብለን ለመከራከር የሥነ ሥርዓት ገደብ ቢኖርብንም ከዚህ አልፎ የጠቅላይ ፍርድ ቤት በተጠሪ በኩል ቸልተኝነት የለም በማለት መወሰኑ ለወንጀል ሕጉ አንቀጽ 59 እና 543/3/ የተዛባ ትርጉም የሰጠና መሠረታዊ የሕግ ስህተት የሰራ መሆኑን ስለሚያሳይ በሰበር ታይቶ እንዲታረምልን በማለት አመልክቷል።

ተጠሪ ለአመልካች አቤቱታ መልስ ይዞ እንዲቀርብ መጥሪያ የደረሰው ሲሆን መልሱን ይዞ አልቀረበም። ስለሆነም በሌለበት ጉዳዩ እንዲታይ ትዕዛዝ ተሰጥቷል። ከሥር የክርክሩ አመጣጥና የክርክሩ ፍሬ ጉዳይ ከላይ የተገለፀው ሲሆን እኛም መዝገቡን መርምረናል። መዝገቡን እንደመረመርነው ተጠሪ ቤቱን ከምሽቱ አራት ሰዓት ያቃጠለው ከግል ተበዳይ መከራያው ተጋፋው ጋር ከዚያ ፊት ተጣልተው የግል ተበዳይ በዱላ ስለደበደበው መሆኑን የዓቃቤ ሕግ የሰነድ ማስረጃ ያረጋግጣል። ከዚህ በተጨማሪ ተጠሪ የግል ተበዳይን ቤት ከውጭ ቆልፌ ከነቤተሰቡ ነው የማቃጠለው በማለት ይዘት እንደነበር አንደኛዎ ሚች ነግራኛለች በማለት አስረድቷል።

የክልሉ ጠቅላይ ፍርድ ቤት የዓቃቤ ሕግ ማስረጃ ከነሙሉ ይዘቱ መመዘን አለበት በማለት የሰጠው ትችት ተቀባይነት ያለው የማስረጃ አመዛዘን መርህ በመሆኑ የሚነቀፍ አይደለም። ሆኖም ጠቅላይ ፍርድ ቤቱ በዓቃቤ ሕግ በኩል የቀረበውን ማስረጃ ከነሙሉ ይዘቱና መልዕክቱ የመዘነ ሆኖ አላገኘነውም። ዓቃቤ ሕግ የጽሁፍ ማስረጃ አድርጎ ባቀረበው የተጠሪ ዕምነት ቃል የግል ተበዳይ ወደ ማህበር ሲሄድ ስላየሁት ቤተሰቦቹም ሄደዋል ብዬ በማሰብ ቤቱን አቃጠልኩት የሚል ፍሬ ጉዳይ አለ።

ከዚህም የምንረዳው ተጠሪ በእሳት ቃጠሎ ሕይወታቸው ያለፈው የግል ተበዳይ ቤተሰቦች ወደ ማህበር ሲሄዱ ያላያቸው መሆኑን ነው። ተጠሪ ሟቾች ወደ ማህበር ስለመሄዳቸው እርግጠኛ ባልሆነበት ሁኔታ ማህበር ሂደቱ ብሎ ስለገመተ ብቻ ቸልተኝነት የለበትም ለማለት አይቻልም። ወቅቱ ሌሊት ከመሆኑ አንፃር ሲታይ የግል ተበዳይን ቤትና ንብረት የሚጠብቅ ሰው ከቤት ሊኖር እንደሚችል ማወቅ ሲገባው ወይም እያወቀ በወንጀል ሕጉ አንቀጽ 59 የተደነገገውን ቸልተኝነት የሚያሟላ ነው። የሟቾች ከቤታቸው ውስጥ ተኝተው መገኘት ከተጠሪው አቅም በላይ የሆነ ኃይል ወይም በድንገተኛ አጋጣሚ የተፈፀመ ጉዳይ አይደለም። ስለሆነም የዞኑ ከፍተኛ ፍ/ቤት ተጠሪ በወንጀል ሕጉ አንቀጽ 543 ንዑስ አንቀጽ 3 ጥፋተኛ ነው በማለት የሰጠው የጥፋተኛነትና የቅጣት ውሳኔ በአግባቡ ሆኖ አግኝተዋል።

በአጠቃላይ በዓቃቤ ሕግ በኩል የቀረበው ማስረጃ ተጠሪ ከግል ተበዳዩ ጋር በነበረው ጠብ በቂም በቀል ተነሳሰቶ የግል ተቀዳይን ቤት በእሳት ያቃጠለ መሆኑን ያረጋግጣል። ተጠሪ በለኮሰው እሳት ተቃጥለው ሰዎች ሞተዋል። ተጠሪ ቤቱን የማቃጠል እንጂ ሟቾቹን የመግደል ሀሣብ አልነበረውም ቢባል እንኳን በቸልተኝነት ሟቾችን በመግደሉ ተጠያቂ የማይሆንበት ምንም ዓይነት ምክንያት የለም። ስለዚህ የክልሉ ጠቅላይ ፍርድ ቤት ተጠሪ ሊያደርገው የሚገባው ጥንቃቄ አልነበረም። በቸልተኝነት በሰው መግደል ወንጀል ጥፋተኛ መባል የለበትም በማለት የሰጠው ፍርድ መሠረታዊ የሕግ ስህተት ያለበት ነው በማለት ፍርድ ሰጥተናል።

ው ሣ ኔ

1. የክልሉ ጠቅላይ ፍርድ ቤት በመዝገብ ቁጥር 13840 ኅዳር 30 ቀን 2000 ዓ.ም. ተጠሪ የወንጀል ሕጉን አንቀጽ 543/3/ በመተላለፍ በቸልተኝነት የሰው መግደል ወንጀል የፈፀመ ጥፋተኛ ነው ተብሎ ሊጠየቅ አይገባውም በማለት የሰጠው ውሳኔ ተሽሯል። ይፃፍ።
2. የዞኑ ከፍተኛው ፍርድ ቤት በመዝገብ ቁጥር 14498 ሀምሌ 23 ቀን 1999 ዓ.ም. የሰጠው የጥፋተኛነትና የቅጣት ውሳኔ ሙሉ በሙሉ ፀንቷል። ይፃፍ።
3. ተጠሪ በወንጀል ሕግ አንቀጽ 543 ንዑስ አንቀጽ 3 የተደነገገውን በመተላለፍ ሟች ይታይሽ አለማየሁ፣ አለባቸው መኩሪያውና ፋሲካ መኩሪያውን በቸልተኝነት የገደለ ጥፋተኛ ነው ብለናል። ለዚህ ጥፋቱም ከፍተኛው ፍርድ ቤት በወሰነው መሠረት በሰባት ዓመት ጽኑ እስራትና በአንድ ሺህ አምስት መቶ ብር መቀጮ ይቀጣል ብለናል።
ይህንን ቅጣት ተከታትለው እንዲያስፈጽሙ ለክልሉ ፖሊስ ኮሚሽንና ለክልሉ ማረሚያ ቤቶች አስተዳደር ይፃፍ።
4. በዚህ ክርክር የወጣውን ወጪ አመልካች በራሱ ይቻል ብለናል።
ይህ ፍርድ በፌዴራል ጠቅላይ ፍርድ ቤት ሰበር ሰሚ ችሎት ጥቅምት 20 ቀን 2001 ዓ.ም. በሙሉ ድምጽ ተሰጠ።

የማይነበብ የአምስት ዳኞች

ፊርማ

Call for contributions

The *Bahir Dar University Journal of Law* welcomes previously unpublished original contributions of research articles, case comments, book reviews, and opinions and reflections on current legal issues. The *Journal* gives priority in publication for contributions pertaining to Ethiopian laws. Contributions will appear on the *Journal* after approval by the Editorial Committee. The publication of research articles is further subject to review by two anonymous referees.

Guide for authors

Aim and scope of the *Journal*:

The *Bahir Dar University Journal of Law* is established in 2010 G.C. under the stewardship of the School of Law Bahir Dar University. It aims to promote legal scholarship and critical inquiry. The *Journal* places the needs of the readers first and foremost in its composition and aspires to become a well-cultivated resource for the community of legal professionals. While, in principle, it is open for any kind of contributions on the subject matter of law or interdisciplinary issues related to law, it gives high priority to contributions pertaining to Ethiopian laws to encourage discourse on Ethiopian laws where literature is scanty.

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Review procedure

The *Bahir Dar University Journal of Law* is a peer-reviewed journal. All submissions are reviewed by the editor-in-chief, one member of the editorial committee. The publication of feature articles is further subject to review by an anonymous external referee and final discussion and approval by the editorial committee. Please note that our evaluation process takes account of several criteria. While excellence is a necessary condition for publication, it is not always the only condition. The need for balance of topics, the *Journal's* particular area of interest which may change overtime, and the fact that an article

discussing a similar topic has already been commissioned, etc., may also influence the final decision. Therefore, a rejection does not necessarily reflect upon the quality of the piece.

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You can submit your manuscript at any time. We do not have deadlines for submission of manuscripts. Each day we accept submissions and those qualified submissions will be commissioned for publication on a rolling basis. As soon as we receive your submission we will send you an acknowledgement email. We aim to give notification of acceptance, rejection, or need for revision within four weeks of acceptance, although exceptions to this timeframe may occur. In the event of final acceptance you will be notified when it will be published and in which issue of the *Journal* the paper will feature.

Language

All submissions need to be written in articulate and proficient language either in English or Amharic. Authors who lack good command of the language are encouraged to send their article to language editing prior to submission.

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The size of contributions shall be as follows:

- feature articles: Min 15 pages, max 40 pages
- case comments: Min 3 pages, max 15 pages
- Book Review: Max 3 pages
- Reflections: Min 3 pages, max 15 pages

Manuscript presentation

Bahir Dar University Journal of Law generally follows the style and citation rules outlined below.

Author's affiliation:

The author's affiliation should be indicated in a footnote marked by an asterisk and not by an Arabic number. Authors should refer to themselves in the third person throughout the text.

Headings:

Manuscripts shall have an abstract of approximately 200 words and introduction and the body should be arranged in a logically organized headings and sub-headings. Headings in the various sections of the manuscript shall be aligned to the left margin of the page and shall be as follows:

Abstract

Introduction

1. First Heading

1.1. Second Heading

1.1.1. Third Heading

1.1.1.1. Fourth heading

i. Fifth heading

a. Sixth heading

Conclusion

Italicization:

All non-English words must be *italicized*

Emphasis:

To indicate emphasis use *italics*.

References:

All contributions should duly acknowledge any reference or quotations from the work of other authors or the previous work of the author. Reference shall be made in the original language of the source document referred to.

Quotations:

Quotations of more than three lines should be indented left and right without any quotation marks. Quotation marks in the block should appear as they normally do. Quotations of less than three lines should be in quotation marks and not indented from the text. Regarding alterations in a quotation, use:-

Square bracket “[]” to note any change in the quoted material,

Ellipsis “...” to indicate omitted material,

“[sic]” to indicate mistake in the original quote.

Footnotes:

Footnotes should be consecutively numbered and be set out at the foot of each page and cross-referenced using *supra*, *infra*, *id.* and *ibid.*, as appropriate. Footnote numbers are placed outside of punctuation marks.

References in footnotes:

References in footnotes should generally contain sufficient information about the source material. In general, references should have the content and style outlined below in the illustrations for the various types of sources.

Books:

Brownlie, I., *Principles of Public International Law*, 6th edition, Oxford University Press, Oxford, New York, 2003 (first published in 1966), p. 5, [hereinafter Brownlie, *Principles of Public International Law*]

Contributions in edited books:

Fleck, Dieter, the Law of Non-International Armed Conflicts, in Fleck, Dieter (ed.), *The Handbook of International Humanitarian Law*, Second Edition, Oxford University Press, Oxford, New York, 2008, p. 613, [hereinafter Fleck, *The Handbook of International Humanitarian Law*]

Articles in Journals:

Jinks, D., September 11 and the Laws of War, *Yale Journal of International Law*, Vol.28, No. 1, 2003, p. 24.

Legislations:

Federal Courts Proclamation, 1996, Art. 8(1) & (2), Proc.no.25/1996, *Fed. Neg. Gaz.*, year 2, no. 13.

Codes:

Revised Family Code, 2000, Art. 7 (1), Proc.no. 213/2000, *Fed. Neg. Gaz.* (Extraordinary issue), year 6, no. 1.

Treaties:

Vienna Convention on the Law of Treaties, 1969, Article 31.

Resolutions:

Security Council Resolution 1368 (2001), at WWW
<http://daccessdds.un.org/doc/UNDOC/GEN/N01/533/82/PDF/N0153382.pdf?OpenElement> > (consulted 10 August 2008).

Cases:

International Criminal Tribunal for the former Yugoslavia, *Prosecutor v. Dusko Tadic*, Appeals Chamber, Judgement, 15 July 1999, para. 120, at WWW
 <<http://www.un.org/icty/tadic/appeal/judgement/tad-aj990715e.pdf>> (consulted 7 August 2008), [hereinafter, ITY, Tadic case, Appeals Chamber, Judgement].
 የኢትዮጵያ መድን ድርጅት vs. ጊታሁን ሀይለ-ገብረ-ገብረ ፍርድቤት ሰሚ ችሎት፤ መ.ቁ. 14057፤ 1998 ዓ.ም.

Format requirements:

All contributions should be submitted in Microsoft Word document format, written in 12 fonts, double space, Times New Roman (Footnotes in 10 fonts, single space, Times New Roman).

Proofs

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